

WV SU

Journal for Law Advocacy



THE INAUGURAL ISSUE

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POLITICAL DYNASTIES IN THE
PHILIPPINES

THE PHILIPPINE PARTY-LIST
SYSTEM AND REPRESENTATION
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TOWARDS A CLEAN AND HONEST ELECTION:
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WVSU

Journal for Law Advocacy

As provided in the Manual of Operations, WVSU Journal for Law Advocacy is published by:

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"Not all battles are fought for victory, some are fought to tell the world that someone was there on the battlefield."

- RAVISH KUMAR



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Message from the Dean

Atty. Pauline Grace B. Alfuentes, CPA
Dean of West Visayas State University - College of Law

The Journal for Law Advocacy (JLA) is a student-run publication devoted to the development of legal scholarship for and from Visayas Region and Southern Philippines.

The undertaking of the JLA is meant to edify the legal research proficiency of Juris Doctor (JD) students to train and support them in their advocacy for solving legal concerns. Capacity-building initiatives have been undertaken by the Editorial Board to develop competencies and skills to make them more effective writers about the law and its development in the country. This will definitely encourage the JD students to take action through critical thinking, provide legal advice and counseling and have the potential to solve legal matters and issues.

Faculty of Law, legal luminaries, and guest writers can also submit their manuscripts for publication to the JLA undergoing a double blind peer review process.

The College of Law is very proud of the pioneer Editorial Board of the WVSU Journal for Law Advocacy (JLA) on the release of its first issue. Way to go JLA!

■

Message from the Associate Dean

Atty. Ian Thomas M. Besana, REB, LL.M
Associate Dean of West Visayas State University - College of Law

My warmest felicitations to Judge Enrique Z. Trespeces and the Board of Editors of the WVSU College of Law Journal for Law Advocacy on your inaugural publication!

It is a significant achievement to have published a student-driven journal during the infancy of the College amidst the challenges posed by the pandemic. This also makes us compliant with the mandate of the Legal Education Board (LEB) which endeavors every law school to publish a research journal to foster a culture of research both in the members of the faculty as well as among students. The journal showcases the writing prowess of the faculty and students of the College.

It is the vision of the men and women behind WVSU College of Law that it will become the foremost school in the field of legal education in Western Visayas. The Journal for Law Advocacy compliments the other advocacies and programs of the College of Law which includes The Center For Law Advocacy which administers the clinical education program of the College of Law. It provides free legal assistance to indigent litigants, especially women and children. It is an extension service of the College of Law and a training ground of the COL's Law Student Practitioners (LSPs) to become advocates of the rule of law and trial ready lawyers.

Recently, WVSU College of Law was selected as Grantee of the GoJUST II Grant of the United Nations Office for Project Services (UNOPS), British Council and European Union. Out of the 19 proposals submitted to GoJUST, only six law schools qualified and, proudly, WVSU is the only state university included in the select group. The main project under the auspices of the Center and funded by the GoJUST II Grant is PROJECT E-HUSTISYA, which is a student-led help desk and information drive which aims to provide legal assistance to vulnerable sectors, especially women who are victims of abuse and gender-based violence and discrimination, abused children and the marginalized sector of the community and will run until 2024. Other programs are in store for the students at the College to develop them to become well-rounded lawyers who promote the ideals of justice.

To more publications and exciting times ahead for the Journal for Law Advocacy, cheers! ■

The Backstory

Judge Enrique Z. Trespeces
Advisor to the WVSU Journal for Law Advocacy

The 21st of August last year, marked the genesis of the WVSU Journal for Law Advocacy. The Journal's thrust is aligned to the core mission of the *WVSU Center for Law Advocacy* which is the legal aid arm of the College of Law pursuant to the Rule 138-A or the Revised Student Practice Rule of the Supreme Court.

The concept is plain and simple— the Journal is envisioned to be a student-run publication, providing a window of opportunities for law students wanting to take their legal writing, analysis, and research skills to new heights; providing avenues for “a robust marketplace of ideas”, empowering the students to responsibly exercise their freedom of expression and academic freedom.

To set the concept in motion and jumpstart the organization process, an Executive Committee was constituted consisting of law professors to carry out the selection process through a competitive examination and grade assessment; to advise and critique the Editors' publication agenda and timetable; and to oversee publication integrity, assuring that the Journal is invariably up to the standard in all fields of law and procedures.

The Committee has dropped the traditional editor-in-chief set-up that has a bossy bent, and instead adopted a less hierarchical format to champion teamwork and a collective decision-making process. To achieve this, a triumvirate Board of Editors and five Contribution Editors to oversee the publication operations were simply constituted.

On September 6, the Committee invited twelve (12) students of the pioneering Batch *Banaag* for a competitive examination: eight (8) responded with gladness, and four (4) responded with unwillingness. A week after, a *Commentary Writing Marathon* was launched, themed on the burning issue of political dynasty. In no time, emails coming in droves in a day or two were a sigh of relief.

October 13 culminated the selection process: Clyde, Edson, and Kirby got the Board of Editors seats (under Clyde's overseeing wings); and Clint, Rene, Mike, Theda, and Vanessa as Contribution Editors (under the supervision of Clint, who later on took a leave of absence, which prompted the amiable Rene to take the helm).

There are always new things to learn and improve. The pioneering Editors listened with interest last November 16, 2021 with Dr. Mary Barby Badayos-Jover's¹ lecture on *Standards of Academic Publishing and Peer Review Process* and on Mr. Paulo Romeo Yusi's² divining tips *On Managing a Student-run Law Journal*. The pioneering Editors took their oath of office on December 2, 2021.

In conclusion, the Board's editorial policy of committing itself to the "development of legal scholarship for and from the Visayas Region and Southern Philippines"³ and adoption of a double-blind peer review process are indeed game-changers and unprecedented in this ever-changing digital age, longing the pro-active support of students and professors alike.

On behalf of the members of the Executive Committee (Dean Alfuentes, Pros. Bionat, Atty. Co, Pros. Genova, Pros. Heler, Atty. Mendoza, Atty Segubre), I can take great pride in the unqualified commitment of our very hardworking, innovative, and proficient pioneering literary lions and lioness who markedly steered this inaugural issue through to its publication. ■

¹ Former Editor, *Philippine Journal of Social Sciences and Humanities*
University of the Philippines-Visayas

² Editor-in-Chief, *Philippine Law Journal*

College of Law, University of the Philippines-Diliman, Quezon City

³ Manual of Operations - Journal for Law Advocacy

Editor's Note

Clyde Ben A. Gacayan

Executive Board of Editors to the WVSU Journal for Law Advocacy

WVSU College of Law is borne out of passion to offer accessible and quality legal education in Western Visayas. As the only state university to offer a law program in the Visayas region, the collective vision of its faculty and students to be of public service keeps the institution running despite its humble beginnings.

The Journal for Law Advocacy is borne out of the same passion and vision. As its founding Executive Editor, allow me to introduce the journal to the reading public on its inaugural release. JLA is a student-run publication devoted to the development of legal scholarship for and from the Visayan Region and Southern Philippines. We at the Editorial Board envision the journal for the next years to be nationally acclaimed and publicly funded able to release journal issues at least once a year which contains scholarly articles, commentaries and analyses about law and jurisprudence.

To achieve this, we strictly adhere to a double blind peer review process as our editorial policy. Simply put, articles and manuscripts contributed to us by students and legal professionals undergo a review process from at least two external reviewer that are legal professionals and experts themselves. The submissions we receive are anonymized before being reviewed by our invited reviewers who remain anonymous as well to the contributing author. This way, we receive feedback on each work we receive and direct our contributing authors to revise and review their work based on their peer's comment. Our student contributed essays which we decided to publish in our Volume II underwent editorial review conducted by members of the student editorial board.

We are proud to say that from among different journals and publications law schools publish elsewhere in the Philippines, the Journal for Law Advocacy is one of the few who strictly implements the double blind peer review process as an editorial policy to be at par with other publication standards from other disciplines such as Medicine, the hard sciences, social sciences, and humanities in leading universities. In the next years and decades to come, we envision that this editorial policy be upheld so that the journal is not only granted an ISBN Catalogue number but becomes an Indexed Journal to mean of higher scientific quality and becomes part of a database of journals by reputable agencies after passing some parameters, rules, and regulations. An indexed journal means larger visibility and wider readership.

In August of 2019, an Editorial Exam was conducted under the auspices of Judge Enrique Trespeces. The pioneer students at the college were asked to submit written outputs after which 12 students were shortlisted for another round of writing submissions. From this number, 7 student editors were selected to be part of the first Editorial Board of the Journal namely: After which, the Editorial Board conducted a write shop to level off its editorial policies with UP Diliman College of Law's Philippine Law Journal alongside technical guidance of former Editor of UP Visayas' Journal of Social Sciences and Humanities (Danyag).

The Journal for Law Advocacy published its Call for Papers by September 2021 for its inaugural issue carrying the theme on electoral law. The Editorial Board decided that it was fitting to receive paper contributions that tackle the interplay between law and electoral politics as the country was gearing up for the 2022 national elections. A total of 12 (twelve) submissions both from law students and law professionals were received by the board. In compliance with the journal's editorial policy on double peer blind review, 7 of these papers underwent revisions and editing before being considered for publication.

The six carefully selected manuscripts provide important legal analysis of the systemic electoral issues that limit, if not hostage, the conduct of free and fair elections in the Philippines. The recently concluded 2022 National Elections was a turning point for the return of the Marcos family at the center of political life, once ousted through a peaceful people power against the dictator Marcos Sr. Moreover, the election period bore witness to many legal questions that have profound implications in our electoral systems - the Marcos Jr. disqualification cases, a plethora of substitution of candidates at the national level as political turncoatism has increasingly becoming rampant, and the unprecedented volunteerism of political supporters of certain political candidates that challenged the paradigm of election campaign spending and the proprietary issues surrounding the posting of campaign paraphernalia - all within the context of a global pandemic.

The collection of papers in this inaugural issue reflects these context and important legal issues that the country has faced in our recent history. The first chapter entitled **"Back to the Future's Part: An overview of the recently-concluded 2022 National Elections"** provides a reader both the historical and political context that has shaped election results. Co-authored by the seven student editors of the Journal, a recollection of the most important periods of the election season are revisited to provide context to the most pressing legal questions that surrounded the polls. This includes the pre-campaign period where the rules on substitution of candidates have seemingly worked in favor of the Marcos-Duterte tandem on the early part of the election season. The campaign period which is regulated by RA 9006 or the Fair Elections Act faced legal challenges as to campaign spending, the use of different media platforms such as social media and 'Operation Baklas'^[1] of the COMELEC to which the Supreme Court issued a temporary restraining order as early as March 8, 2022.

The May 9th polls despite having a high voter turnout of 82.6% was characterized by international observers as not meeting global standards for a free and fair election as reports of election-related human rights violations surfaced. As early as the evening of election day, the landslide win of Marcos Jr and Duterte tandem became apparent yet unconvincing to many. What happened thereafter was unprecedented in Philippines' electoral history. There were no pre proclamation nor election contests filed specifically against Marcos Jr. and his inauguration as the 17th President of the Republic of the Philippines went smoothly overshadowing his family's legal theatrics to escape liability from the 21 years dictatorial rule of his father, Ferdinand Marcos, Sr.

The introductory chapter takes note of the untimely resolution of the disqualification cases filed against Marcos Jr which was released a day after the May 9th 2022 elections. Thereafter, the Supreme Court En Banc on its session last June 28, 2022, also dismissed the disqualification case against Marcos Jr. and affirmed the decision of the Commission on Elections En Banc. Had the disqualification case prospered, there are varying consequences depending on the reason of the disqualification. In the case of *Maquiling v. COMELEC*, 2013, the votes cast in favor of the ineligible candidate are not considered at all; the victory is voided and the candidate having the next highest vote who does not possess any of the disqualifications shall be the winner of an election. In the case of *Ejercito v. COMELEC*, 2014, when a commission of an election offense is involved, the elected official is disqualified from holding an office. The student editors of this volume conclude with the prospects of rule of law under the Marcos Jr. Presidency.

The return of the Marcoses at the center of political power did not happen overnight. The 2022 national elections did not only witness the impact of disinformation networks over the voting population but as well as the deep entrenchment of political dynasties. Clyde Gacayan, the Executive Editor of the Journal and a student of West Visayas State University, expands the discussion on political dynasties and examine the gains and losses in regulating political dynasties in the Philippines on the third Chapter of the journal. Entitled **“No Time Runs Against Families?: Gains and losses in regulating political dynasties in the Philippines”**, Gacayan reviews all the previous bills that has attempted to define political dynasties passed from 13th to the 18th Congress of the Philippines and notes that from at least 45 bills passed in the last 17 years, not one of those bills have passed third reading and majority of which have been in pending status in appropriate committees where they were assigned to. Gacayan argues that while there is sustained interest in the part of the Congress and Senate to fulfill its constitutional mandate to define and prohibit political dynasties, there is strong proof as well that both houses are seemingly adamant and tentative in its legislative position to pass the bill into law. Gacayan illustrates that the election of Marcos Jr.-Duterte tandem in the recent polls is an epitome of the continuing dominance of political dynasties – where dynasties are not only deeply entrenched in the system but also are capable of self-perpetuating. He echoes what other political scientist claim that political dynasties themselves are not only simply political or electoral concerns but one that has undermined the quality of democracy and is linked to deeper poverty and underdevelopment. Gacayan concludes that while it seems that no time runs against families in the last 35 years, there seems to be a

silver lining if one is able to look at the progress made in progressive legislation, in judicial activism and by further educating the electorate.

The entrenchment of political dynasties in the bureaucracy is not only observed at the national level but as well as in the lower congress and local government units. Justin Francis Bionat, a student of the University of San Agustin's College of Law, deep dive on the party-list system which has been increasingly used by political dynasties as "back door" to secure congressional seat after exhausting their term limits. In the fourth chapter entitled **"The Philippine Party-list System and Representation of Marginalized Populations"**, Bionat revisits the legislative intent behind the party list system as illustrated in *Ang Bagong Bayan vs COMELEC* (2003) and *BANAT vs COMELEC* (2009) and note that its purpose is for sectoral representation meant to promote social justice and to represent the marginalized and underprivileged sector. Bionat proceeds with a careful examination of party-lists who occult congressional seats in the 18th Congress in the who have principally sponsored bills in the area of education, women and gender, and senior citizens. Bionat argues for the necessity of revamping the party-list system to accommodate marginalized groups. A key strategy he suggests is to improve the process of accreditation of party list by the COMELEC. He accurately observes in the recently concluded 2022 national elections some interesting party lists groups declared eligible to run such as WOW Pilipinas Party list, MOCHA Party list, UMA Ilonggo Party list, Barkadahan Partylist, and SMILE Party list. From this, he emphasizes the need to improve the party list system which is part and parcel of our flourishing democracy of, for, and by the people.

The fifth chapter of this inaugural issue is co-authored by Prosecutor Victoria Heler and Theda Grace Gumban, faculty and student respectively of WVSU College of Law. Entitled **"Towards a Clean and Honest Election: Jurisprudence on Election-related offenses"**, the authors revisit important provisions of the Omnibus Election Code of the Philippines and provide a discussion on frequently violations and related jurisprudence. This includes vote-buying and vote-selling, conspiracy to bribe voters, wagering upon result of election, and coercion of subordinates among others. The authors also provide a thematic discussion on offense during voter registration, campaign, voting day and canvassing. Heler and Gumban also provide a run down of special laws that govern the conduct of elections in the country and argue that while these laws are design to ensure peaceful and effective method of selecting political leaders, our electoral systems have to face challenges arising from COVID-19 and disinformation networks in social media.

While election – related offenses are specific and are punishable by law, the exploitation of some politicians on the rues on candidate substitution is the subject of investigation of Philipp Centeni Ruel, a student of WVSU College of Law. The sixth chapter entitled **"Exploiting Electoral Exchanges: The Rules on Substitution of Candidates in the Philippine Electoral System"** examines the recent trend of politicians to use and abuse the legal option laid down by law allowing candidates to give up his/her candidacy to another candidates which is a mechanism for emergency circumstances where a candidate is incapacitated or for some other serious reason is

compelled to withdraw his/her candidacy. Ruel however observes that there are numerous instances where substitution has been put in the national spotlight which he calls as an electoral fiasco. Citing the 2016 substitution of then Presidential Candidate and now former President Rodrigo Duterte replacing Martin Diño; and Sarah Duterte as a substitute Vice-Presidential candidate replacing Lyle Fernando Uy, the author notes that the substitution card has been mainly a game plan not only of national politicians but has been replicated in congressional and party-list seats. Ruel cites the lax approach of COMELEC towards the matter at hand as one of the reasons that explains why the substitution mechanism has been abused and utilized by politicians. The author argues that the exploitation of the rules on substitution empower, and not limit, political dynasties. He calls the apparent abuse of substitution mechanisms not only as a political gimmick, but warns that it has become an electoral norm which coincides with flawed system of Philippine elections. Ruel in his analysis provide that the apparent abuse of the rules on substitution is a sham and mockery of the election process, and if taken for granted, would pave way for the erosion of spirit of democratic selection processes.

Finally, the inaugural issue concludes with a commentary on Clinical Legal Education Program and its relation to ethical-driven lawyering – an important pedagogical improvement in law school curricula that can help bridge the gap between the study of law and practice of law and help address some systematic electoral issues earlier identified. As a form of prelude to the next volume of the Journal for Law Advocacy, Judge Enrique Trespeces of the WVSU College of Law in his article entitled **“Clinical Legal Education Program and Revised Model Law Curriculum: Championing Law Advocacy and Ethical-driven Lawyering”** notes that Revised Model Law Curriculum launched in the last quarter of 2021 now zeroes in on the pressing need for lawyers not only to be practice-ready but as well as ethically-driven. He cites his own survey that from 2017 to 2021, 430 bar discipline cases docketed at the Supreme Court which reflects the “dark side” of lawyering spread throughout the legal profession. The author argues that the integration of a clinical component of legal and judicial ethics in procedural subjects like criminal procedure, civil procedure in dispute resolution, and evidence rules are – significant enhancement of achieving ethical-driven lawyering. To illustrate, the editors take note that WVSU College of Law recently integrated its CLEP learning activities to the teaching of the course Administrative Law, Law on Public Officers and Election Law. Coinciding with the recently concluded 2022 National Elections, this timely integration of CLEP activities to relevant subjects such as Election Law. Without a doubt, strategies like this are in accord with CLEP’s goal to inculcate in students values of ethical lawyering and public service. Judge Trespeces in his conclusion note that these initiatives require a concerted efforts of all stakeholders to set the CLEP in motion to come to fruition.

The student editors as well as contributing authors of this inaugural issue hope that readers arrive at a more complete picture of the interplay of law, jurisprudence, and electoral reform in the Philippines. The different chapters of this volume which we earnestly put together provide at the very least a diagnosis of each of key areas of reform in the Philippine Electoral system.

From the post-2022 elections papers we have gathered, the authors seem to be in agreement that legal reforms need to be strengthened to harness the power of electorate and improve the quality of democracy that we have. Gacayan proposed the idea of looking at judicial activism in the absence of an anti-political dynasty law bug reminds that voter's education and an informed electorate remains to be the best option for now. Bionat hints that revamping the party list system also requires not only accommodating marginalized groups but as well as building their capacity for representation. Heler and Gumban remind us that disinformation has heavily affected electoral processes and voter's education and verification of information remain to be the best antidote. Ruel furthers that abuse of the rules on substitution must not be taken lightly as it erodes democratic spirit. Lastly, Trespeces emphasizes that a pedagogical shift as illustrated by CLEP can further actualize ethical lawyering and strengthen the call for public service.

If any, the goal of this volume is to remind the reader that he or she or they can respond well to these challenges mentioned— progressive legislation, voter's education, capacity building for representing marginalized sector, combatting disinformation, being critical of substitution gimmickries, and valuing ethics – as an ordinary citizen even without an advanced understanding of law.

While we expect that the initial readers of this journal are students and practitioners of the legal practice, we remain committed to the name and reputation that we try to establish – and that is to be a Journal for Law Advocacy. In keeping the tradition of judicial activism of Fr. Joaquin Bernas alive, one can conclude that the study of law is an advocacy first and foremost than a profession. This advocacy – the project of educating the citizenry of their rights and power to participate in our political systems (and rightfully in this inaugural issue – our electoral system) is something that legal academic institutions through its faculty, students, and the platforms they use can fulfill.

This is the space we take as an academic journal. We aim to remind the public of our advocacy that they can reform, not only participate, in the legal and political system that we have in the Philippines. Moreover, we continually challenge students and practitioners of law not only to keep abreast with recent and pressing legal issues, but to read and write for the public in mind. ■

¹ See Pulta, Benjamin. (2022, 8 March) SC Halts COMELEC's "Oplan Baklas". Philippine News Agency. Retrieved from <https://www.pna.gov.ph/articles/1169326> . Pulta reports that the SC TRO stemmed from a suit filed on March 1 sought a stop to Sections 21 (o), 24, and 26 of Comelec Resolution No. 10730, which states the order to dismantle, remove, destroy, deface, and/or confiscate all election materials that are privately owned and privately funded solely by volunteers and private citizens and posted and/or installed within their private properties. Petitioners argue that their tarpaulins, posters, murals, and other election materials on their properties were forcefully dismantled, removed, destroyed, or defaced, and/or confiscated by Comelec.



**"People are trapped in history and
history is trapped in them."**

- JAMES BALDWIN



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BACK TO THE FUTURE'S PAST:

An Overview of the Recently Concluded 2022 National Elections

From the Editors' Desk¹

Introduction

With the pandemic placing additional stress on both private and government institutions, the Philippines is at a historic crossroads with the need to elect leaders who can propel the nation toward economic recovery and democratic awakening. Last May 9, 2022, approximately 67.5 million Filipinos went to the polling precincts to decide who the next leaders should be. There were thousands of positions up for election all over the country, ranging from the Presidency, Vice Presidency, seats in the Senate, and up to 18,000 local positions, including provincial governors and city mayors..

As laid out by the 1987 Constitution, those aspiring to be President and Vice President must be natural-born citizens of the Philippines, registered voters, able to read and write, at least forty (40) years of age on the day of the election, and residents of the Philippines for at least ten (10) years immediately preceding such election. Aspiring senators must be natural-born citizens of the Philippines, registered voters, able to read and write, at least thirty-five (35) years of age on the day of the election, and residents of the Philippines for not less than two years before the election day.

Pre-Campaign Period

The 2022 Philippine National Elections officially opened with the filing of certificates of candidacy (COCs) from October 1 to October 8, 2022, as set by the Commission on Elections (COMELEC). Seventy-seven (77) national positions were on the line in the latest polls, including the positions of President, Vice President, twelve (12) senators, and sixty-three (63) party-list representatives. The filing of the COCs was held in the Sofitel Philippine Plaza Manila in Pasay City to provide enough space in compliance with existing health protocols due to COVID-19. Data from the COMELEC showed a total of ninety-seven (97) COCs for President, twenty-nine (29)

¹ Co-authored advocacy report of student editors:

Clyde Ben A. Gacayan
Edson Chase H. Yap
Kirby V. Aguaras
Rene M. Aviles, Jr.
Theda Grace S. Gumban
Mike Gabriel G. Guillem
Vanessa G. Silla

COCs for Vice President, 176 COCs for senatorial positions, and 270 COCs for the House of Representatives².

From a legal standpoint, the filing of the COCs is the operative act that enables a person to acquire the official status of being a candidate for an elective position. Any person who attempts to run for an elective office but does not file a certificate of candidacy is not a candidate at all. No amount of votes would catapult him into office.³

For the COCs, COMELEC Resolution No. 10717⁴ has maintained the same rules put in place for the 2016 local and national elections. Some modifications were introduced to ensure health protocols. The COC must be filed in person by the aspirant or through an authorized representative and those submitted by mail, email, telegram, or facsimile will not be accepted. A negative RT-PCR (Reverse Transcription Polymerase Chain Reaction) test or antigen test must be taken within the last 24 hours prior to the filing of COC or Certificate of Nomination and Acceptance (CONA) required for aspirants for the positions of President, Vice-President, Senators and their authorized representatives. Though this year's process of filing the COC underwent significant changes due to COVID-19, there were many unforeseen announcements and surprising turn of events.

Former President Rodrigo Duterte failed to file his COC for Vice President, despite earlier announcing his acceptance of PDP- Laban's nomination for the position. This came after Senator Christopher "Bong" Go filed his COC for President. When Ferdinand "Bongbong" Marcos, Jr. filed his COC, the mobile phones of numerous individuals in the vicinity of the Sofitel Philippine Plaza Manila simultaneously received emergency alerts through text messages. However, instead of an alert for a natural disaster, the emergency alert message contained Marcos Jr.'s name.

Unexpectedly, Senator Ronald "Bato" dela Rosa also filed his COC for President. Meanwhile, Senators Emmanuel "Manny" Pacquiao, Panfilo "Ping" Lacson and Francis "Kiko" Pangilinan decided to seek higher office when they filed their COCs for President and Vice President, respectively. On top of these, former Vice President Leni Robredo pulled off a surprise of her own when she formally announced

² Vernice Tantuco. "Total number of COC filers for national positions". October 8, 2021, <https://www.rappler.com/nation/elections/updates-filing-certificates-candidacy-2022-polls-national-positions-october-1-8-2021/>

³ Hector S. De Leon & Hector M. De Leon, Jr., *The Law on Public Officers and Election Law* (Philippines: Rex Book Store, 2019), p. 571.

⁴ "COMELEC Resolution 10717: Rules and Regulations Governing: 1) Political Conventions; 2) Submission of Nominees... and 3) Filing of Certificate of Candidacy... in Connection with the May 9, 2022 National and Local Elections (August 18, 2021) https://COMELEC.gov.ph/?r=2022NLE%2FResolutions%2Fres10717&fbclid=IwAR0r9YJKbS85W-IZn9_b21goi1ES1ppFkb77mK1qRHHCLKdf8HnGYm9EtzY

her candidacy for president after several months of keeping her political aspirations under wraps. Even more surprising is the fact that she decided not to run under the Liberal Party (LP) but as an independent candidate.

Perhaps as a means to initially dispel speculations that she was to “succeed” her father, Sara Duterte-Carpio submitted her COC for reelection as Mayor of Davao City. Later on, she withdrew her candidacy and decided to run for Vice President on November 13, 2021. She ran under the Lakas-CMD (Lakas-Christian Muslim Democrats) banner as the replacement candidate for Lyle Uy. Not long after officially announcing her candidacy, she announced an alliance with Bongbong Marcos, Jr., and that the latter has his full support as running mate for the 2022 elections.

Several political analysts noted early on that the Marcos-Duterte tandem, which was later officially labeled as the “Uniteam” during the campaign period, was a formidable force to reckon with. This could conceivably be owing to the popular perception that both candidates were running as “allies” of the outgoing Duterte administration, which continued to enjoy a high satisfaction rating among the populace even during the last few months of the former President’s term of office, in addition to the fact that the Marcoses command huge popularity in the Ilocos region while the Dutertes hold a tight stronghold in Mindanao.

Furthermore, Sara Duterte’s strategy to make good use of the rules on substitution of candidates seemed to have worked in her favor. It must be noted that the Omnibus Election Code (OEC) allows a person belonging to, and certified by, the same political party to file a COC to replace a candidate who died, withdrew, or was disqualified⁵. Notably, there is nothing in the Code which requires as a condition precedent that the substitute candidate must be a member of the party concerned for a certain period of time before he or she can be nominated as such⁶. Accordingly, Sara Duterte was sworn in as a member of Lakas-CMD just two (2) days before the deadline for substitutions set by COMELEC and was allowed to immediately file her COC as the party’s substitute candidate for Vice President. Her maneuvers effectively shielded her from early political mudslinging, as is typical in almost all democratic elections. It also kept her political opponents in the dark, wondering about her next move, at least up until the last minute.

In contrast, Bongbong Marcos, Jr. was immediately made a respondent in several petitions for disqualification filed with the COMELEC, the earliest of which was dated November 20, 2021, after having filed his COC for President on October 6, 2021. One of the grounds relied upon by the petitioners was that Marcos Jr. made false representations in his COC, claiming that he has not been found liable for an offense, which carries with it the accessory penalty of perpetual disqualification to hold public office. These petitions were later dismissed by the COMELEC due to lack of merit⁷.

⁵ Ibid., 578.

⁶ *Sinaca v. Mula*, G.R. No. 135691, 315 S.C.R.A. 266 (September 27, 1999). (Phil.)

⁷ *Ilgan, et. al. v. Marcos, Jr.*, SPA No. 21-212 (DC), G. R. No. 260426 (February 10, 2022). (Phil.)

While incumbent elective officials can run for elective positions without losing their seats, appointed government officials who file their COCs are deemed to have resigned from their posts. The Supreme Court added that

“elective officials occupy their office by virtue of the mandate of the electorate. They are elected to an office for a definite term and may be removed therefrom only upon stringent conditions. On the other hand, appointive officials hold their office by virtue of their designation thereto by an appointing authority. Some appointive officials hold their office in a permanent capacity and are entitled to security of tenure while others serve at the pleasure of the appointing authority”⁸.

Thus, former Chief Presidential Legal Counsel Salvador Panelo, former Presidential Spokesman Harry Roque, and former Department of Public Works and Highways (DPWH) Secretary Mark Villar effectively resigned from their respective posts when they filed their COCs for Senator.

The mentioned individuals were certainly able to muster enough political capital to avoid even the slightest suspicion of being declared as nuisance candidates. However, this is not the case for many other hopefuls for the 2022 national elections, as COMELEC moved to declare three-fourths of aspiring candidates for the presidency and other national posts in 2022 as nuisance. Section 69 of the Omnibus Election Code allows the COMELEC to *motu proprio* refuse to give due course to or cancel the COCs of nuisance candidates or persons who file their COCs to put the election process in mockery or disrepute, or to cause confusion among voters by the similarity of the names of registered candidates, or by other circumstances or acts which has clearly demonstrate that the candidate has no bona fide intention to run for the office for which the COC was filed, and thus prevent a faithful determination of the true will of the electorate⁹.

Norman Marquez, a senatorial aspirant, was declared a nuisance candidate by the COMELEC on the ground that he was “virtually unknown to the entire country” and had “absent clear proof of financial capability.”¹⁰ He, however, managed to obtain a temporary restraining order (TRO) from the Supreme Court pending the Court’s decision on the petition for review on certiorari he filed questioning the COMELEC’s order cancelling his COC. The issuance of the TRO appeared consistent with the Court’s 2019 ruling in *Marquez vs. COMELEC*, wherein it was established that:

⁸ Farinas, et. al. v. Executive Secretary, G.R. No. 147387 (December 10, 2003) (Phil.)

⁹ Omnibus Election Code, Section 69. B.P. Blg.881, as amended (Phil.)

¹⁰ Dwight de Leon et al., “Senatorial Bet Declared Nuisance by COMELEC Gets SC Relief,” RAPPLER, January 20, 2022,

<https://www.rappler.com/nation/elections/norman-marquez-secures-tro-supreme-court-after-declared-nuisance-comelec/>.

“it was only in view of the dirty practice by unscrupulous politicians of fielding nuisance candidates with the same surnames as leading contenders that the Court proceeded to consider the personal circumstances, including the financial capability, of the nuisance candidate... In contrast, Marquez here was disqualified not on the basis of the similarity of his name with another senatorial candidate, a ground explicitly provided for in Section 69 of the OEC, but for the sole reason that he failed to show proof of his financial capacity to wage a nationwide campaign. This, however, has already been proscribed...”¹¹

Thus, it is evident that the lack of financial resources cannot be regarded as the sole basis of COMELEC in declaring a particular candidate a nuisance. In fact, the Supreme Court stated that property qualifications were inconsistent with the essence and nature of the republican system ordained in our Constitution and the principles of social justice underlying the same¹².

Campaign Period

The campaign period for Presidential, Vice Presidential, Senatorial, and Party-list candidates commenced last February 8, 2022, and ended last May 7, 2022; except for April 14 to April 15 (Maundy Thursday and Good Friday), as provided under COMELEC Resolution No. 10695¹³. At the onset, candidates flaunted their colorful posters and toured all over the country to discuss their platforms with the public. Their advertisements were shown on different TV networks and were also heard on different radio stations all over the country.

While campaigning through different media platforms, Republic Act No. 9006, or the *Fair Elections Act*¹⁴, regulates the use of these different media platforms. Under Section 6, print advertisements shall not exceed one-fourth (1/4) page; in broadsheets, and one-half (1/2) page in tabloids appearing thrice a week per newspaper, magazine, or other publications, during the campaign period¹⁵. Broadcast media is also regulated in a way that it shall not exceed one hundred twenty (120) minutes of television advertisement and one hundred eighty (180) minutes of radio advertisement whether by purchase or donation¹⁶. Moreover, the spending of

¹¹ Marquez v. COMELEC, G.R. No. 244274 (September 3, 2019). (Phil).

¹² Maquera vs. Borra, G.R. No. L-24761 (September 7, 1965). (Phil)

¹³“Official COMELEC Website: Commission on Elections.” Accessed July 23, 2022.

https://COMELEC.gov.ph/php-tpls-attachments/2022NLE/Resolutions/com_res_10695.pdf. The resolution contains significant dates in connection to the May 9, 2022 National Elections.

¹⁴ Republic Act No. 9006 (n.d.). Also known as Fair Election Act, the law was promulgated by the Eleventh Congress of the Republic of the Philippines.

¹⁵ Ibid

¹⁶ Ibid

candidates is regulated by Republic Act 7166¹⁷. Under this law, candidates are only allowed to spend as follows: Ten Pesos (P10.00) for the President and Vice-President; and for other candidates, three pesos (P3.00) for every voter currently registered in the constituency where he filed his certificate of candidacy; provided, that, a candidate without any political party and support from any political party may be allowed to spend Five Pesos (P5.00) for every such voter¹⁸.

A thought provoking question would be the corresponding penalties for violations of the aforementioned provisions. Another concern is the auditing and verification of campaign-related expenses. From the recent polls, Ferdinand “Bong-Bong” Marcos, Jr., reported that he spent P623,230,176.68¹⁹. His closest rival, former Vice President Ma. Leonor “Leni” Robredo, declared that she spent a total of P388,347,278.99²⁰. Marcos further claimed that he has not spent a single centavo during his campaign and that all of his funds were donated. Meanwhile, Leni Robredo claimed that she spent P19,778.99 of her personal money to fund her campaign and the rest were donations. Marcos almost spent twice as much as her closest rival. His expenditures and machinery were key factors in his landslide victory. Given the volume of his campaign posters and TV advertisements, it is not impossible that the number is demure. It is interesting to note that he won the elections with a very huge margin.

Election Day

Section 1, Article V of the 1987 Constitution²¹ dictates that:

Suffrage may be exercised by all citizens of the Philippines not otherwise disqualified by law, who are at least eighteen years of age, and who shall have resided in the Philippines for at least one year, and in the place wherein they propose to vote, for at least six months immediately preceding the election. No literacy, property, or other substantive requirements shall be imposed on the exercise of suffrage.

The voter turnout in the 2022 elections was overwhelmingly high according to the data provided by COMELEC. A tally of 172 out of 173 certificates of canvass indicated that 55.5 million Filipinos exercised their right to suffrage or around 82.6% of the 67.4 million registered voters. The 55.5 million data of the COMELEC sitting as

¹⁷ Republic Act No. 7166 (1991). The complete title of the statute reads: An act providing for synchronized national and local elections and for electoral reforms, authorizing appropriations therefore, and for other purposes.

¹⁸ Ibid.

¹⁹ Dwight de Leon, “Tracker: Candidates Who Spent the Most in 2022, Based on Their SOCEs,” *Rappler*, (July 22, 2022), <https://www.rappler.com/newsbreak/tracker-candidates-spent-most-statement-contributions-expenditures-2022/>

²⁰ Ibid.

²¹ Const., (1987), Art. V, Section 1 (Phil).

the National Board of Canvassers (NBOC), accounts for the 83% of the 66.8 million which is the total number of eligible voters in NBOC's official count

The result showed a landslide victory, in favor of Ferdinand Marcos Jr. (BBM), son of the late dictator and military strongman, Ferdinand E. Marcos. BBM received thirty-one (31) million votes, defeating nine other presidential aspirants. His closest rival, Vice President Leni Robredo, secured fourteen (14) million votes.

According to International Observers Mission (IOM) report²², the Philippine polls did not meet global "free and fair" standards. Said report states that Filipino voters were deprived of access to reliable information, voting places "without intimidation" and a "credible" vote counting system. Many voters were unable to cast their ballots with the vote counting machine (VCM) allegedly due to automated election glitches.

The Philippine Election 2022 International Observer Mission was established on the recommendation of the INVESTIGATE PH Commissioners in their 2nd and 3rd Report of the Independent International Investigation into Human Rights Violations in the Philippines. This was established in response to the October 7, 2020, decision of the UN (United Nations) Human Rights Council 45th Session (Resolution No. 45/33)²³. For its part, COMELEC denied the findings, contending that the election was relatively peaceful.

Verified media reports paint a different picture however - there were several election-related human rights violations committed in the 2022 polls. Culture of impunity prevails in the country and numerous extrajudicial killings happened at the height of the election. Moreover, there are those whose lives were endangered by armed assailants. These instances are stated in the succeeding paragraphs.

Two Anakpawis members assassinated, January 15, Sorsogon. On January 15, 2022, at about 7:45 am Rosemarie Galias, 68, and Silvestre Fortades Jr, 70²⁴ were killed by four motorcycle-riding gunmen in Brgy San Vicente, Barcelona, Sorsogon. Both were members of Anakpawis, a progressive party list which represents the interests of peasants and workers in Congress as part of the Makabayan Bloc. The murder of the elderly political activist couple was the beginning of state murders during the election campaign period. They were in their tricycle²⁵, which was parked along the road, when

²²International Coalition for Human Rights in the Philippines, "Interim Report of the Philippine Elections 2022," (July 31, 2022)

https://ichrp.net/wp-content/uploads/2022/05/2022-05-18_IOM_InterimReport.pdf.

²³United Nations Human Rights Council, E subscription to United Nations documents, accessed July 31, 2022, <https://undocs.org/en/A/HRC/RES/45/33>.

²⁴Apo E. Hapa, "Gubat Couple Killed inside Their Residence," *The Philippine Examiner*, (January 31, 2022), <https://philexaminer.com/?p=22913>.

²⁵Mark Ernest Famantigan, "In Sorsogon, Unidentified Men Shoot 2 pro-Farmer Party-List Members Dead," *Yahoo! News*, accessed July 31, 2022, <https://ph.news.yahoo.com/2-pro-farmer-party-list-members-shot-dead-in-sorsogon-025924984.html>.

two pairs of motorcycle-riding men fired at Fortades. When Galias saw that Fortades was shot, she took their four-year-old granddaughter to run for safety. The men, however, also shot Galias. Fortades had received a warning the night before.

Five massacred by soldiers, Davao de Oro. Around 9:30 p.m. on February 23, two weeks into the national election campaign, five people including two volunteer teachers of the Save Our Schools Network, were killed at Brgy. Andap, New Bataan, Davao de Oro, Mindanao, by elements of the 101st Infantry Brigade, Philippine Army²⁶. These five victims were volunteer teachers Chad Booc and Gelejurain Ngujo II, community health worker Elgyn Balonga and two community volunteer drivers, Tirso Añar and Robert Aragon. In the context of over five years of repression of the Lumad Schools set up by the indigenous peoples of Mindanao and their allies with churches and academe, this massacre was aimed at further terrorizing the IPs (Indigenous Peoples) in the election period. On February 25, the 10th Infantry Division posted a press release on their official Facebook page²⁷ falsely claiming that the five were killed in an alleged encounter and accusing them as New People's Army fighters. However, information from locals said no encounter took place in the area²⁸.

National Democratic Front Philippines - Peace Consultant Ezequiel Daguman abducted and killed. According to the National Democratic Front of the Philippines (NDFP)-Southern Mindanao²⁹, Peace Consultant Ezequiel "Ka Rey" Cortes Daguman, age 50, was abducted and extrajudicially killed by the Armed Forces of the Philippines (AFP) – not killed in an encounter between the New People's Army (NPA) and the AFP as claimed by the military. Daguman was allegedly unarmed and had been abducted along with his driver en route to visit peasant communities in Davao del Norte on March 7, 2022³⁰. Peace talks between the government and the NDFP are a significant election issue³¹.

²⁶ Hernel Tocmo, "5 Alleged NPA Rebels Killed in Davao De Oro Clash: Military," *ABS-CBN News*, (February 25, 2022).

<https://news.abs-cbn.com/news/02/25/22/5-alleged-npa-rebels-killed-in-davao-de-oro-clash-military>.

²⁷ Che Palicte, "5 Rebels Killed in Davao De Oro Clash," *Philippine News Agency* (February 25, 2022), <https://www.pna.gov.ph/articles/1168568>.

²⁸ Anne Marxze Umil, "5 Killed in Davao De Oro Are Civilians, Not NPA, Group Says," *Bulatlat*, (February 27, 2022), <https://www.bulatlat.com/2022/02/27/5-killed-in-davao-de-oro-are-civilians-not-npa-group-says/>.

²⁹ Karina Mamtangol, "Justice for Ezequiel Daguman! Uphold JASIG!," *PRWC | Philippine Revolution Web Central*, (April 6, 2022), <https://cpp.ph/statements/justice-for-ezequiel-daguman-uphold-jasig/>.

³⁰ Davao Today, "Missing Peace Consultant Was Abducted and Killed in Davao Del Norte, Spokesperson Says," *Bulatlat*, (April 13, 2022), <https://www.bulatlat.com/2022/04/13/missing-peace-consultant-was-abducted-and-killed-in-davao-del-norte-spokesperson-says/>.

³¹ Jeannette I. Andrade, "Nica Chief: It's Insane to Talk Peace Again with Reds," *INQUIRER.net*, (January 25, 2022), <https://newsinfo.inquirer.net/1544541/nica-chief-its-insane-to-talk-peace-again-with-reds>.

Bayan Muna party-list coordinator Larry Villegas shot at his home. On 13 March 2022 at around 6:00 am, 64-year-old Bayan Muna Party-list Coordinator Larry Villegas was shot while cleaning his tricycle at his home in General Santos City, Mindanao. Villegas was hit twice in the leg after dodging what appeared to be shots to the head, and was taken to a local hospital for treatment³². The attack comes after Villegas and his local chapter of the progressive transport group TIRES-PISTON were red-tagged³³ by the National Taskforce to End Local Communist Armed Conflict (NTF- ELCAC), and after he was threatened by uniformed soldiers who told him to stop his “anti-government activities”. Villegas had been leading preparations for a Leni-Kiko rally in General Santos, campaigning for MAKABAYAN senatorial candidates Atty. Neri Colmenares and labor leader Elmer Labog, and was a staunch critique of the government due to oil price hikes³⁴.

Presidentiable Leody De Guzman and indigenous leaders shot. On 19 April 2022 at Sitio Kiantig, Barangay San Jose, Quezon, Bukidnon, five farmers were shot and injured during a gathering to oppose the seizure of their ancestral lands by the Kiantig Development Corporation, which has ties to re-electionist Mayor Pablo M. Lorenzo III³⁵. Presidentiable Leody De Guzman and his senatorial candidates had gone there to amplify their case against land grabbing. De Guzman was standing right beside Nanie Abela – a farmer organizer and advocate for indigenous people – who was shot. Four others were injured, including Datu Didilusan Arroyo, a leader of the tribe³⁶. The shots were fired by a group of about fifty men directly at the protesters without warning. On 21 April, the police confiscated eight firearms from Kiantig Development Corporation security personnel, who were unlicensed, out of uniform, and with no exemption from the gun ban for the 2022 election³⁷.

³² Nestor Corrales and Allen Estabillo, “Transport Group Leader Survives Slay Try,” *INQUIRER.net*, (March 14, 2022), <https://newsinfo.inquirer.net/1567792/piston-leader-survives-slay-try>.

³³ Kath M. Cortez, “Bayan Muna Coordinator in Gensan Wounded in Gun Assault,” *Davao Today*, (March 13, 2022), http://davaotoday.com/main/human-rights/bayan-muna-coordinator-in-gensan-wounded-in-gun-assault/?fbclid=IwAR3UG-MA7UN5sgMZn_rGeECItW4_ct0BaPHifNXhD9nV9u3QjZWwn-XqhQU.

³⁴ Philippine Star Philstar.com, “CHR to Probe into Shooting of Bayan Muna Coordinator Larry Villegas,” *Philstar.com*, (March 14, 2022) accessed July 31, 2022, <http://www.philstar.com/headlines/2022/03/14/2167237/chr-probe-shooting-bayan-muna-coordinator-larry-villegas/amp/>.

³⁵ Jairo Bolledo, “5 Hurt as Shots Fired during Bukidnon Activity of De Guzman,” *Rappler*, (April 19, 2022) <https://www.rappler.com/nation/elections/gunshots-fired-bukidnon-activity-leody-de-guzman/>.

³⁶ John Victor D. Ordoñez, “Several Injured in Shooting at Bukidnon IP Protest Attended by Presidential Bet Ka Leody,” *BusinessWorld Online*, (April 19, 2022) <https://www.bworldonline.com/the-nation/2022/04/19/443138/several-injured-in-shooting-at-bukidnon-ip-protest-attended-by-presidential-bet-ka-leody/>.

³⁷ Froilan Gallardo, “Cops Seize Guns of Men Believed to Be behind Attack on Ka Leody's Group,” *Rappler* (April 21, 2022), <https://www.rappler.com/nation/cops-seize-guns-men-believed-behind-attack-leody-de-guzman-group/>.

The Marcos Jr. Inauguration and post-election contests

On the evening of election day, Marcos Jr.'s lead over main rival Robredo was clear yet unconvincing to many - triggering prospects of post-election controversies such as massive electoral fraud on top of his pending disqualification case at the COMELEC.

What happened thereafter was unprecedented in the electoral history of the Philippines. There were no pre-proclamation nor election contests filed specifically against Marcos Jr. and his inauguration as the 17th President of the Republic of the Philippines went smoothly overshadowing his family's legal theatrics to escape liability from the 21 years dictatorial rule of his father, Ferdinand Marcos, Sr..

Article XX of the Omnibus Election Code defines pre-proclamation controversies as any question pertaining to or affecting the proceedings of the board of canvassers which may be raised by any candidate or by any registered political party or coalition of political parties before the board or directly with the Commission, or any matter raised under Sections 233, 234, 235 and 236 in relation to the preparation, transmission, receipt, custody and appreciation of the election returns. On the other hand, election contests as provided in Article XXI of the same code are those contests relating to the election, returns and qualifications of all Members of the Batasang Pambansa, elective regional, provincial and city officials.

In this section, we discuss relevant legal issues and disputes that closely resemble to election contests with regard to the proclamation of Marcos Jr. As a case in point, we use the COMELEC *en banc* decision dismissing four disqualification cases filed against Marcos Jr. Additionally, we refer to other election-related controversies that hounded the results of the 2022 national election although no formal pre-proclamation and elections contests were filed before the COMELEC. This section concludes with an overall assessment of the recently concluded national elections tagged as an election heavily influenced by disinformation and possibly initiatives to undermine, worse, revise not only history but our constitutional history that gave birth to the 1987 Philippine Constitution.

The inauguration of the dictator's son - Marcos Jr. as the 17th President of the Republic of the Philippines. It took sixteen days after May 9, 2022 for the bicameral Congress to proclaim Marcos Jr. as the president-elect and Sara Duterte as vice president-elect. With the automation of national and local polls in the Philippines, it has been held practice that the results presented in informal tallies are definitive ahead of the formal process mandated by the constitution. Thus, the term *presumptive president* has enjoyed popularity. It is only after the candidate's inauguration that he or she is officially referred to as the "president-elect"³⁸. Malacañan's official gazette describes the transition phase as needing "logistical requirements of the transfer of power, coupled

³⁸ Official Gazette, "The Transition: GOVPH," *Official Gazette of the Republic of the Philippines*, accessed July 31, 2022, <https://www.officialgazette.gov.ph/featured/the-transition/>.

with the public's high expectations of a new chief executive create tremendous pressures on the incoming administration as far as communications and administrative and ceremonial tasks are concerned”.

Garnering 21,629,783 or 58.77 (Tan 2022) of all votes in the official count of Congress, Marcos Jr. was officially proclaimed president-elect. Marcos topped the official count. After the bicameral proclamation of the presidential results, the period is called the transition from then on where the incoming president is called the president-elect.

The inauguration of the President of the Philippines is both a constitutional and ceremonial event that marks the commencement of a new six-year term of a Philippine president. Legally speaking, Article VII, Sec 3 of the 1987 Constitution provides that

“The President and the Vice-President shall be elected by direct vote of the people for a term of six years which shall begin at noon on the thirtieth day of June next following the day of the election and shall end at noon of the same date, six years thereafter”³⁹.

Marcos, Jr. was inaugurated around noon time of June 30, 2022 at the National Museum of Fine Arts with Supreme Court Chief Justice Alexander Gesmundo administering his oath which read⁴⁰;

“Ako, si Ferdinand Romualdez Marcos Jr., ay taimtim na nanunumpa na tutuparin ko nang buong katapatan at sigasig ang aking mga tungkulin bilang Pangulo ng Pilipinas, pangangalagaan at ipagtatanggol ang kanyang Konstitusyon, ipatutupad ang mga batas nito, magiging makatarungan sa bawat tao, at itatalaga ang aking sarili sa paglilingkod sa Bansa. Kasihan nawa ako ng Diyos.

(I, Ferdinand Romualdez Marcos Jr., do solemnly swear that I will faithfully and conscientiously fulfill my duties as President of the Philippines, preserve and defend its Constitution, execute its laws, do justice to every man, and consecrate myself to the service of the Nation. So help me God).

Tradition dictates that certain inaugural rites and protocol “accompany the physical transfer of power from the outgoing to the incoming president. The symbolisms may be generally little known or understood, but they can be utilized to lend solemnity, a sense of democratic continuity, and a spirit of national consecration to the occasion”⁴¹. This includes departure honors in Malacañang Palace for the

³⁹ Const., (1987) Art. VII Sec.3 (Phil)

⁴⁰ Ellson Quismorio, “Tradition Matters: Gesmundo to Administer Marcos's Oath, Says Rodriguez,” *Manila Bulletin*, (June 3, 2022), <https://mb.com.ph/2022/06/03/tradition-matters-gesmundo-to-administer-marco-s-oath-says-rodriguez/>.

⁴¹ Ibid.

outgoing president and the reading of the proclamation of election results before taking the oath of office. Upon completion of the oath, a 21-gun salute is provided and the presidential honor music is played.

The new president of the Philippines then delivers his inaugural address, which traditionally consists of the following: (1) Appreciation to the nation for conferring its mandate; and a pledge and appeal for healing and unity; and (2) The administration's call to action and programs for its first one hundred (100) days⁴².

Marcos Jr. in his address reiterated his promise of a unifying leadership and emphasized that he will be rejecting the politics of division. He provided a purview of what his presidency would look like by stating his economic plan which aims to address food security, the continuation of infrastructure projects and the fixing of the government's COVID-19 response. His speech included several pieces of information which later on were fact-checked and turned out to be inaccurate including claims of building the Bangui Wind Farm under his auspices. Towards the end, he thanked the people who voted for him by vowing to do his best as President of the Republic.

The untimely resolution of the disqualification cases of Marcos Jr. The disqualification case pertaining to the present President of the Republic of the Philippines, Ferdinand Marcos, Jr. sprouted from consolidated petitions filed before the Commission on Election. The main issues raised in the said petitions revolve around the qualifications of Ferdinand Marcos Jr. to run for the highest position in the government. The petitioners alleged in the case that Marcos Jr. cannot run for the Presidency since he has been convicted of a violation of the provision of the National Internal Revenue Code of 1977 on account of his failure to file income tax returns. His non-payment of income taxes carries with it perpetual disqualification to run for any public office in the government.

The case was originally lodged at the Regional Trial Court of Quezon City which found the accused Marcos Jr. guilty beyond reasonable doubt for violation of the provisions of the National Internal Revenue Code of 1977 with the penalty of fine and imprisonment. The accused appealed to the Court of Appeals which modified the decision acquitting Marcos Jr. of said charges and instead ordered him to pay his deficiency income taxes with corresponding interests. This was then resolved by the Supreme Court through an Entry of Judgment rendering the decision of the Court of Appeals final and executory.

On the issue of whether or not Marcos Jr. is perpetually disqualified from running for public office, the First Division of the Commission on Election ruled that he is not disqualified based on the premise that failure to file income tax returns was not provided for under the original 1977 NIRC and that the provision on perpetual disqualification was only applicable to unlawful possession or removal of articles

⁴² Ibid.

subject to specific tax without payment of tax. The Commission was of the opinion that the penalty of perpetual disqualification only came into effect in 1986 after the crime has been committed, ergo, non-filing of income tax returns is not inherently wrong in the absence of a law punishing it⁴³.

The Commission on Election *en banc* in an appeal released its ruling in a unanimous decision finding Marcos Jr. not disqualified from running into public office by reason of his failure to file income tax returns from 1982 to 1985. The decision was released a day after the May 9, 2022 elections which seemed untimely. The Commissioners posited that the reason why the decision was only released a day after the elections is that they cannot promulgate cases on weekdays and holidays⁴⁴.

“[It just wasn’t promulgated] because the following day was a Saturday and then today’s a Sunday, and tomorrow is a special non-working holiday.” “We cannot promulgate, but you can [be] rest assured that by Tuesday, the first working day of next week, we will promulgate yung apat (the four) na disqualification cases,” - Chairman Saidamen Pangarungan⁴⁵

Thereafter, the Supreme Court *en banc* in its session last June 28, 2022 also dismissed the disqualification case against Marcos Jr. and affirmed the decision of the Commission on Elections *en banc*. The Court held that in the exercise of its power to decide the present controversy led them to no other conclusion but that respondent Marcos Jr. is qualified to run for and be elected to public office. Likewise, his COC, being valid and in accord with the pertinent law, was rightfully upheld by the COMELEC. The Supreme Court is yet to publish the full text of its decision as of this writing⁴⁶.

⁴³ Ilagan et. Al v. Marcos Jr., Akbayan Party et al v. Marcos Jr., Mangalen v. Marcos Jr., SPA No. 21-212 (DC); SPA No. 21-232 (DC); SPA No. 21-233 (DC) COMELEC First Division, separate dissenting opinion of Comm. Rowena V. Guanzon.

⁴⁴ Philippine Star Person, “COMELEC En Banc Junks Last of Marcos Disqualification, Cancellation Cases,” *Philstar.com* (May 10, 2022), <https://www.philstar.com/headlines/2022/05/10/2180088/COMELEC-en-banc-junks-last-marcos-disqualification-cancellation-cases>.

⁴⁵ Philippine Star, “COMELEC Says Decision on 4 DQ Cases vs Marcos out by Tuesday,” *Philstar.com*, (May 9, 2022), <https://www.philstar.com/headlines/2022/05/08/2179634/COMELEC-says-decision-4-dq-cases-vs-marcos-out-tuesday>.

⁴⁶ Kristine Joy Patag, “SC Junks Pleas vs Marcos Jr. Candidacy, Clears Path to Inauguration,” *Philstar.com* (June 28, 2022), <https://www.philstar.com/headlines/2022/06/28/2191478/sc-junks-pleas-vs-marcos-jr-candidacy-clears-path-inauguration>.
<https://sc.judiciary.gov.ph/28242/>

Had the disqualification case prospered, there would have been varying legal consequences depending on the grounds for the disqualification. In the case of *Maquilang v. COMELEC 2013*, the votes cast in favor of the ineligible candidate are not considered at all; victory is voided and the candidate having the next highest vote who does not possess any of the disqualifications shall be the winner of an election⁴⁷. In the case of *Ejercito v. COMELEC 2014*, when a COMELEC offense is involved, the elected official is disqualified from holding an office. Hence, in case of a permanent vacancy in the position of President, then the Vice President will succeed⁴⁸.

The Rule of Law under the Presidency of Marcos Jr.

While there are many questions regarding the legitimacy of the recently-concluded May 2022 elections, most especially the presidency of Ferdinand Marcos Jr., it is already moot and academic to wage a legal battle against it as the Supreme Court has decided that the elections were just and valid. Nevertheless, we shall be forward-thinkers and hope that this administration will perform for the next six years. More so, we must be vigilant in protecting our rights, especially our human rights. We must oppose any act that threatens our civil and political rights as elections are not the end to what we can collectively achieve as a nation, but a new beginning for nation and citizenship building.

We should all remind ourselves that no one is above the law, not even the President himself. Every Filipino should be a law-abiding citizen even when it comes to adhering to simple rules in our daily lives. The law maintains peace and justice and keeps us away from chaos and futility. Let us all be game-changers in our society by fighting for our causes and advocacies. Let us not succumb to evil intentions and peacefully combat those who are trying to undermine the rule of law. ■

⁴⁷ *Maquilang v. COMELEC et al* G.R. No. 195649 (April 16, 2013) (Phil).

⁴⁸ *Ejercito v. COMELEC et al.*, G.R. No. 212398 (November 25, 2014) (Phil)

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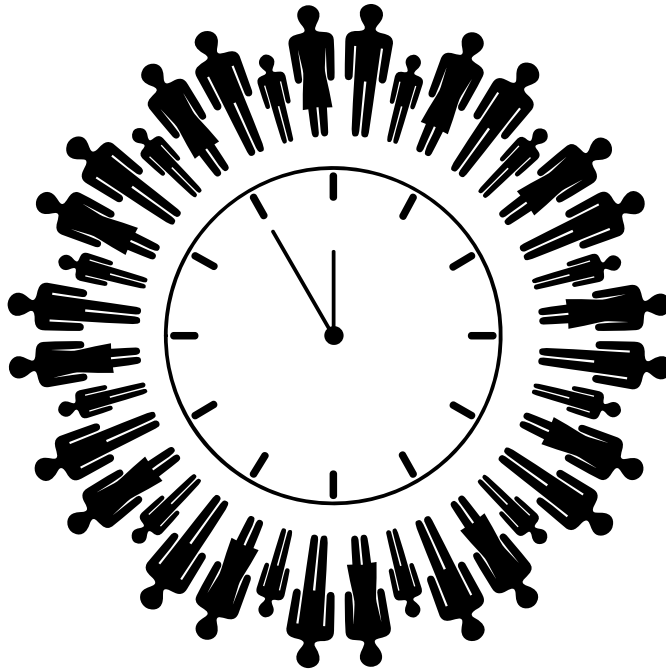
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**"Time flies over us, but leaves its
shadow behind."**

- NATHANIEL HAWTHORNE



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NO TIME RUNS AGAINST FAMILIES? GAINS AND LOSSES IN REGULATING POLITICAL DYNASTIES IN THE PHILIPPINES

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Families dominate Philippine Politics. They occupy governmental posts and have a direct hand in legislation. The pioneering volume of Alfred McCoy's book published in 1994 entitled *Anarchy of Families* reveals another side of the story:

From provincial warlords to modern managers, prominent Philippine leaders have fused family, politics, and business to subvert public institutions and amass private wealth—an historic pattern that continues to the present day. Elite Filipino families have acted as formidable coalitions – controlling capital, dominating national politics, and deploying paramilitary force¹.

This paper reflects on the following questions – what hinders legislation to set in motion the constitutional provision against political dynasties? And if any, what impact does this impasse have on electoral reform in the country?

To answer these questions, Article II Section 26 of the 1987 Constitution is revisited to highlight the importance of ensuring equal access to public service. Thereafter, a review of previous bills which have attempted to define political dynasties is provided. Gains and losses of pushing for equitable access to public service are analyzed bearing in mind recent landmark provisions in the Sangguniang Kabataan Reform Law and the institutionalization of the Bangsamoro Local Government Code.

The commentary provides recommendations as to how existing frameworks regulating political dynasties can be harnessed beyond the 2022 national elections – an election that has witnessed the return of the Marcoses at the center of political power and the further domination of political dynasties in national electoral positions.

While the title seems to suggest that no time runs against families – or *nullum tempus occurit famili*² - the paper concludes otherwise - that it may only be a matter of time for electoral reform to be actualized in the Philippines.

¹Alfred. W. McCoy (1994). *An Anarchy of families: State and family in the Philippines*. Quezon City, Manila, Philippines: Ateneo de Manila University Press.

² The doctrine "*nullum tempus occurit regi*" is usually used in the statute of limitations to mean that suits brought for damages against the government are barred by the statute of limitations. Literally, it means "no time runs against the king" but in this commentary, regi [king] is replaced with famili [family] to creatively emphasize the dominance of political dynasties in the Philippines.

The Importance of Equal Access to Public Service

The framers of the 1987 Constitution have delegated to Congress an important task of defining the term political dynasty. A careful reading of Section 26, Article II of the 1987 Constitution provides that Congress is expected to discharge an important constitutional duty:

“The State shall guarantee equal access to opportunities for public service and at the same time, prohibit political dynasties as may be defined by law”.

Without explicitly defining the term political dynasty, the constitutional duty of Congress to define it through an act of legislation therefore must pass not only standards of procedural law but also substantive one. Fernandez (1995) identified three standards upon which any anti-dynasty legislation must be tested – one, that it must guarantee equal access to opportunities for public service; two, it must promote social justice; and three, to preserve the public trust character of a public office by avoiding a potential conflict of interest³.

The provision against political dynasties and its history of deliberation can be gleaned from the records of the Constitutional Commission during the period for amendments of the *Draft Constitution*⁴.

The philosophy behind the provision is provided by Commissioner Foz when he said that “The idea of the prohibition against the rise of political dynasties is essentially to prevent one family from controlling political power as against democratic idea that political power should be dispersed as much as possible among our people. And the evils brought about by political dynasties are so well-known to us, because they happened in the recent political past”⁵. Further, Commissioner Noledo also explained that the prohibition is designed to avoid circumnavigation limiting the re-election of public officers⁶.

With the constitutional intention now clear, an analysis of its statutory construction is imperative. Fernandez (1995) provided three technical observations of the provision. One is that it is not self-executory; two, that no exact definition is provided as to the term “dynasty”; and three, that the language used is mandatory.

³Jayson L. Fernandez, (1995). Family Relationship as the basis for Disqualification to hold Public Office: A Framework for Law Prohibiting Political Dynasties. Ateneo Law Journal. Vol 40. No. 1 Pp. 96. Accessed 25 September 2021 <https://drive.google.com/file/d/1DIAxGIAkbS-slTJHLg8eKOvxt93iQYgl/view>

⁴ Record of the constitutional commission: Proceedings and debates (Vols. 2 & 4). Quezon City, Metro Manila: The Commission. At. 940.

⁵Ibid., pp. 392-93.

⁶Ibid., p. 935.

Since the prohibition is under the Declaration of Principles and State Policies, it would need an enabling legislation for it to take effect as opposed to self-executory ones such as the Bill of Rights which are well-defined. Additionally, while the records of the deliberation refer to family relationships as basis for disqualification, a clear and exact reference to the degree of relationship and the scope of political unit contemplated in an election (i.e. whether local or national elected positions) is lacking. Finally, the use of the term “shall prohibit” as Fernandez (1995) observed means an “unequivocal mandate” for Congress to fix the definition. This constitutional duty is premised on the idea that the Constitution is a social contract reflecting the will of the Filipino people.

In sum, the provisions on political dynasties, albeit having a complicated statutory context, must be seen as an important piece of constitutional provision ought to correct the systemic concentration of power and political inequality. The enforcement of the said provision is a different ball game however, as it is within the ambit of Congress.

Why Legislative Proposals to Define Dynasties Are Forestalled

Five years ago, House Bill No. 911 filed in the Congress reported that the Philippines is now conceivably the world’s capital of dynasties with seventy three (73) out of ninety (90) provinces at least having two political families dominating electoral seats⁷. The statistics are not a surprise as political dynasties have been entrenched in the government system as early as the American colonial regime in 1946⁸. To what extent has Congress, majority of which come from political families, fulfilled its constitutional mandate of defining and prohibiting political dynasties?

A quick look at the house and senate bills passed from the 13th to the 18th Congress of the Philippines, archived from their corresponding online repositories reveal that there are at least 45 bills that define and prohibit political dynasties in the last 17 years. However, not one of those bills has passed the third reading. Since 2004, both Congress and Senate have independently passed bills on the said matter but in most instances have been in pending status in appropriate committees where they were assigned to.

⁷Roque, H. (2016). House Bill 911, An Act Defining and Prohibiting the Establishment of Political Dynasties. Congress of the Philippines. Accessed September 28, 2021
https://www.congress.gov.ph/legisdocs/basic_17/HB00911.pdf

⁸Purdey, J., Tadem, T. S. E., & Tadem, E. C. (2016). Political dynasties in the Philippines. *South East Asia Research*, 24(3), 328–340. <https://doi.org/10.1177/0967828X16659730>

Table 1. House and Senate Bills Passed with Anti-Political Dynasty Provisions from July 2004 to Present (13th to 18th Congress of the Philippines)⁹

13th Congress (July 2004-2007))	HB03335- Anti-Political Dynasty Act of 2004 (Ocampo, Satur)	Read: 2004-11-30 Status: Substituted by HB05925
	HB04407 – Anti-Political Dynasty Act of 2005 (Defensor, Arthur)	Read: 2005-06-08 Status: Substituted by HB05925
	HB05925 - Anti-Political Dynasty Act of 2006 (Ocampo, Satur)	Read: 2006-11-15 Status: Business of the Day 2006 11 27
	SBN12 – Prohibiting the Establishment of Political Dynasties (Flavier, Juan)	Filed: 2004-06-30 Status: Pending
	SBN412 - Prohibiting the Establishment of Political Dynasties (Osmeña III, Sergio)	Filed: 2004-06-30 Status: Pending
	SBN1317 -Anti-Political Dynasty Act of 2004 (Alfredo Lim)	Filed: 2004-07-04 Status: Pending
	SBN1904 – Anti-Political Dynasty Act of 2005 (Santiago, Miriam)	Filed: 2005-02-30 Status: Pending
14th Congress (July 2007-2010))	HB00783 - Anti-Political Dynasty Act of 2007 (Defensor, Arthur)	Read: 2007-07-31 Status Pending since 2007-07-31
	HB03049 – Anti-Political Dynasty Act of 2007 (Amante, Edelmiro)	Read: 2007-11-19 Status: Pending since 2007-11-19
	HB05669 – Anti-Political Dynasty Act of 2008 (Santiago, Narciso III)	Read: 2009-01-19 Status: Pending since 2009-01-19
	SBN1468 – Anti-Political Dynasty Act of 2007 (Lacson, Panfilo)	Filed: 2007-08-14 Status: Pending

⁹ Collated records from: House Bills and Resolutions, House of Representatives of the Philippines <https://www.congress.gov.ph/legisdocs/?v=bills> and Senate Bills, Senate of the Philippines http://legacy.senate.gov.ph/lis/leg_sys.aspx?congress=18&type=bill&p=1 Accessed September 27, 2021.

15th Congress (July 2010-2013)	HB03413 – An Act Prohibiting the Establishment of Political Dynasties (Casiño, Teddy)	Read: 2010-10-04 Status: Pending since 2010-10-07
	HB06660 – An Act to Prohibit the Establishment of Political Dynasties (Cajayon, Mary Mitzi L.)	Read: 2012-10-04 Status: Pending since 2012-11-06
	SBN2649- Anti-Political Dynasty Act (Santiago, Miriam)	Filed: 2011-01-24
16th Congress (July 2013-2016)	HB 00172 – An Act Prohibiting the Establishment of Political Dynasties (Colmenares, Neri)	Read: 2013-07023 Status: Substituted by HB03587
	HB02911 – An Act Prohibiting the Establishment of Political Dynasties (Rodriguez, Oscar)	Read: 2013-09-23 Status: Substituted by HB03587
	HB 03587 – The Anti-Political Dynasty Act of 2013 (Colmenares, Neri)	Read: 2013-12-16 Status: Unfinished Business (Period of Amendments)
	PET0002 – An act of the people defining and prohibiting political dynasties, providing the procedure for disqualification, imposing penalties therefor, and for other purposes (People's Initiative)	Read: 2013-11-18 Status: Pending since 2013-11-18
	SBN55 – Anti-Political Dynasty Act (Defensor Santiago, Miriam)	Filed: 2013-07-01 Status: Pending
	SBN1580 - Anti-Political Dynasty Act (Defensor Santiago, Miriam)	Filed: 2013-09-13 Status: Pending
	SBN1906 – Anti-Political Dynasty Act of 2013 (Ejercito, Joseph Victor G.)	Filed: 2013-11-05 Status: Pending
	HB00166 – An Act Prohibiting the Establishment of Political Dynasties (Belmonte, Feliciano Jr.)	Read: 2016-07-26 Status: Pending since 2016-7-26
	HB00825 – An Act defining Political Dynasty and Prohibiting the Establishment Thereof (Marcoleta, Rodante)	Read: 2016-07-27 Status: Pending since 2016-07-27

17th Congress (July 2016-2019)	HB00603 – An Act Prohibiting the Establishment of Political Dynasties (Erice, Edgar)	Read: 2016-07-27 Status: Pending since 2016-07-27
	HB00911 - An Act Prohibiting the Establishment of Political Dynasties (Roque, Harry Jr.)	Read: 2016-07-04 Status: Pending since 2016-07-27
	HB01793 - An Act Prohibiting the Establishment of Political Dynasties (Tambunting, Gus)	Read: 2016-08-02 Status: Pending since 2016-08-02
	HB02134 - - An Act Prohibiting the Establishment of Political Dynasties (Oaminal, Henry)	Read: 2016-08-08 Status: Pending since 2016-08-08
	HB03861 – An Act defining Political Dynasty and Prohibiting the Establishment Thereof (Bag-ao, Kaka et. Al)	Read: 2016-10-05 Status: Pending since 2016-10-05
	PS00379 – Anti-Political Dynasty Provision in the SK Reform Act of 2015 (Teves, Arnolfo Jr.)	Read: 2018-05-30 Status: Pending since 2018-05-30
	HB08025 -An Act Defining and Prohibiting Political Dynasties Providing Penalties Therefor, and for other purposes (Alejano, Gary)	Read: 2018-08-08 Status: Pending since 2018-08-8
	SBN49 – The Anti-Political Dynasty Act of 2016 (Lacson, Panfilo)	Filed: 2016-06-30 Status: Pending
	SBN230 - The Anti-Political Dynasty Act (Drilon, Franklin)	Filed: 2016-07-04 Status: Pending
	SBN897 - Anti-Political Dynasty Act of 2016 (Ejercito, Joseph Victor)	Filed: 2016-07-26 Status: Pending
	SBN1137 - The Anti-Political Dynasty Act of 2016 (Poe, Grace)	Filed: 2016-09-13 Status: Pending
	SBN1258 - The Anti-Political Dynasty Act of 2016 (Legarda, Loren)	Filed: 2016-12-01 Status: Pending
	SBN1688 - Anti-Political Dynasty Act (Aquino, Bam)	Filed: 2018-02-12 Status: Pending
	SBN1765 – Anti-Political Dynasty of 2018 (Filed by 9 Senators, Lacson, et. Al.)	Filed: 2018-03-21 Status: Pending
	HB00395 – An Act Prohibiting the Establishment of Political Dynasties (Erice, Edgar)	Read: 2019-07-23 Status: Pending since 2019-07-23

18th Congress (July 2019-2022)	HB00252 – An Act Prohibiting the Establishment of Political Dynasties (Gaite, Ferdinand et. Al.)	Read: 2019-07-23 Status: Pending since 2019-07-23
	HB00145 –An Act Defining Political Dynasty and Prohibiting the Establishment thereof	Read: 2019-07-23 Status: Pending since 2019-07-23
	HB01978 – An Act Prohibiting the Establishment of Political Dynasties (Bordado, Gabriel Jr.)	Read: 2019-07-29 Status: Pending since 2019-07-29
	HB03149 – An Act Prohibiting the Establishment of Political Dynasties (Romulo, Roman)	Read: 2019-08-05 Status: Pending since 2019-08-05
	SBN11 - Anti-Political Dynasty Act (Drilon, Franklin)	Filed: 2019-07-01 Status: Pending
	SBN30 - Anti-Political Dynasty Act of 2019 (Lacson, Panfilo)	Filed: 2019-07-01 Status: Pending
	SBN-264 - Anti-Political Dynasty Act of 2019 (Pangilinan, Francis)	Filed: 2019-07-08 Status: Pending
	SBN1480 – Anti-Political Dynasty Act (Poe, Grace)	Filed: 2020-05-04 Status: Pending

Content examination of these bills shows similarities across versions and provisions as to how a political dynasty is defined. The majority of these bills refer to the definition as provided by Miriam Defensor-Santiago in Senate Bill No. 2649 which defines a political dynasty as:

Political dynasty shall exist when a person who is the spouse of an incumbent elective official or relative within the second civil degree of consanguinity or affinity of an incumbent elective official within the same province or occupies the same office immediately after the term of office of the incumbent elective official.

It shall also be deemed to exist where two or more persons who are spouses or are related within the second civil degree of consanguinity or affinity run simultaneously for elective public office within the same province even if neither is so related to an incumbent elective official¹⁰.

¹⁰ Senate Bill 2649. Office of the Secretary of the Senate. (24 January 2011). Accessed September 27, 2021 <http://legacy.senate.gov.ph/lisdata/1061690911.pdf>

Additionally, the provisions on prohibitions included in the different versions of the bill most of the time make references to the following: degree of consanguinity prohibited which is on the second degree, the scope of prohibition which is any local or national office, and the non-application of the prohibition to Punong Barangays or Members of the Sangguniang Barangay. The provisions set forth in House Bill No. 911 provide a standard template of reference to these three items:

No spouse or person related within the second degree of consanguinity or affinity, whether legitimate or illegitimate, to an incumbent elective official seeking re-election, shall be allowed to hold or run for any elective office within the same province, city, or municipality or the same office in the same election. In case the constituency of the incumbent elective official is national in character, the above relatives shall be disqualified from running only within the same province where the former is a registered voter.

In a case where none of the candidates is related to an incumbent elective official within the second degree of consanguinity or affinity but are related to one another within the said prohibited degree, they, including their spouses, shall be disqualified from holding or running for any local elective office within the same province or any national office in the election. In all cases, no person within the prohibited degree of relationship to the incumbent elective official shall immediately succeed to the position of the latter whether at the local or national level: Provided, however, that this section shall not apply to Punong Barangays or members of the Sangguniang Barangay.

The most significant advancement of the bill in the last 17 years from the 13th to the 18th Congress would be that of House Bill No. 03587 filed by Neri Colmenares in the 16th Congress. For the first time since 1986, the bill was unanimously approved by the Committee on Suffrage and Electoral Reforms. This means that unlike other versions of the bill which ended right after being endorsed to its respective committee, HB No. 03587 was for the first time included in the House's Order of Business and had an opportunity to be discussed in plenary presentations and speeches. Capiz Rep. Fredeil Castro was quoted during the plenary session to have said:

"[This time] is a rare opportunity to place the interest of the country ahead of personal interest... [It's] an opportunity that not everyone is given"¹¹.

Despite this rare opportunity, the bill has been pending after reaching the period of assessment. While it was stuck at that stage, it was also the first time that a People's Initiative was passed to define and prohibit political dynasties in the form of ***PET0002 – An act of the people defining and prohibiting political dynasties, providing the procedure for disqualification, imposing penalties therefor, and for***

¹¹ Xianne Arcangel, "Anti-Political dynasty bill makes historic debut in House Plenary". *GMA News*. (May 6, 2014). Accessed September 28, 2021 <https://www.gmanetwork.com/news/news/nation/359830/anti-political-dynasty-bill-makes-historic-debut-in-house-plenary/story/>

other purposes. People's initiative is provided by the Constitution as one of the ways to make laws beyond the power vested in Congress. In this case, an initiative on statutes allows proposals for the enactment of national legislation. However, this People's Initiative has been in pending status since November 18, 2013.

Denis Blanco of the University of the Philippines (UP) Department of Political Science aptly observed that congressional and senate anti-political dynasty bills have remained stagnant in both houses since the original bill was passed by Defensor-Santiago in the first regular session of the 13th Congress. Its non-passage is attributed to the fact that the majority of the members of the Congress belong to political dynasties¹² occupying 77.5%¹³ of electoral seats.

In the last five years, progressive legislations integrating anti-political dynasty provisions have been steadily rising. One of which is the provisions found in the *Bayanihan Federal Constitution* which is a reiteration of previous bills passed but includes a mechanism in place to resolve potential issues among the same families running for an electoral post. The scenario contemplated is that where two or more members of the same family within the second degree of consanguinity are vying for a similar local and national post, the Bayanihan Federal Constitution resolves it through the drawing of lots. A different version of the federal charter however was passed that removed the anti-dynasty provisions in the proposed Bayanihan Constitution.

One can say that there is sustained interest on the part of Congress and Senate to fulfill their constitutional mandate to define and prohibit political dynasties. However, from the long list of pending congressional and senate bills, there is strong evidence as well that both houses are "seemingly adamant and tentative in their legislative position"¹⁴ to pass the bill into law. Even with the People's Initiative filed in the 16th Congress, the absence of strong political will to certify it as an urgent piece of legislation is captured by traditional rent-seeking behavior. This has been observed in Congress, especially for legislation that adversely affects the vested interests of legislators such as in the case of the land reform program.

¹²Dennis Blanco, (2016). Recent Legislative Attempts to Limit or Ban Political Dynasties in the Senate: An Analysis of the Anti-Dynastic Provisions. Accessed September 29, 2021
<https://halalan.up.edu.ph/recent-legislative-attempts-to-limit-or-ban-political-dynasties-in-the-senate-an-analysis-of-the-anti-dynastic-provisions/?fbclid=IwAR3Nj5gpG5HvSBGtgg8KIOhNQEZBs1er7I2MWn7Bx-lmtpQ5-KOSXpGCmk>

¹³ Ronald Mendoza et. al. (2020). Term limits and political dynasties in the Philippines. Unpacking the Links. *Asia-Pacific Social Science Review* 20(4) 2020, pp. 88–99 Accessed September 27, 2021
<http://apssr.com/wp-content/uploads/2020/12/RA-7.pdf>

¹⁴ Dennis Blanco, (2016). Recent Legislative Attempts to Limit or Ban Political Dynasties in the Senate: An Analysis of the Anti-Dynastic Provisions. Accessed September 29, 2021
<https://halalan.up.edu.ph/recent-legislative-attempts-to-limit-or-ban-political-dynasties-in-the-senate-an-analysis-of-the-anti-dynastic-provisions/?fbclid=IwAR3Nj5gpG5HvSBGtgg8KIOhNQEZBs1er7I2MWn7Bx-lmtpQ5-KOSXpGCmk>

Realizing Electoral Reforms Beyond 2022

It is beyond question that the inability of Congress to fulfill its constitutional mandate to define and prohibit political dynasties has led to an impasse, further allowing deep entrenchment of political families into the government. Political dynasties not only self-perpetuate but also undermine the quality of democracy and have links to deeper poverty and underdevelopment¹⁵.

The results of the 2022 National and Local elections illustrate this systemic problem. Palatino notes that the victory of the Marcos - Duterte tandem in the recent polls is an epitome of the continuing dominance of political dynasties. He notes “after the[ir] unceremonial ouster in 1986, the Marcoses are once again the most powerful political family headed by Marcos Jr., with his sister serving as senator until 2025, his son as a congressman and his first cousin positioned to be the next speaker of the House of Representatives and Marcos’ relatives [were] able to retain power both in Ilocos Norte and Tacloban City¹⁶.

Palatino further notes that while Rodrigo Duterte has ended his term as President, he has succeeded in expanding the influence of his family with the election of his daughter Sara Duterte as Vice President. His eldest son was re-elected to Congress, the youngest elected as mayor, and his close aide Bong Go serving as senator until 2025. In the lower congress, what is more alarming is that 79 percent of party-list groups who have competed in the recent polls have ties to political dynasties and big businesses. This has been termed by many observers as the “back door” entry of political dynasties that want to retain influence and control¹⁷. All of these pieces of evidence illustrate the deep entrenchment of political families in our electoral systems that is counterintuitive to the Constitutional mandate of guaranteeing equal access to opportunities for public service and prohibiting political dynasties.

¹⁵ Ronald U. Mendoza, Edsel L. Beja Jr., Victor S. Venida and David B. Yap. (2016). Political dynasties and poverty: Measurement and evidence of linkages in the Philippines”, *Oxford Development Studies*, 44 (2), 189-201. <https://doi.org/10.1080/13600818.2016.1169264>

¹⁶ Palatino further writes for the Diplomat on his observations of the 2022 National Elections that families, not parties, are prominent winners of the elections. The results are consistent for the congressional and local government positions across the country which shows a similar pattern where the winners are mostly those who come from wealthy and influential families.

For instance, two Estradas are now elected to the senate and newly elected Senator Alan Cayetano will join his sister, Pia Cayetano, whose terms will end in 2025. Former DPWH Secretary Mark Villar is also elected as Senator, joining his mother, Cynthia Villar, who will serve until 2025.

Senator Win Gatchalian’s brother will become a Congressman of Valenzuela City while Senator Joel Villanueva’s father is the deputy speaker of the House of Representatives. Senator Francis Escudero’s family members on the other hand have been elected as local officials in Sorsogon province. Read further Palatino, Mong. “Political Dynasties Dominate Philippines Elections – Again”. *The Diplomat*. (May 23, 2022) <https://thediplomat.com/2022/05/political-dynasties-dominate-philippines-election-again/>

¹⁷ Ramirez Robertzon, “Kontra Daya: 70% of party-list groups are questionable”. *PhilStar Global*. (March 4, 2022) <https://www.philstar.com/headlines/2022/03/04/2164814/kontra-daya-70-party-list-groups-questionable>

While the results of the recent polls are discomfoting, a fitting question would be – *what are the gains in terms of effecting legal mechanisms in regulating political dynasties at the very least?* First, one has to look first at progressive pieces of legislation that have been passed indirectly regulating political dynasties. Second and most important, we also have to look at the power of the Judiciary to effect constitutional mandates with regard to political dynasties. Third and last, the contribution that civil society can bring must be considered.

As to progressive legislation, provisions from Republic Act No. 10742 or the Sangguniang Kabataan (SK) Reform Law passed in 2016 contain landmark and specific anti-dynasty components for the selection of youth leaders at the barangay level. The provision expressly preventing dynastic links among SK officials up to the 2nd degree of consanguinity was first implemented by the Commission on Elections in the 2018 Sangguniang Kabataan Elections. Senator Drilon said that the law is the first legislation that realizes Section 26 of Article 2 of the 1987 Constitution and that the landmark provision is a necessary electoral reform¹⁸. Although studies are scant as to the impact of the landmark provision reforming the SK as an institution, Mendoza correctly points out that it is possible to encourage a supply of non-dynastic leaders starting with SK to start competing for higher office¹⁹.

Another promising area to look at would be the Bangsamoro Autonomous Region in Muslim Mindanao's (BARMM) draft Local Government Code. Following the enactment of the BARMM Organic Law last July 27, 2018, the realization of the Bangsamoro Parliament is apparent as it was originally scheduled to be synchronized with the 2022 National Elections. Once the parliament has been constituted, we expect that the Bangsamoro Local Government Code will be in full motion. Legislators of the said Local Government Code, which are members of the Transitional Parliament, note that there are provisions on "additional qualifications and disqualification [grounds] in addressing election controversies as well as (issues on) succession, and filling up of (elective) vacancies" and a specific mention that "a candidate must not be within a second civil degree of consanguinity or affinity to any incumbent elected official in the locality where he or she seeks to be elected"²⁰. These provisions are consistent with administrative and political reforms to be instituted in BARMM to effect genuine autonomy and at the same time actualize the goals of economic progress in the region.

¹⁸ Senate of the Philippines. (2016). Press Release: Drilon: SK Reform Act proves anti-dynasty law 'doable'. 18th Congress, Senate of the Philippines. Accessed September 26 2021 http://legacy.senate.gov.ph/press_release/2016/0122_drilon1.asp

¹⁹ Ronald Mendoza et. al. (2020). Term limits and political dynasties in the Philippines. Unpacking the Links. *Asia-Pacific Social Science Review* 20(4) 2020, pp. 88–99. Accessed September 27, 2021 <http://apssr.com/wp-content/uploads/2020/12/RA-7.pdf>

²⁰ Nash Maulana, "BARMM eyeing anti-dynasty rule in local government code." *Manila Standard.net*. (2020) Accessed September 26, 2021 <https://manilastandard.net/mobile/article/319814>

As to the oversight function of the judiciary in the Philippines, the Supreme Court attempted to define political dynasties in 2011 through Justice Carpio: “[A] phenomenon that concentrates political power and public resources within the control of a few families whose members alternately hold elective offices, deftly skirting term limits”²¹.

It is unlikely however that the Supreme Court will resort to judicial legislation and intervene based on recent precedents it has issued. What Paterno²² suggests is for the judiciary to play a “*gap-filling role*” by providing its own interpretation of political dynasties in cases where it has to decide on the eligibility of certain candidates. With the end purpose of ensuring equal access to public service opportunities, this role in fact does not necessarily encroach on the power of Congress to legislate.

As to the power of civil society organizations and people’s participation, we cannot escape the obvious that they have been the lifeblood of Philippine democracy. The choices in any election still rest in the hands of the people. Through education drives and initiatives to popularize the importance of legislating anti-political dynasty provisions, it is possible that an informed voting public can as well regulate *who gets what, when, and how* in different electoral districts. Ultimately, from the words of the great constitutionalist Joaquin Bernas†:

Any movement which lobbies for the passage of an anti-political dynasty law would hit a snag if the political and legal means of doing it is by way of people’s initiative and referendum.... A well-informed, well-educated, and voter-literate citizenry is still the best precondition and viable democratic option in toppling political dynasties as a way of political life²³.

In keeping the tradition of judicial activism of Fr. Bernas alive, one can conclude that the study of law is an advocacy first and foremost than a profession. This advocacy – the project of educating the citizenry about their rights and power to participate in our political systems - is something that legal academic institutions through their faculty, students, and the platforms they use can fulfill. An academic law journal that is timely and relevant to the needs of the public is an illustration of such.

In the final analysis, it seems that no time runs against families in the last 35 years. In fact, there were more losses than gains along the way. It is undeniable that because of rent-seeking behavior on the part of Congress, the quality of our democracy is in a bad state, which has aggravated structural inequities in the country.

²¹ Beatriz Paterno. (2016). A Role for the Courts in Limiting Political Dynasties. The Global Anticorruption Blog. Accessed September 2021
<https://globalanticorruptionblog.com/2016/06/20/a-role-for-the-courts-in-limiting-philippine-political-dynasties>

²² Ibid.

²³ Bernas, Joaquin. 2013. “The Anti dynasty campaign”. Sounding Board. *Philippine Daily Inquirer*, (17 February) <http://opinion.inquirer.net/47067/the-antidynasty-campaign>

There seems to be a silver lining, however – if one is just reminded of the nature of the separation of powers, the very bedrock of democracy. As this commentary has pointed out, there is hope in progressive legislation, judicial activism, and by educating the electorate. Perhaps not this 2022 National Elections, but it is only a *matter of time* when families in the Philippines are no longer kings and the constitution reigns supreme. ■

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"Justice will not be served until those who are unaffected are as outraged as those who are."

- BENJAMIN FRANKLIN



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The Philippine Party-list System and Representation of Marginalized Populations

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Abstract

The Party-list system is a unique aspect of the Philippine political system; a political battleground designed to ensure a representative democracy that allows for ample and proportional representation of marginalized groups in the House of Representatives. Guaranteed by Article 6 of the 1987 Philippine Constitution, the party-list system was created by the framers of the constitution as “a scheme aimed at giving meaningful representation to the interests of sectors which are not adequately attended to in normal deliberations¹”.

This article particularly explores the party-list system and argues for a necessary revamping of the process of selection and accreditation of party-lists. As Congress is empowered to define and prescribe the mechanics of party-list representation, laws like the Omnibus Election Code and the Party-list Systems Act have allowed for this system to operate. The 18th Congress has seen the party-list system continue to grow; however, it still lacks a mechanism to ensure proper representation. With the national elections happening this year, we again see the same trend of party-lists vying for a seat in Congress. However, just like in previous elections, these party-lists do seem to represent a clear marginalized group. So, is there a need to revamp the party-list system? And does being marginalized even matter anymore?

Introduction

With the 2022 national elections over, our ballots have determined who will represent the people in the hallowed halls of the House of Representatives. In our ballots, we not only chose our district representatives but also one (1) party-list representative – an important feature in our democracy that arguably benefits marginalized populations.

Our 1987 Philippine Constitution provides in Article 6, Section 5, that:

(1) The House of Representatives shall be composed of not more than two hundred and fifty members unless otherwise fixed by law, x x x and those

¹ Joaquin Bernas, in *The Intent of the 1986 Constitution Writers* (Rex Bookstore, 1995), p. 344.

who, as provided by law, shall be elected through a party-list system of registered national, regional, and sectoral parties or organizations².

The framers of the constitution recognized not just the need of the district representatives, whose mandate is to serve the interests of their districts and their citizens, but also, the representation of marginalized sectors of society.

The party-list system, an innovation introduced by the 1987 Constitution, in order to encourage the growth of a multi-party system, is designed to give a chance to marginalized sectors of society to elect their representatives to Congress. A scheme aimed at giving meaningful representation to the interests of sectors which are not adequately attended to in normal deliberations, it is envisioned that the system will encourage interest in political affairs on the part of a large number of citizens who feel that they are deprived of the opportunity to elect spokesmen of their own choosing under the present system. It is expected to forestall resort to extra-parliamentary means by minority groups which would wish to express their interests and influence governmental policies, since every citizen is given a substantial representation³. (Emphasis supplied.)

Recently, LGBTQ PLUS Party-list was denied by COMELEC to run in the upcoming elections. Their Facebook page describes their vision as “to become a national Lesbian, Gay, Bisexual, Transsexual, Queer, Intersexual, Asexual + (LGBTQIA+) governing party that will advance the civil rights, freedoms, and address the intersectional issues of the LGBTQIA+ community and other minorities...”⁴

In December 2021, COMELEC denied the Motion for Reconsideration of LGBTQ PLUS Party-list and a number of other party-list groups who were seeking accreditation⁵. COMELEC on October 7, 2021, issued a resolution dismissing the Petition of the LGBTQ PLUS Party-list on the ground that it failed to comply with the requirements⁶. A Motion for Reconsideration was further filed by LGBTQ PLUS

² CONST., (1987), Art. VI, Sec. V, Par. 1 (Phil)

³ Osmeña v. COMELEC, G.R. No. 132231, (March 31, 1998). (Phil)

⁴ About Page of the LGBTQ PLUS Party-list, <https://www.facebook.com/LGBTQPartylistNational>.

⁵ Commission on Elections, In Re: Participation of Party-List Groups in the Conduct of Raffle to Determine the Order of their Listing on the Official Ballot in Connection with the 2022 National and Local Elections, Resolution No. 10735, Sec. 2 (December 1, 2021),

https://comelec.gov.ph/php-tpls-attachments/2022NLE/Resolutions/com_res_10735.pdf.

⁶ Commission on Elections, Rules and Regulations Governing the: 1) Filing of Petitions for Registration; 2) Filing of Manifestation of Intent to Participate; 3) Submission of Names of Nominees; And 4) Filing of Disqualification Cases against Nominees of Party-List Groups or Organizations Participating under the Party-List System of Representation in Connection with the May 13, 2013, National and Local Elections, and Subsequent Elections Thereafter, Resolution No. 9366, Secs. 6 & 7 (February 21, 2012), https://comelec.gov.ph/php-tpls-attachments/2022NLE/Resolutions/com_res_10690.pdf

Party-list on October 12, 2021. This was denied by COMELEC on technical and procedural grounds⁷.

As a response, the party-list issued a statement dated December 5, 2021, on their social media page stating:

“They denied our chance to participate in the 2022 poll of party-list but this doesn’t (sic) mean we have to stop dreaming and take actions to deliver what is best for our sector.”

Reliving the question of Commissioner Jaime “Ka Jimmy” Tadeo, a peasant activist and the sole peasant representative to the 1986 Constitutional Commission, in which he asks, “How do we ensure ample representation of basic sectors in the legislature so that laws reflect their needs and aspirations”⁸?

Have we actually achieved “ample representation” or are we still impeded by traditional politics or a weakened Party-list system?

It is important to also recognize that ample representation is not equivalent to the proportional representation electoral system practiced by calculating the number of party-list representatives elected into office. One case in particular clarified that the Constitutional provision⁹ that “at least 20% of the members of the House of Representatives come from the party-list representatives” is not mandatory rather it provides a ceiling following a formula¹⁰. Congress is empowered to define and prescribe the mechanics of party-list representation.

This is reminiscent of another landmark case, where the *ratio decidendi* of the case, reads: “As such, we hold that moral disapproval, without more, is not a sufficient governmental interest to justify the exclusion of homosexuals from participation in the party-list system. The denial of Ang Ladlad’s registration on purely moral grounds amounts more to a statement of dislike and disapproval of homosexuals, rather than a tool to further any substantial public interest”¹¹.

This landmark ruling is an important precedent in determining the registration of future party-lists by ensuring equal protection and non-discrimination. It is of utmost importance that party-lists represent marginalized populations. Equally important is that the number of party-lists in Congress is increased beyond 20% to have a substantial impact on any legislative agenda (Gutierrez III 2010).

⁷ Commission on Elections, “Petition for Registration of LGBTQ+ Organization, Inc. (LGBTQ PLUS), as a sectoral organization under the party-list system”, SPP No. 21-147 (PL), (December 13, 2021).

⁸ Record of the Constitutional Commission, No. 45, Friday, August 1, 1986.

⁹ <https://www.officialgazette.gov.ph/1986/08/01/r-c-c-no-45-friday-august-1-1986/>

⁹ CONST., (1987), Art. VI, Sec. V, Par. 2 (Phil)

¹⁰ Veterans Federation Party v. COMELEC, G.R. No. 136781, (October 6, 2000). (Phil)

¹¹ Ang Ladlad LGBT Party v. COMELEC, G.R. No. 190582, (April 8, 2010). (Phil)

The present article delves into the current composition of party-lists with a seat in the 18th Congress of the Philippines. The present Congress seats 61 party-lists, two seats more than the 17th Congress.

It also explores the laws passed, main author or sponsor, not co-authored or co-sponsored by the sitting party-lists under the domains of (1) basic education and culture, (2) women and gender equality, and (3) senior citizens vis-a-vis the party-list that has passed these laws in relation to the marginalized groups they represent. These domains represent the current standing committees in the 18th Congress of the Philippines. This does not, of course, provide the total picture, but this should suffice for this paper, which is admittedly a work-in-progress.

Similarly, due to the lack of key performance indicators that would show exactly if the party-list groups promote the human rights that should be afforded to their constituents, we are left with this preliminary comparative article of legislations passed by sitting party-lists and the extent to which these statutes benefit their constituents.

There is a state obligation to fulfill the fundamental human rights of these marginalized populations through the enactment of legislation; consequently, this is also the primary role of party-lists. The state is the guardian of human rights and the basis of this obligation is enshrined in the Constitution itself (Villasis 2020). Take, for example, the right to health as a component of a person's right to life¹²; hence, indispensable. Similarly, to ensure that labor rights are protected, employment opportunities shall be equal regardless of sex, race, or creed¹³.

The Party-list System is, therefore, the battleground for marginalized groups to formulate, negotiate, and lobby for the passage of legislation that would benefit them.

The Party-list System

The current purpose of the party-list system is exhibited in two decisions of the Supreme Court: first, to make the marginalized and underrepresented not merely passive recipients of the State's benevolence, but active participants in the mainstream of representative democracy¹⁴; second, to democratize political power by giving political parties that cannot win in legislative district elections a chance to win seats in the House of Representatives¹⁵. An alternative point of view was given by Justice

¹² *Imbong v. Ochoa, Jr.*, G.R. No. 204819, (April 8, 2014). (Phil)

¹³ *International School Alliance of Educators v. Quisumbing*, G.R. No. 128845, (June 1, 2000). (Phil)

¹⁴ *Ang Bagong Bayani-OFW Labor Party v. COMELEC*, G.R. No. 147589, (June 25, 2003). (Phil)

¹⁵ *Atong Paglaum, Inc. v. COMELEC*, G.R. No. 203766, (April 2, 2013). (Phil)

Artemio Panganiban when he wrote about the court seeing the party-list system, not as a proportional system of representation designed to strengthen democracy but as “sectoral representation” meant to promote social justice.

Even the Omnibus Election Code ensures equal representation of sectors, such as the agricultural labor sector, industrial labor sector, and youth sector, in the legislature¹⁶.

In the spirit of genuine democracy and the pursuit of the true essence of a representative government, our lawmakers enacted Republic Act Number (R.A.) 7941 or “*The Party-List System Act*.” This Act strives to achieve proportional representation, which is rooted in the desire to remedy flaws in the plurality system adopted by the government¹⁷ to ensure inclusion. The law also declares that this law will “enable Filipino citizens belonging to the marginalized and underrepresented sectors, organizations and parties, and who lack well-defined political constituencies, but who could contribute to the formulation and enactment of appropriate legislation that will benefit the nation as a whole, to become members of the House of Representatives”¹⁸.

R.A. 7941 is the implementing statute of the constitutional guarantee of party-list representation. The intent of which “was not to allow all associations to participate indiscriminately in the system but to limit participation to parties or organizations representing the ‘marginalized and underprivileged’” (Bernas 2009). However, in one case the 2% threshold in Section 11(b) of R.A. 7941 was stricken down as unconstitutional as it was counterintuitive to the 20% ceiling provided in the Constitution¹⁹.

Other authors critical about the party-list system opine that “some party-list groups now display the features of elitist and traditional politics” (Tigno 2019). Furthermore, even President Duterte himself, at one point criticized the party-list system and described it as “evil” for not sticking true to the intentions of the framers of R.A. 7941 (Romero 2019).

¹⁶ Omnibus Election Code, B.P. Blg., 881, as amended, Secs. 26 & 27 (Phil)

¹⁷ An Act Providing for the Election of Party-List Representatives through the Party-List System, and Appropriating Funds Therefor, Rep. Act. No. 7941, sec. 3, (Mar. 3, 1995).
https://lawphil.net/statutes/repacts/ra1995/ra_7941_1995.html

¹⁸ *Ibid*, Sec. 2

¹⁹ BANAT vs. COMELEC, G.R. No. 179271, (April 21, 2009). (Phil)

The Party-Lists of the 18th Congress

This section of the paper lists some of the party-lists at the 18th Congress and the house bills principally sponsored.

Education. A deep dive into the Congressional Committee on Basic Education and Culture reveals some promising bills favorable to the welfare of teachers. Three sitting party-lists in the 18th Congress claim to represent the education sector. These include those A Teacher Party-List, whose representative, Hon. Ma. Victoria Umali principally authored a bill providing medical allowance²⁰ and instructional material allowance²¹ for public school teachers. Manila Teachers' Hon. Virgilio S. Lacson is proposing a law that would strengthen and expand the professional rights and work incentives of public-school teachers²² and the establishment of e-libraries in all public schools²³. Finally, ACT-TEACHERS' Hon. France L. Castro filed a bill mandating the addition of human rights education in the curriculum²⁴, penalizing the imposition of a "no permit, no exam" policy²⁵ and the passage of the Magna Carta for Private School Teachers²⁶.

Castro has also filed bills with the committee on "Higher and Technical Education" focused on the declaration of students' rights²⁷ and the promotion of campus press freedom²⁸.

The education agenda is quite broad in the sense that it covers the rights of students and teachers, as well as policies that ensure equal access to education. As a whole agenda, it does not even point to a specific marginalized group but rather to resolve issues involving the deteriorating literacy rate in the country and accessibility to education.

Women and Gender. Women's rights and the women's sector have always been ripe for legislation that promotes gender mainstreaming, inclusion, and equality. When talking about women's rights in the lower house, it always points to the sole women's party-list, Gabriela Women's Party. Currently, Hon. Arlene D. Brosas represents the party.

One positive development in this advocacy is the passage of R.A. 11313 or the Safe Spaces Act in 2018. The law primarily "recognizes that both men and women

²⁰ 18th Congress, HB 00872

²¹ 18th Congress, HB 00871

²² 18th Congress, HB 03677

²³ 18th Congress, HB 04131

²⁴ 18th Congress, HB 00320

²⁵ 18th Congress, HB 00321

²⁶ 18th Congress, HB 05783

²⁷ 18th Congress, HB 00318

²⁸ 18th Congress, HB 00319

must have equality, security and safety not only in private but also on the streets, public spaces, online, workplaces and educational and training institutions”²⁹.

This law finds support from both the upper and lower house, especially within the House Committee on Women and Gender Equality, which Hon. Maria Lourdes Acosta-Alba of the 1st District of Bukidnon currently heads as chairperson.

As of writing, several bills are currently being referred to the committee for hearing and deliberation. notable ones include several versions of a bill prohibiting discrimination on the basis of sexual orientation or gender identity or expression (SOGIE) or known as SOGIE Equality Bill or Anti-Discrimination bill.

Senior Citizens. The Senior Citizens Party-List has been providing representation for the welfare, protection and support of elderly Filipinos since the 14th Congress in 2007. Currently, the Senior Citizens Party-List is represented by Hon. Rodolfo M. Ordanes, who also chairs the House Committee on Senior Citizens. The Senior Citizens Party-List remains to be the sole representative of senior citizens in the lower house.

Legislation has exemplified the importance of youth representation in legislative bodies³⁰ but rarely does it point to the representation of the elderly. The Philippine House of Representatives takes pride in young representation in governance with both the Kabataan Party-List and Duterte Youth Party-List, which are supposed to be the standard bearers of youth-centered legislation.

The comprehensive Expanded Senior Citizens Act of 2010³¹ has been a landmark legislation to forward the rights of Senior Citizens. However, the continued representation of senior citizens is still essential, and this is something that the Senior Citizens Law, itself, failed to provide. Their importance is evidenced by legislation being proposed by the Senior Citizens Party-List, such as a bill granting income tax exemption to senior citizens aged sixty (60) and above³².

²⁹ An Act Defining Gender-Based Sexual Harassment in Streets, Public Spaces, Online, Workplaces, and Educational or Training Institutions, Providing Protective Measures and Prescribing Penalties Therefor, Rep. Act No. 11313, sec. 2 (April 17, 2019), https://lawphil.net/statutes/repacts/ra2019/ra_11313_2019.html

³⁰ An Act Creating the National Youth Commission, establishing a National Comprehensive and Coordinated Program on Youth Development, Appropriating Funds Therefore, and for Other Purposes, Rep. Act No. 8044 (June 7, 1995), <http://hrlibrary.umn.edu/research/Philippines/RA%208044%20-%20Youth%20In%20Nation-Building%20Act.pdf>

³¹ An Act Granting Additional Benefits and Privileges to Senior Citizens, Further Amending Republic Act No. 7432, As Amended, Otherwise Known as “An Act to Maximize the Contribution of Senior Citizens to Nation Building, Grant Benefits and Special Privileges and for Other Purposes, Rep. Act No. 9994 (February 15, 2010). <https://www.officialgazette.gov.ph/2010/02/15/republic-act-no-9994/>

³² 18th Congress, HB 08832

There are also crucial legislations being referred to the House Committee on Senior Citizens like a bill protecting senior citizens from violence and abuse³³, authored by Hon. Victor A. Yap of the 2nd District of Tarlac. Without the Senior Citizens Party-List marshaling the committee, legislation benefiting this sector might be not prioritized or totally neglected.

Revamp the Party-List System

The examples herein are proof of the invaluable contributions of the party lists in the lobbying, representation, and recognition of marginalized populations. It seems that in terms of legislation, the equal representation required for our democracy in our 1987 Philippine Constitution, Party-list Systems Act, and Omnibus Election Code is fulfilled. Those sitting have arguably done their job of passing (or proposing) legislation that benefits their specific sector.

However, it is suggested that there is a need for a revamping of the party-list system, so as to accommodate legitimate party-lists that represent actual marginalized groups as defined in relevant legislation, like the Party-list Systems Act. The *Ang Ladlad* case also shows that for the recognition and accreditation of the party-list, it must be inclusive and non-discriminatory. This same standard has to be applied to the accreditation of all party-lists.

The process of accreditation of party lists by the COMELEC should involve marginalized sector representatives. While there are legislations that emphasize equal representation of sectors, there are still several party lists in the 18th Congress that don't necessarily represent any clear and definite marginalized populations. Admittedly, the voting population vote for their party-lists based on familiarity or proximity, or even residency, instead of understanding that party-lists are supposed to represent actual marginalized groups.

Party-list groups like AAMBIS-OWA, Ako Bicol Political Party, CIBAC and Talino at Galing ng Pinoy (IGP) don't seem to point to a specific marginalized group. They, instead, seem to be very broad and ambiguous or simply do not represent any marginalized group, but rather an ethnolinguistic group or a provincial organization. Authors have also opined that party-lists have become political tools that satisfy the fancy of political dynasties (Yee 2019), for example, that of Iloilo 1st District's AAMBIS-OWA Party-List (Marzan and Espina-Varona 2022).

While these party-lists have received the blessings of COMELEC during the last elections, it does make you wonder who exactly they are representing. Consequently, does being marginalized even matter anymore?

³³ 18th Congress, HB 00065

Of course, we have seen the same trend in the 2022 elections. There were some interesting new party-list groups that were declared eligible to run in the 2022 national elections following COMELEC rules and regulations³⁴, notably WOW Pilipinas Party-List, MOCHA Party-List, UMA Ilonggo Party-List, Barkadahan Party-List, and SMILE Party-List (COMELEC 2022).

There is very little room to even assess the performance of the previous party-lists, which would inform both the COMELEC as to their accomplishments and the voters as to their platforms.

However, the Constitution does not require party-lists to legislate in favor of their sectors. The party-lists are not restricted from proposing bills that favor other sectors or a specific district or locality. Their duty to legislate in favor of their specific sector seems to just be what is expected of them, as their very success in garnering a seat during the preceding elections is hinged on votes from people that they supposedly represent and to whom they are accountable for legislation that favors these voters.

Would it then be unconstitutional to enact a law that institutionalizes performance indicators for party-lists? The constitution does provide Congress with the power and freedom to regulate the party-list system. It is opined that amending the party-list system will be beneficial to ensure that there are clearer definitions for marginalized groups. Consequently, it would secure the party-list system from being co-opted by traditional politics and political dynasties. However, would policing the party-list system to make it favorable to marginalized groups be violative of the very tenets of democracy?

We are left with more questions than answers. While this topic is heavily studied by policy analysts and lawyers alike, there is still room to improve the party-list system, which is part and parcel of our flourishing democracy of, for, and by the people. ■

Acknowledgment

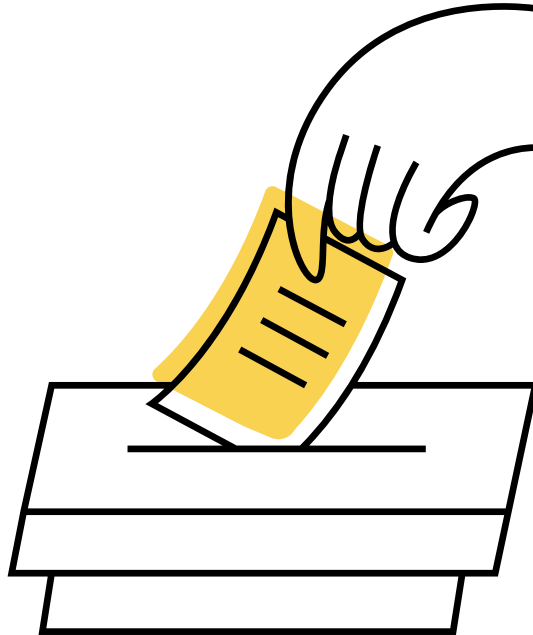
The author would like to acknowledge Atty. Felipe Joaquin “Quino” A. Reyes III and Atty. Jon Cerlan Bangoy for the support and mentorship in the writing of this article prior to submission for publication.

³⁴ Commission on Elections, Rules, and Regulations for the Conduct of Raffle of Party-List Groups to Determine the Order of their Listing on the Official Ballot in Connection with the 2022 National and Local Elections, Partially Amending Resolution 10695, Resolution No. 10733, Sec. 1 (November 24, 2021).

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"Voting is not only our right; it is our power."

- LOUNG UNG



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TOWARDS A CLEAN AND HONEST ELECTION: Jurisprudence on Election-Related Offenses

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“The vote is precious, almost sacred. It is the most powerful non-violent tool we have in a democratic society, and we must use it”¹. Democracy thrives when people actively participate and take part in social and political reform. Pastor H.E Fosdick (cited in Stevensons 1937) reasoned that Democracy is based upon the conviction that there are extraordinary possibilities in ordinary people².

The recently concluded May 09, 2022 election is a testament to this conviction despite the still lingering threat of COVID-19. The Commission on Elections (COMELEC) mentioned that despite the lingering threat of COVID-19, at least 76.5 million registered to cast their ballots. This shows a clear indication that Filipinos are determined to exercise their right to vote.³ A peaceful and effective method of selecting political leaders is through an election. A nation's citizens elect its leaders through the democratic process of voting. As a result, citizens can influence political leadership. An election is the expression of the sovereign power of the people.⁴ It is an embodiment of the popular will and Filipinos must turn out in huge numbers and understand the importance of elections in a democratic society.

To accomplish this, election laws are intended to effectively protect the sovereign right of every citizen, and in so doing, safeguard the ends of democracy. The Omnibus Election Code of the Philippines is the country's compiled codification of the fundamental laws on elections. Its primary objective is to protect the integrity of the elections and respect the will of the electorate by suppressing all evils that may vitiate its purity and sanctity. In short, the Omnibus Election Code is the basic law on elections but, the real concern is whether the code will be adequate to combat the

¹ John Lewis, Twitter post, July 2016, 3:39 a.m.,

<https://twitter.com/repjohnlewis>

² Burton Egbert Stevensons. *The Home Book of Quotations, Classical and Modern*. (1937)

³ As of December 14, 2021, the number shows that 65.7 Million are domestic voters and around 1.8 million pertain to overseas voters, a figure which could still increase. According to a poll body, 65.7 million or 56% of the voters in the country are between the ages of 18 to 41 which are considered the “prime movers” and there are considerably 12 million senior citizen voters on May 9, 2022. Statistics also show that there are more Filipinos registered to vote this year compared to the total registered voters in 2016 which was roughly around 54.3 Million during the national and local elections and around 61.8 Million in the 2019 midterm elections.

⁴ O'Hara v. COMELEC, G.R. Nos. 148941-42 379 S.C.R.A. 247 (March 12, 2002) (Phil.)

current unlawful election practices, especially in this age of technology where almost everything is done online. This paper revisits the salient provisions of the OEC and provides a discussion on recent jurisprudence related to the most common election-related offenses as penalized by the code.

The Omnibus Election Code

The Omnibus Election Code (Batas Pambansa Blg. 881) promulgated in 1985 sets forth the general provisions governing the conduct of elections of public officers and to the extent appropriate, all referenda and plebiscites. Article XXII of the said code enumerates the following prohibited acts which constitute election offenses⁵:

- i. Vote-buying and vote-selling;
- ii. Conspiracy to bribe voters;
- iii. Wagering upon the result of the election;
- iv. Coercion of subordinates (repealed);
- v. Threats, intimidation, terrorism, use of a fraudulent device, or other forms of coercion;
- vi. Coercion of election officials and employees;
- vii. Appointment of new employees, creation of the new position, promotion, or giving salary increases;
- viii. Transfer of officers and employees in the civil service;
- ix. Intervention of public officers and employees;
- x. Undue influence;
- xi. Unlawful electioneering;
- xii. Prohibition against the dismissal of employees, laborers, or tenants;

⁵ Omnibus Election Code, B.P. Blg.881, as amended (Phil).

- xiii. Appointment or use of special policemen, special agents, confidential agents, or the like;
- xiv. Illegal release of prisoners before and after the election;
- xv. Use of public funds, money deposited in trust, equipment, and facilities owned or controlled by the government for an election campaign;
- xvi. Deadly weapons;
- xvii. Carrying firearms outside residence or place of business;
- xviii. Use of armored land, water, or aircraft;
- xix. Wearing of uniforms and bearing arms;
- xx. Policemen and provincial guards acting as bodyguards or security guards;
- xxi. Organization or maintenance of reaction forces, strike forces, or other similar forces;
- xxii. Prohibition against release, disbursement or expenditure of public funds;
- xxiii. Prohibition against construction of public works, delivery of materials for public works and issuance of treasury warrants and similar devices;
- xxiv. Suspension of elective provincial, city, municipal or barangay officer;
- xxv. Prohibition on:
 - (a) Registration of Voters;
 - (b) Voting;
 - (c) Canvassing;
 - (d) Those common to all boards of election inspectors and boards of canvassers;
 - (e) Candidacy and campaign;
- xxvi. Other prohibitions.

Vote-buying and vote-selling

Any person, be it the giver, offeror, or promisor of money or anything of value, is identified to be liable as principal in vote-buying. The giving or promising of money or anything of value, giving or promising any office or employment, franchise or grant either public or private, making or offering to make an expenditure, directly or indirectly, causing an expenditure to be made to any person, association, corporation, entity, or community. To achieve the purpose of inducing anyone or the public, in general, to vote for or against any aspirant, or withhold his vote in the election, or to vote for or against any aspirant for nomination or choice of a candidate in a convention, or similar selection process of a political party constitute vote-buying.

On the other hand, any person, association, corporation, group, or community, be it the solicitor, acceptor, recipient, or conspirator, are to be deemed liable as principals in vote-selling. This can be committed either through soliciting or receiving directly or indirectly, any expenditure or promise of any officer of employment, public or private, to vote for or against any aspirant for nomination or choice of a candidate in a convention or similar selection process of a political party.

In *Lozano vs. Comelec (1991)*, the Supreme Court emphasizes that a complaint for vote-buying must be pursued against both the buyer and the seller because the law on vote-buying also penalizes vote-selling⁶.

To prove vote-buying, Section 28 of Republic Act No. 6646 considers the presentation of a complaint for vote-buying or vote-selling supported by affidavits of complaining witnesses attesting to the offer or promise by or of the voter's acceptance of money or other consideration from relatives, leaders or sympathizers of a candidate, as a sufficient basis for an investigation to be immediately conducted directly by the COMELEC, or through its duly authorized legal officers⁷. This provision exempts any person, otherwise guilty of either vote-buying or vote-selling, who voluntarily gives information and willingly testifies in any official investigation or proceeding, from prosecution and punishment for the offenses with reference to which his information or testimony was given.

In *Bernardo vs. Abalos (2001)*, the Supreme Court ruled that in the absence of affidavits of complaining witnesses attesting to an offer of money, or other considerations or acceptance of such offer, self-serving statements and uncorroborated video and visual recordings and photographs showing father and son who treated public school teachers for free transportation, food, and drinks, during which it was announced that they will be given hazard pay and additional allowance, are insufficient to prove vote-buying against them⁸.

⁶ *Lozano v. COMELEC*, GR No. 94626 (October 28, 1991) (Phil.)

⁷ An Act Introducing additional Reforms in the Electoral System and for other Purposes, Rep. Act No. 6646, (January 5, 1988) (Phil.)

⁸ *Bernardo v. Abalos*, G.R. No. 137266, (December 5, 2001) (Phil.)

The Supreme Court enunciated in *Nolasco vs. Comelec* (1997), that affidavits sufficiently detailing admission of individuals who received money to vote for a candidate, apprehension of two individuals for attempting to vote even if not registered, possessing pay envelopes with unexplained money, and inscription to vote for a candidate, destined for the teachers a day before elections, among others, are sufficient to disqualify a candidate against his mere denial⁹.

A voter is part of the electorate, considered the powerful one, in an ideal democratic setting. If a voter accepts money from vote-buying candidates, it would mean that the voter surrenders the power to shape the government by choosing leaders without external influences.

Conspiracy to Bribe Voters

Bribing voters is illegal. This said act is committed when two or more persons, whether candidates or not, who agree to commit vote-buying and vote-selling and decide to commit either buying or selling can be held guilty of the election offense of conspiracy to bribe voters. Conspiracy is presumed when at least one voter in different precincts representing at least (20%) of the total precincts in any municipality, city, or province has been offered, promised, or given money, valuable consideration or other expenditure by a candidate's relatives, leaders, and/or sympathizers to promote the election of such candidate constitutes a disputable presumption of conspiracy to bribe voters. There exist a disputable presumption of involvement of a candidate and of his principal campaign managers, where such proof affects at least 20% of precincts of the municipality, city, or province to which the public office aspired by the favored candidate relates.

As emphasized in *Comelec vs. Espanol* (2003), Section 28 of R.A. No. 6646 governs the prosecution of the crimes of vote-buying and vote-selling. Under the last paragraph of the said provision, any person guilty of vote-buying and vote-selling who voluntarily gives information and willingly testifies on violations of paragraphs (a) and (b) of Section 261 of BP 881 shall be exempt from prosecution and punishment for the offense with reference to which their information and testimony were given¹⁰.

⁹ Nolasco v. COMELEC, G.R. No. 122250 & 122258, 275 S.C.R.A.763 (July 21, 1997) (Phil.)

¹⁰ COMELEC v. Español, G.R. No. 149164-73, (December 10, 2003) (Phil.)

Coercion of subordinates

But take note that this particular section has been repealed by Republic Act 7890 and correlates with Art. 286 of the Revised Penal Code, as amended¹¹.

With the express repeal of Section 261(d), the basis for disqualifying Javier no longer existed. As held in *Jalosjos, Jr. vs. Commission on Elections* [t]he jurisdiction of the COMELEC to disqualify candidates is limited to those enumerated in Section 68 of the Omnibus Election Code. All other election offenses are beyond the ambit of COMELEC jurisdiction. They are criminal and not administrative in nature¹². Pursuant to sections 265 and 268 of the Omnibus Election Code, the power of the COMELEC is confined to the conduct of preliminary investigation on the alleged election offenses for the purpose of prosecuting the alleged offenders before the regular courts of justice¹³.

Appointment of new employees, creation of a new position, promotion, or giving salary increases

These are all considered acts prohibited during the period of forty-five (45) days before a regular election and thirty (30) days before a Special Election. The possible offenders are the head, official, or appointing officer of a government office, agency, or instrumentality, whether national or local, including Government-owned and controlled Corporations (GOCC). The moment they appoint or hire any employee, whether provisional, temporary or casual, or create and fill any new position, except upon prior authority of the Commission or promote, or give any increase of salary or remuneration or privilege to any government official or employee, including those in the GOCC's, they are deemed guilty of the preceding offenses. This prohibition under this section does not apply if the appointment is intended to fill out a vacancy in a local elective position under the Local Government Code of 1991. What is prohibited are those appointments covered by the Civil Service Law.

Recapitulated in the case of *Ong vs. Martinez* (1990), the permanent vacancy for councilor exists and its filling up is governed by the Local Government Code while the appointment referred to in the election ban provision is covered by the Civil Service Law. For having satisfied the formal requisites and procedure for appointment as Councilor, which is an official position outside the contemplation of the election ban, the respondent's appointment is declared valid¹⁴.

¹¹ An Act Amending Article 286, Section Three, Chapter Two, Title Nine of Act No. 3815, As Amended, Otherwise known as the Revised Penal Code (February 20, 1995) (Phil.), <https://www.officialgazette.gov.ph/1995/02/20/republic-act-no-7890>

¹² Javier v. COMELEC, G.R. No. 215847 (January 12, 2016) (Phil.)

¹³ Blanco v. COMELEC, et al., 577 Phil. 622, 633 (2008), citing Codilla v. De Venecia, G.R. No. 150605, (December 10, 2002) (Phil.)

¹⁴ Ong v. Martinez, G.R. No. 87743, (August 21, 1990) (Phil.)

Bear in mind that the word “appointment” does not include designation which connotes imposition by law, of additional duties of an incumbent official. It is considered only an acting or temporary appointment, which does not confer security of tenure on the person named¹⁵.

Further, renewal of appointment of a temporary, casual, substitute, and contractual personnel are not covered by the prohibition and do not need prior authorization from the Commission. What is prohibited is the appointment of new employees, not a renewal of the appointment of old employees. The commission shall not grant the authority sought unless it is satisfied that the position to be filled up is essential to the proper functioning of the office or agency concerned and that the position shall not be filled in a manner that may influence the election.

Intervention of public officers and employees¹⁶

Any officer/employee in the civil service x x x who directly or indirectly intervenes in any election campaign or engages in any partisan political activity¹⁷, except to vote or to preserve public order, such as a peace officer.

It is pivotal to remember that due to constitutional and statutory prohibitions, government officers or employees are not permitted to campaign during the elections¹⁸.

Use of public funds, money deposited in trust, equipment, and facilities owned or controlled by the government for an election campaign

Incumbent elective officials who are running for a position or are candidates in the election are to refrain from any partisan political activity. Incumbent or not, or any person for that matter is prohibited from using any printing press, radio, or television station or audio-visual equipment operated by the government or by its divisions, subdivisions, agencies or instrumentalities, equipment, vehicle, facility, apparatus, or paraphernalia owned by the government or by its political subdivisions, agencies. But

¹⁵ “COMELEC Resolution 10030: Prohibition against Appointment or Hiring of New Employees; Creation or Filling Up of New Positions; Giving Salary Increases; Transfer or Detail of Civil Service Employees; and Suspension of Elective Local Officials in connection with the May 09, 2016 National and Local Elections,” *CIVIL SERVICE GUIDE: A Compilation of Issuances on Philippine Civil Service*, Accessed July 9, 2022, <https://www.csguide.org/items/show/800>.

¹⁶ Ibid.

¹⁷ COMELEC and Civil Service Commission (CSC) Joint Circular No. 001, series of 2016: Advisory on Electioneering and Partisan Political Activity
<http://www.csc.gov.ph/phocadownload/userupload/irmoitd/comelec-csc%20joint%20circular%20no.%20001%20s.2016.pdf>

¹⁸ CONST., (1987), Art. IX(B), Sec. 2, Par. 4 (Phil).

incumbent officials may, for official functions, use these government equipment etcetera, during the campaign period, provided, it is purely limited to their official functions and not under any guise whatsoever, directly or indirectly, for any election campaign or for any partisan political activity.

Though it was opined that the line that separates official functions and campaign sorties is too thin and often blurred to make it difficult, if not impossible, to enforce this prohibition. In the absence of a sense of propriety of some incumbent officials who are candidates, whatever benefit or advantage such official functions give their candidacy may fall within inequity of the incumbent rule.

Deadly weapon

Another prohibition under the Omnibus Election Code is carrying any deadly weapon in the polling place, and within its 100-meter radius during voting, counting of votes, or preparation of election returns. A deadly weapon does not refer only to guns. It includes all types of bladed instruments, hand grenades, and other explosives¹⁹. During the election period, the Commission prohibits any person from bearing or transporting deadly weapons outside his or her residence or place of business, and in all public places, including any building, street, park, and in private vehicles or public conveyances²⁰. The prohibition against deadly weapons is not absolute as it does not include pyrotechnics and bladed instrument in which possession is necessary to the occupation of the possessor or when it is a tool for a legitimate activity, or when authorized by the Commission.

Carrying firearms outside residence or place of business

Firearm refers to any handheld or portable weapon, whether a small arm or light weapon, that expels or is designed to expel a bullet, shot, slug, missile, or any projectile, discharged by means of the expansive force of gases from burning gunpowder or other forms of combustion or any similar instrument or implement. The barrel, frame, or receiver is considered a firearm.

¹⁹ “COMELEC Resolution 10015: Rules and Regulations on: (1) The ban on the bearing, carrying or transporting of firearms and other deadly weapons; and (2) The employment, availment or engagement of the services of security personnel or bodyguards during the election period of the May 9, 2016 Synchronized National and Local Elections (November 13, 2015)

<https://comelec.gov.ph/index.html?r=2016NLE/Resolutions/res10015>

²⁰ “COMELEC Resolution 10728: Rules and Regulations on (1) The ban on the bearing, carrying, or transporting of firearms and other deadly weapons; and (2) The employment, availment, or engagement of the services of security personnel or bodyguards during the election period of the May 9, 2022 Synchronized National and Local Elections (November 10, 2021)

https://comelec.gov.ph/php-tpls-attachments/2022NLE/Resolutions/com_res_10728.pdf

The law also includes imitation firearms, toy guns, airguns, and airsoft guns in the definition of the term “firearms”. Imitation firearm refers to a replica of a firearm or other device that is so substantially similar in coloration and overall appearance to an existing firearm as to lead a reasonable person to believe that such imitation is a real firearm. An airsoft rifle or pistol includes battery-operated, spring and gas type powered rifles or pistols which discharge plastic or rubber pellets only as bullets or ammunition. This differs from replicas as the latter does not fire plastic or rubber pellet. It is a special type of air gun, which is restricted in its use only to sporting activities, such as war game simulation.

However, you may wonder why airguns or airsoft weapons are included in the definition of the term firearm. It is to avoid the possible use of recreational guns in sowing fear, intimidation, or terror during the election period for the reason that ordinary citizens may not be able to distinguish between a real gun and an airsoft gun. The objective is to hold free, orderly, honest, peaceful, and credible elections. Take note, however, as settled in the case of *Oreo vs. Comelec (2010)*, that replicas and imitations of airsoft guns and airguns are not included in the term firearm simply because they are not subject to regulation, unlike airsoft guns²¹.

Any permit to carry firearms outside residence and letter order, mission order duly issued by government authorities are automatically suspended, ineffective, and without force and effect at the onset of and during the election period. Only regular members or officers of the Philippine National Police (PNP), the Armed Forces of the Philippines (AFP), and other government enforcement agencies may be authorized to carry possess firearms during the election period, provided, that when in possession of firearms, the deputized law enforcement officer must be in full uniform showing clearly and legibly his or her name, rank and serial number which remains visible at all times and in the actual performance of his or her election duty in the specific area designated by the Commission. They must be duly authorized to possess a firearm and to carry the outside of residence by virtue of a valid permit to carry or a valid mission order or letter order, in the actual performance of official law enforcement and/or security duty, or are going to or returning from his or her dwelling/barracks or official station and bearing, carrying or transporting a maximum of two (2) firearms.

Private individuals may also be authorized. But the law specifically enumerated who these private individuals are. They are cashiers and disbursing officers or persons who by nature of their official duties, profession, business, or occupation habitually carry large sums of money or valuables, including persons who are considered high-risk to bear, carry, and transport firearms and other deadly weapons may be granted authority. When possessing firearms, they must be currently employed under the conditions stated in his or her application, in the actual performance of his or her duties, specifically when transporting deposits, disbursing payrolls, or carrying large sums of money or valuables, in possession of the Certificate of Authority and other applicable firearm licenses, and carrying a maximum of two (2) firearms.

²¹ *Orceo v. COMELEC*, G.R. No. 190779, (March 26, 2010) (Phil.)

A person is considered high risk if his or her application is supported by credible evidence (i.e. threat assessment, police reports, etc.), the Committee on the Ban on Firearms and Security Personnel (CBFSP), after a careful background check and thorough evaluation finds sufficient and urgent reason to justify the grant of exemption.

Moreover, private security guards can be authorized to carry firearms, provided that they must strictly observe the following:

They must be:

- a. in their agency-prescribed uniform with the agency-issued identification card prominently displayed and visible at all times, showing clearly the name and position;
- b. in possession of a valid License to Exercise Security Profession with duty Detail Order, and valid firearms license of the agency/company where they are employed;
- c. deployed by the Private Security Agency (PSA) or Private Detective Agency (PDA) or Company Guard Force (CGF) duly licensed by the PNP;
- d. in the actual performance of official duty at his specified place or area of duty; and
- e. carrying one small firearm, unless specifically allowed otherwise under existing laws, rules, and regulations²².

There are several ways the COMELEC enforces a firearms ban, among others, it establishes at least one checkpoint in every city or municipality led by a regular member of the AFP or PNP with a rank of at least Lieutenant or Inspector to effectively implement the firearms ban during the election period. In cases where there is no available AFP Lieutenant or PNP Inspector, the highest ranking officer designates a lower ranking officer to act as team leader of the checkpoint. The Commission has broad power to provide details of who may bear, carry or transport firearms or deadly weapons, as well as define firearms, among others.

²² “COMELEC Resolution 8714: Rules and Regulations on the: (1) bearing, carrying or transporting of firearms and other deadly weapons; and (2) The employment, availment or engagement of the services of security personnel or bodyguards during the election period of the May 10, 2010 National and Local Elections (June 15, 2012)
https://comelec.gov.ph/php-tpls-attachments/References/ComelecResolutions/Plebiscites/PlebiscitesCebuLaguna/com_res_9458.pdf

Use any armored land, water or aircraft

During the campaign period, the day before and on election day, any person is prohibited to use any armored land, water, or aircraft, provided with any temporary or permanent equipment or any other device or contraption for the mounting or installation of cannons, machine guns, and other similar high caliber firearms, including military-type tanks, half trucks, scout trucks, armored trucks, of any make or model, whether new, reconditioned, rebuilt or remodeled. However, banking or financial institutions and all business firms may use not more than two armored vehicles strictly for, and limited to, the purpose of transporting cash, gold bullion, or other valuables in connection with their business from and to their place of business, upon prior authority from the COMELEC.

Wearing of uniform and bearing arms

The wearing of uniforms and bearing arms outside the immediate vicinity of his or her place of work during the election period, on the day before, and the very day of the election is prohibited. This covers any member of security or police organization or government agencies, commissions, councils, bureaus, offices, or Government-Owned and Controlled Corporations (GOCCs), or privately-owned or operated security, investigative, protective, or intelligence agencies. Security guards hired to secure the premises of offices or residences need to secure authority to carry firearms because their place of work or its immediate vicinity cannot be fixed with ease as they adjoin other offices or residences. But security guards assigned to secure all the houses in a subdivision, all offices in one compound, all factories within a complex, or all stores with a mall in which visible boundaries can easily be determined, need to secure authority only when the firearms are brought outside the subdivision, or compound, or complex, or mall.

Policemen and provincial guards to act as bodyguards or security guards

These enumerated employees are prohibited to act as bodyguards to any public official, candidate, or any other person for the whole duration of the election. Both sides can be held liable in this scenario. To clarify, members of the Philippine National Police (PNP) can or may be assigned as security detail to private individuals subject to the following measure: no security or protective or intelligence agency is available in the area as certified by the PNP, and when there is a history of violence in the area which is among those considered as an area of concern, the applicant is considered a high-risk individual as evidenced by supporting documents such as but not limited to threat assessment, police reports, etc. and, those who are under the Witness Protection Program of the government.

Prohibition against release, disbursement, or expenditure of public funds

Release, disbursement, or expenditure of any and all kinds of public works are deemed prohibited except these:

- a. Maintenance of existing and/or completed public works project;
- b. Work undertaken by contract through public bidding held, or negotiated contract awarded before the 45-day period before the election;
- c. Payment for the usual cost of preparation for working drawings, specifications, bills of materials, estimates, and other procedures preparatory to actual construction including the purchase of materials and equipment, and all incidental expenses for wages of watchmen and other laborers employed for such work in the central office and filed storehouses before the beginning of such period;
- d. Emergency work necessitated by the occurrence of a public calamity, but such work shall be limited to the restoration of the damaged facility;
- e. Ongoing public works projects commenced before the campaign period or similar projects under foreign agreements;
- f. Public works projects contracted through the Build-Operate-Transfer law since there are no public funds disbursed in these projects.

The Department of Social Welfare and Development (DSWD), and any other office in other departments of the government that are performing similar functions except salaries for the personnel and such other routine and normal expenses and such other expenses as may be authorized by the Commission.

Housing and any other office in any other department of the government performing similar functions except for salaries of personnel and for such other necessary administrative or other expenses as may be authorized by the Commission.

Moreover, during the 45-day prohibited period, no candidate or his or her spouse or relative within the second civil degree of affinity or consanguinity, participates, directly or indirectly, in the distribution of any relief or other goods to the victims of calamity and disaster. This is so, even if the candidate uses his or her resources. This prohibition is to avoid or prevent candidates from buying votes in the guise of charity. It is in the nature of a prohibited donation.

Prohibition against the construction of public works, delivery of materials for public works, and issuance of treasury warrants and similar devices

Any person can be held guilty of this offense if he or she undertakes the construction of any public works except for projects or works exempted in Section 261(v) of the OEC and the undertaking was done within the 45 days before elections, he or she issued, used or availed of treasury warrants or any device undertaking future delivery of money, goods, or other things of value chargeable against public funds and the issuance, use, and availing of the treasury warrant or device occurred within the 45-day period within elections.

Suspension of elective provincial, city, municipal, or barangay officer

The suspension mentioned here easily refers to the temporary forced removal from the exercise of the office. It includes suspension both as a penalty and preventive suspension. Any elective provincial, city, municipal or barangay officer cannot be suspended during the election period. The prohibition against the suspension, however, is not absolute, as the elective official concerned may still be suspended upon prior approval of the Commission or when it is intended to apply the Anti-Graft and Corrupt Practices Act concerning suspension and removal of elective officials.

If there are prohibitions imposed upon public officials there are also those imposed upon the following:²³

- i. Registration of Voters;
- ii. Voting²⁴;
- iii. Canvassing;
- iv. Those common to all boards of election inspectors and boards of canvassers;
- v. Candidacy and campaign;

²³ Ibid.

²⁴ Note that any person who fails to cast his vote without justifiable excuse; *This provision has also been repealed by Section 1, Article V of the 1987 Constitution.* Ibid.

Other prohibitions

They are violated by:

- a. Any person who sells, furnishes, offers, buys, serves, or takes intoxicating liquor on the days fixed by law for the registration of voters in the polling place, on the day before the election, or on election day. Hotels and other establishments duly certified by the Department of Tourism as tourist-oriented and habitually in the business or catering to foreign tourists may be exempted for justifiable reasons upon prior authority of the Commission on Elections. Foreign tourists taking intoxicating liquor in said authorized hotels or establishments are exempted;
- b. Any person who opens in any polling place or within a radius of thirty (30) meters thereof on election day and during the counting of votes, booths, or stalls of any kind for sale, dispensing, or display of wares, merchandise, or refreshments, whether solid or liquid or for any other purposes;
- c. Any person who holds on election day, fairs, cockfights, boxing, horse races, jai-alai, or any other similar sports;
- d. Any operator or employee of a public utility or transportation company operating under a certificate of public convenience, including government-owned or controlled postal service or its employees or deputized agents who refuse to carry official election mail matters free of charge during the election period. In addition to the penalty prescribed, such refusal shall constitute a ground for cancellation or revocation of certificate of public convenience or franchise; and
- e. Any person who operates a radio or television station who, without justifiable cause, discriminates against any political party, coalition, or aggroupment of parties or any candidate in the sale of air time. In addition to the penalty prescribed, such refusal shall constitute a ground for cancellation or revocation of the franchise.

Under Section 263 of the Omnibus Election Code, the principals, accomplices, and accessories as defined in the Revised Penal Code are criminally liable for election offenses. If one responsible be a political party or an entity, its president or head, the officials and employees of the same, performing duties connected with the offense committed, and its members who may be principals, accomplices, or accessories shall be liable, in addition to the liability of such party or entity.

Section 264 thereof provides that any person found guilty of an election offense is punished with, as a general rule, imprisonment of not less than one (1) year but not more than six (6) years and shall not be subject to probation but with exemptions on these cases:

- a. In case of illegal release of prisoners before and after the election, the offenders, if convicted by a competent court suffered the penalty of *prison mayor* in its maximum period if the prisoner/s so illegally released commits any act of intimidation, terrorism, or interference in the election;
- b. In case of the prohibition against warrantless arrest in connection with the election campaign, the offender is punished by imprisonment of not less than six years and one day nor more than 12 years, with the accessory penalties for election offenses;
- c. In case of the special election offense of electoral sabotage, the penalty imposed is life imprisonment (Section 27, Republic Act No. 6646 as amended by Section. 42, Republic Act No. 9369)²⁵;
- d. In cases of prohibited acts under Sec. 29, RA 8436 as amended by Sec. 28 of RA 9369, which carry the penalty of imprisonment of eight years and one day to 12 years.

In addition, the guilty party is disqualified to hold public office and deprived of the right of suffrage. If the convict is a foreigner, he or she is deported after the prison term is served. If it is a political party, it is fined with not less than Php10,000 imposed upon such party after criminal action has been instituted where its corresponding officials have been found guilty.

All Election offenses shall prescribe after five (5) years from the date of commission.

Special Laws Governing Conduct of Election

Aside from the Omnibus Election Code, there are Special Laws that govern the conduct of elections in the Philippines. However, these special laws do not sufficiently cover disinformation and campaign propaganda posted online which is an increasing problem in the conduct of free and fair elections in the Philippines.

²⁵ An Act amending Republic Act No. 8436, Entitled “An Act Authorizing the Commission on Elections to use an Automated election System in the May 11, 1998, National or Local Elections and in subsequent National and Local Electoral Exercises,...And for Other Purposes” (January 23, 2007) (Phil.)

1. Republic Act 6645- An Act Prescribing the Manner of Filling a Vacancy in the Congress of the Philippines, December 28, 1987;
2. Republic Act 7166- An Act providing for Synchronized National and Local Elections and for Electoral Reforms, Authorizing Appropriations Therefor and for Other Purposes, November 26, 1991;
3. Republic Act 7941- The Party-List System Act, 03 March 1995;
4. Republic Act No. 8189- The Voter's Registration Act of 1996, 11 June 1996;
5. Republic Act No. 8436 -An Act Authorizing the Commission on Elections to Use an Automated Election In the May 11, 1998 National or Local Electoral Exercises, December 22, 1997;
6. Republic Act No. 9006- Fair Election Act, 12 February 2001;
7. Republic Act 9189- The Overseas Voting Act of 2003 (February 14, 2003), as amended by RA No. 10590, May 27, 2013;
8. Republic Act No. 9369 – An Act Amending RA No. 8436 entitled, An Act Authorizing the Commission on Elections To Use an Automated Election System in the May 11, 1998 National or Local Elections And In subsequent National and Local Electoral Exercises, To encourage Transparency, Credibility, Fairness, and Accuracy of Elections, Amending for the Purpose Batas Pambansa Blg 881, as amended, Republic Act No. 7166, and Other Related Elections Laws; 23 January 2007.

Elections and the rise of disinformation networks

This 2022 National Election has been under tremendous pressure due to the lingering Covid-19 crisis which has created new challenges for the government and pushed them to make changes to the voting process. Even though these aforementioned regulations exist to serve as frameworks for a peaceful and fair election, we currently face a pressing issue with social media being utilized to spread false information.

For the 6th straight year, the Philippines remains the top country worldwide whose citizens spend the most time on the internet and social media²⁶, where 68% of the country's population has internet access, and over 92 million recorded social media users. Most certainly, social media has played a significant role in candidates' campaign strategies in the 2022 Elections. However, it has an alarming downside: it has made it possible for dishonest people to rapidly reach a sizable audience with their deceptive tactics. There are these so-called online political analysts who are allegedly paid to foster confusion and disinformation for the benefit of their candidates.

To regulate this, the poll body, as in every election, issues rules to implement the Fair Election Act, or R.A. No. 9006. The recently concluded 2022 election introduced the latest rules contained in COMELEC Resolution No. 10730²⁷, which provides among others, the expanded social media regulations, that only websites, blogs, and social media pages registered by candidates and political parties may run campaign ads for the May 9, 2022 elections, and the poll body has issued a stern warning that the information in online campaign ads should be truthful, not misleading, and not cast doubt on the integrity of the electoral process.

One may ask, does social media affect the result of the election? The results of the May 2022 election indicate that it heavily influenced election turnout. Rappler reported that Marcos Jr. has the most well-coordinated network on Facebook among all the candidates.

"His community operates in a vacuum, effectively drowning out content from sources other than those supportive of him", that the big proportion of supporters in Marcos Jr.'s network indicates that the years-long information operations online have successfully created a massive echo chamber of Marcos family supporters²⁸.

If based on the role of social media in the 2016 presidential elections, it was found that Pres. Duterte's online fans then were the most active, engaged, and networked²⁹. With this obvious impact on the political activities in our country, social media companies are being challenged to act like the fifth pillar of democracy³⁰, or the

²⁶ Kyle Chua, "PH remains top in social media, internet usage worldwide" *Rappler*, (January 28, 2021) <https://www.rappler.com/technology/internet-culture/hoorsuite-we-are-social-2021-philippines-top-social-media-internet-usage/>

²⁷ COMELEC Resolution 10730: Rules and Regulations Implementing R.A. 9006, Accessed August 11, 2022, https://comelec.gov.ph/php-tpls-attachments/2022NLE/Resolutions/com_res_10730.pdf

²⁸ Pauline Macaraeg, "How candidates utilized social media for the 2022 elections, *Rappler*, (May 7, 2022) <https://www.rappler.com/nation/elections/study-how-candidates-utilized-social-media-2022-philippine-elections/>

²⁹ *Journal of East Asian Studies*, Volume 20, Issue 3, November 2020, pp. 353 – 374, Accessed: August 11, 2022, <https://doi.org/10.1017/jea.2020.11>

³⁰ Juju Baluyot, "ELECTIONS 2022: Should social media become the 'fifth pillar' of our democracy?" *Yahoo News*, (May 5, 2022), <https://ph.news.yahoo.com/comment-should-social-media-become-the-fifth-pillar-of-our-democracy-philippines-032140726.html>

Fifth Estate, and fully acknowledge the cruciality of its role in the development of the country.

Consequently, the current election laws must be strengthened so that social media becomes a significant tool for political communication and voter education. Elsewhere, we see countries such as Canada's *Elections Modernization Act* which has proven insufficient to control election advertising in the age of the Internet and social media, as gaps remain that the current law can be circumvented³¹. These aforementioned laws have been constantly amended or supplemented to provide proper direction for the current or coming elections but we must acknowledge the fact that, in addition to passing laws, Election Officials have a variety of efficient options at their disposal to fight disinformation brought about by the social media and to reinforce voter's education.

For example, establishing communication channels with the general public and important stakeholders such as community organizations, youth organizations, candidates, and the media to fact-check information before the publication of the material and launch them only through official sources is one way to increase the people's trust in the government. Developing plans and procedures for disseminating corrective information while keeping an eye out for false and misleading election-related information. Creating easy-access channels for citizens to report instances of such disinformation to stop it, nipping it one the bud, before it spreads like wildfire causing confusion and proliferation of lies. Implementing and monitoring laws that specifically punish those responsible for online election-related disinformation so people can finally be held accountable for what they irresponsibly share online.

COMELEC, with the help of other agencies and the Local Government Units (LGU), should conduct regular community outreach, especially those in far-flung areas to create connections with regional media and officials to curb disinformation. By doing these, voters can discern truth from lies, exercise their right to vote freely, and increase their confidence in the outcome of the election.

In the Philippines, election represents political freedom. The most notable aspect of it is that it gives ordinary people the power to exercise authority because, without it, democracy would undoubtedly be non-functional. As President Johnson proclaimed that "This right to vote is the basic right without which all others are meaningless. It gives people, people as individuals, control over their destinies³²."

³¹ Reepschlager & Dubois, "New Election Laws are no match for the internet", *Policy Options*, (January 2, 2019), <https://policyoptions.irpp.org/magazines/january-2019/new-election-laws-no-match-internet/>

³² Lyndon Johnson, Voting Rights Act, 1965

No less than the Constitution declares that sovereignty resides in the people and all government authority emanates from them³³. This is a confirmation of the value and importance of each and every Filipino in nation-building.■

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³³ Ibid.

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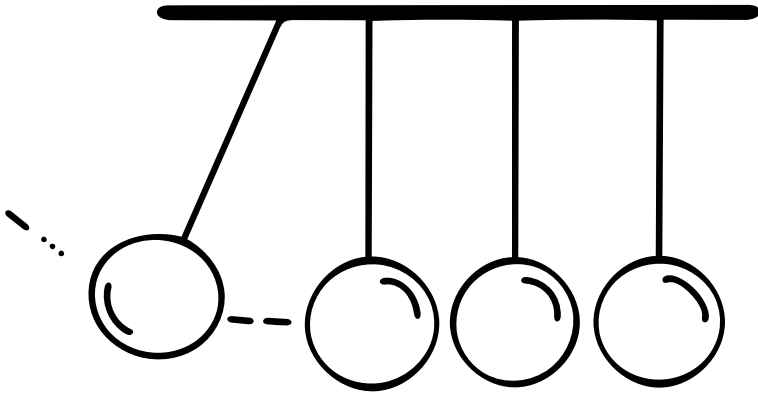
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"Politics swings like a pendulum."

- ED GILLESPIE



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EXPLOITING ELECTORAL EXCHANGES:

The Rules On Substitution Of Candidates In The Philippine Electoral System

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Every six years, Filipinos are set to elect the new President, Vice President, and Senators while the selection of new members of the House of Representatives, mayors, governors, barangay officials, as well as the Sangguniang Panlalawigan, Bayan, and Kabataan are done every three years. In the months before elections, politicians need to campaign where they banner their advocacies, platforms, and general plans for governance. As citizens, we must be invested in the electoral process as this serves as the mechanism to legitimize who will be our carefully chosen leaders who will take the reins in running the country.

One current trend that has left many - political scientists, analysts, politicians, and regular citizens even - perplexed is the drama, chaos, and development when it comes to the substitution of candidates. Indeed, it is essential to be wary of the election process, but it is also crucial for the interest of the general public to discuss the controversy regarding the substitution of candidates¹ which has caught the public's attention.

Substitution in a nutshell

The cases of electoral substitutions are not of a rare breed. In fact, the US Supreme Court even laid out in the case of *Toporek vs South Carolina State Election Commission (SCSEC)*² that the right to substitute, which is covered under Section 23-266 of the South Carolina Code of Laws,

authorizes a political party to substitute one candidate for a previously nominated candidate if the nominated candidate withdraws or dies prior to the general election. This statute allows a political party to substitute candidates by reconvening its convention or by nomination by that party's state or county executive committee. In the event that substitution is effected, said substituted nominee must be certified no later than thirty days prior to the general election.

Moreover, in the case of *Barr vs Galvin*³, it was discussed in this case that

¹ Gabriel Sebastian Elardo, "Substitution, clarified," Univ. of the East Law Journal, Accessed July 10, 2022, <http://uelawjournal.com/2021/11/17/substitution-clarified/>

² *Toporek v. South Carolina State Election Com'n*, 362 F. Supp. 613 (D.S.C. 1973), <https://casetext.com/case/toporek-v-south-carolina-state-election-com'n>

³ *Barr v. Galvin*, 659 F. Supp. 2d 225 (D. Mass. 2009), (USA) <https://casetext.com/case/barr-v-galvin-6>

Such a right to substitute is guaranteed by the Equal Protection Clause of the Constitution to ensure that the names of the actual candidates appear on the ballot

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...substitution of the name of the proper vice-presidential candidate on the ballot was constitutionally required when the presidential candidate had ultimately selected a running mate different from the one listed on nomination petitions.

In the Philippine setting, the rules on substitution of election candidates are lodged in just a single provision in the Batas Pambansa Bilang 881, also known as the Omnibus Election Code. Rule IX, Section 77⁴ of the said law provides:

Section 77. Candidates in case of death, disqualification, or withdrawal of another.

If after the last day for the filing of certificates of candidacy, an official candidate of a registered or accredited political party dies, withdraws, or is disqualified for any cause, only a person belonging to, and certified by, the same political party may file a certificate of candidacy to replace the candidate who died, withdrew or was disqualified.

The substitute candidate nominated by the political party concerned may file his certificate of candidacy for the office affected in accordance with the preceding sections not later than mid-day of the day of the election. If the death, withdrawal, or disqualification should occur between the day before the election and mid-day of election day, said certificate may be filed with any board of election inspectors in the political subdivision where he is a candidate, or, in the case of candidates to be voted for by the entire electorate of the country, with the Commission.

A litany of Supreme Court cases was resolved regarding the rules on substitution. In *Cerafica vs Comelec*⁵, the court shone light on this particular provision on valid substitutions, wherein the requirements for a valid substitution are first, there is a valid withdrawal of COC after the last day for the filing of COCs; second, the substitute belongs to and is certified to by the same political party to which withdrawing candidate belongs; and third, the substitute filed the COC not later than mid-day of election day.

Recent developments were also introduced regarding the rules on substitution. Back in 2001, the 11th Congress passed RA 9006, known as the Fair

⁴ Omnibus Election Code 1985, s 77 (Phil)

<https://comelec.gov.ph/index.html?r=References/RelatedLaws/OmnibusElectionCode/OECArt9>

⁵ *Cerafica v. COMELEC*, G.R. No. 205136, (December 2, 2014). (Phil)

Election Act. Regarding the rules on substitution, Section 12⁶ of the said law provides that:

In case of valid substitutions after the official ballots have been printed, the votes cast for the substituted candidates shall be considered as stray votes but shall not invalidate the whole ballot. For this purpose, the official ballots shall provide spaces where the voters may write the name of the substitute candidates if they are voting for the latter: Provided, however, that if the substitute candidate is of the same family name, this provision shall not apply.

It can be drawn from this rule that upon the printing of the official election ballots, the substitute candidate must have the same surname as the substituted candidate. Although the common occurrence shows that wives, children, and parents often become substitutes, even a complete stranger with the same surname can be a substitute. The law here does not require a blood relationship, only similarity in the family names⁷.

It can be said that substitutions by reason of death and disqualification can be made until midday of election day, provided that the substitute must be of the same surname. In the case of substitution by reason of withdrawal, the deadline shall be whichever date the COMELEC sets.

To summarize, substitutions by reason of death and disqualification can be made until midday of election day, provided that the substitute must be of the same surname. In the case of substitution by reason of withdrawal, the deadline shall be whichever date the COMELEC sets.⁸

Despite all of this, there seems to be a glaring problem regarding substitutions by virtue of withdrawal. For these cases, the substitute can only file his Certificate of Candidacy within the period fixed by Comelec. As held in *Federico vs. COMELEC*⁹,

The reason for the distinction can easily be divined. Unlike death or disqualification, withdrawal is voluntary. Generally, a candidate has sufficient time to ponder on his candidacy and withdraw while the printing has not yet started. If a candidate withdraws after the printing, the name of the substitute candidate can no longer be accommodated in the ballot and a vote for the substitute will just be wasted.

⁶ Fair Election Act 2001, Sec. 12, <https://www.officialgazette.gov.ph/2001/02/12/republic-act-no-9006/>

⁷ Emil Marañon III, "Should the Comelec prohibit the substitution of candidates?," *Rappler*, (October 15, 2021).

<https://www.rappler.com/voices/thought-leaders/explainer-should-comelec-prohibit-candidate-substitution/>

⁸ *Ibid*.

⁹ *Federico v. Comelec*, G.R. No. 199612, (January 22, 2013). (Phil) <https://elibrary.judiciary.gov.ph/thebookshelf/showdocs/1/55472>

From these patterns, trends, and inferences, Carmel Abao, Ph.D., Assistant Professor in the Department of Political Science at the Ateneo de Manila University, points out that the crux of the matter is clear¹⁰: the mechanism pertaining to the substitution of candidates is supposed to be an option for emergency-like circumstances, where a candidate is incapacitated or for some other serious reason is compelled to withdraw his/her candidacy. The legal option laid down by law is for the candidate to give up his/her candidacy to another candidate, as long as the replacing candidate comes from the same political party.

COMELEC Spokesperson James Jimenez¹¹ further adds that substitution is allowed “to make sure that the political party is not unduly disadvantaged by the sudden withdrawal of a candidate.” He also expounded that when a candidate runs under a political party, that political party has as much at stake in the elections as the individual candidate. If the candidate suddenly drops out of the race, then the poll party is ‘injured.’ A remedy is needed to prevent the injury - substitution.”

Timeline of the Fiasco on Electoral Substitutions

It can be remembered that way back in 2016, Rodrigo Roa Duterte filed his Certificate of Candidacy for Davao City mayor under the PDP-Laban Party. Despite clamor from fellow technocrats, as well as the general public to run for the highest national post, he has announced in various media outlets that he is firm in his conviction of not running as President.

This turned out to be simply a dramatic introduction to the much-awaited 2016 elections. Martin Diño, then a barangay captain, also shared the same political party with Duterte and filed his COC as President. According to Diño¹², initial COMELEC reports branded him as a nuisance candidate, which led him to withdraw his candidacy and paved the way for Duterte as the substitute candidate for President.

Six years after this dramatic upsurge of events, the Dutertes still pulled out the substitution card as their main game plan. Presidential daughter Sara Z. Duterte, who substituted her father as Davao City mayor, topped the surveys as one of the potential candidates (and winners) of the two highest national posts. However, there has been a public display of “staged” filial tensions regarding the 2022 elections: that the two Dutertes agreed only one of them will run for the nationals; that Sara will

¹⁰ Carmel Abao, “Sinungaling! (Substitution and the timeline of lies),” *Rappler*, (November 16, 2021) <https://www.rappler.com/voices/thought-leaders/opinion-liars-substitution-timeline-lies-elections-2022/>

¹¹ Catherine Gonzales, “Comelec spox: Time to regulate substitution option for election aspirants,” *Inquirer.net*, (November 10, 2021), <https://newsinfo.inquirer.net/1513125/comelec-spox-time-to-regulate-substitution-of-election-aspirants>

¹² Rie Takumi, “Martin Diño withdraws candidacy for president, names Duterte as substitute,” *GMA News Online*, (October 29, 2015), <https://www.gmanetwork.com/news/topstories/nation/542407/martin-dino-withdraws-candidacy-for-president-names-duterte-as-substitute/story/>

preserve the Duterte's Davao legacy; and that close Duterte aide, Bong Go will run as vice president in behalf of them." As the months unfolded, it turned out that Inday Sara Duterte became a substitute vice-presidential candidate¹³, replacing Lyle Fernando Uy.

In the 2022 elections, it can also be gleaned that there are numerous instances where substitution has been put in the national spotlight. For the presidential race, Grepor Belgica of Pederalismo ng Dugong Dakilang Samahan (PDDS), the incumbent presidential adviser on religious affairs was substituted by Senator Bong Go¹⁴ while former National Task Force to End Local Communist Armed Conflict (NTF-ELCAC) spokesperson Lt. Gen. Antonio Parlade¹⁵ substituted independent candidate Antonio "Butch" Valdes. In the race for vice presidency, former party-list lawmaker and activist Walden Bello¹⁶ substituted Laban ng Laban ng Masa's vice-presidential candidate Raquel Castillo. For the Senatorial race, Manuel de Castro Jr.¹⁷ was substituted by Joseph Peter Sison for Aksyon Demokratiko; Guillermo Lorenzo Eleazar under Partido para Sa Demokratikong Reporma (PDR) replaced Paolo Redemptus de Andres; Ramon Mitra of Katipunan ng Demokratikong Pilipino replaced Jesus Durian Jr.; People's Reform Party Herminio Harry Roque Jr. filed COC as substitute of Paolo Mario Martelino; and Joseph Ross Jocson of Katipunan ng Demokratikong Pilipino replaced Loreto Tenolet Jr., and outgoing President Rodrigo Duterte substituted senatorial aspirant Liezl Visorde¹⁸ of the Pederalismo ng Dugong Dakilang Samahan.

Commentaries on Substitution

Despite Jimenez's plea that, regarding the rules of substitution, there is no abuse¹⁹ precisely because the law allows it to be done, several figures in the legal

¹³ Philstar.com, Person "Sara Duterte scraps reelection bid for vice-presidential run," *Philippine Star*, (November 13, 2021), <https://www.philstar.com/headlines/2021/11/13/2131473/sara-duterte-scraps-reelection-bid-vice-presidential-run>

¹⁴ John Eric Mendoza, "Bong Go to run as president but not under PDP-Laban," *Inquirer.net*, (November 13, 2021), <https://newsinfo.inquirer.net/1514449/bong-go-to-run-as-president-but-not-under-pdp-laban>

¹⁵ John Eric Mendoza, "Former NTF – Elcac spokesperson Parlade files candidacy for president," *Inquirer.net*, (November 15, 2021),

<https://newsinfo.inquirer.net/1514944/red-tagger-parlade-files-candidacy-for-senator-via-substitution>

¹⁶ John Eric Mendoza, "Activist Walden Bello runs for VP as Ka Leody's running mate," *Inquirer.net*, (October 20, 2021),

<https://newsinfo.inquirer.net/1504411/activist-walden-bello-runs-for-vp-as-ka-leodys-running-mate>

¹⁷ Ferdinand Patinio, "10 aspirants file COC as substitutes for nat'l posts," *Philippine News Agency*, (November 16, 2021), <https://www.pna.gov.ph/articles/1159956>

¹⁸ Dwight De Leon, "Comelec records 10 substitution bids for national posts in 2022," *Rappler*, (November 15, 2021), <https://www.rappler.com/nation/elections/comelec-substitution-withdrawal-tally-2022-polls/>

¹⁹ Catherine Gonzales, "Comelec spox: Time to regulate substitution option for election aspirants," *Inquirer.net*, (November 10, 2021), <https://newsinfo.inquirer.net/1513125/comelec-spox-time-to-regulate-substitution-of-election-aspirants>

profession see that the substitution mechanism has been abused, exploited, and utilized for a party's gains in the Philippine setting.

This manifests in politicians and political parties taking advantage of the lax approaches to the rule of substitution. With the controversy surrounding the substitution of candidates observed in the past six years, COMELEC has been brandished for having a lax approach towards this matter.

Election watchdog Kontra Daya, through its convenor Danilo Arao²⁰, proclaimed that “the disastrous political spectacle these past few weeks could have been avoided if COMELEC declared as nuisance candidates those who were clearly placeholders based on the public statements either by themselves or by the officials of political parties they represent. They were, after all, never serious about their candidacies in the first place.”

Senatorial aspirant Chel Diokno²¹ shares the same sentiments, saying “placeholders” should be declared as nuisance candidates to avoid candidate substitution due to withdrawal later on. In Melanie T. Lim’s SunStar column, she opined²² that “the substitution rule originally intended to cover contingencies is now being utilized as a tactical tool. Temporary candidates are being fielded to test the waters, to build suspense, to save places and to warm seats while the real candidates mull and make up their minds or while political parties buy time to pursue and persuade better candidates”.

Former Iloilo governor Arthur Defensor Sr. also commented²³ that “the process must not be abused. The implementation of the process must be made only under restrictive circumstances, like when a candidate dies (sic) or other [reasons], but not just out of want. If they just keep doing what they want, the [law] is useless.” He further added that “one of the dangers there is that a certain candidate may run under the assumption that “Candidate A” would be their opponent, but it turns out that “Candidate A” would not run and would file but still be replaced. That is the disgrace there. It creates political uncertainty, and instability as far as political exercise is concerned.”

Another perspective to consider in the electoral substitution is its impact on the voting public, especially that they comprise the main actors in selecting the next

²⁰ Rhodina Villanueva, “Declare Substitution Candidates As Nuisance – Kontra Daya,” *One News*, (November 16, 2021), <https://www.onenews.ph/articles/declare-substitution-candidates-as-nuisance-kontra-daya>

²¹ Christia Marie Ramos, “Placeholders’ should be declared as nuisance in elections, says Chel Diokno,” *Inquirer.net*, (November 20, 2021), <https://newsinfo.inquirer.net/1517619/placeholders-should-be-declared-as-nuisance-in-elections-says-chel-diokno>

²² Melanie Lim, “Substitution game,” *SunStar*, “October 16, 2021”, <https://www.sunstar.com.ph/ampArticle/1910395>

²³ Joseph B.A. Marzan, “Candidate substitution ‘insulting to electoral process’ – ex-guv,” *Daily Guardian*, (October 16, 2021), <https://dailyguardian.com.ph/candidate-substitution-insulting-to-electoral-process-ex-guv/>

people for the national posts. Professor and former dean of the Ateneo School of Government Antonio “Tony” La Viña went on to remark²⁴ that the strategy of politicians to make use of substitution in fielding candidates for elections not only shows they are fooling voters but also disrespecting them.

In addition, political observer Earl Parreño propounded that “the elections are essentially like you are applying for a job. Don't fool your voters with the job you are applying for, because apparently, you have a hidden agenda.”

More so, even in the case of the Diño-Duterte substitution, it has been observed that such a substitution spectacle depreciates the value of COC. What transpired was in the first paragraph of the COC, which bears the title “Certificate of Candidacy for President” in bold and underlined letters, Diño stated he was running “for the position of mayor, City/Municipality of Pasay City ... in the May 09, 2016, national and local elections.” Raul J. Palabrica, Philippine Daily Inquirer chairman, said in his column²⁵ that “the COMELEC tolerated his mockery of his COC and viewed it as acceptable conduct by someone who claims to be a crusader against crime and corruption. It's bad enough that Diño's COC has been ruled valid despite its obvious defect and the circumstances under which it was filed; what's worse is that it has been allowed to be used in the circumvention of the Comelec's rules on the timely filing of COCs.”

The substitution mechanism has been closely associated as part of the political playbook of the Dutertes. These last-minute substitutions of the two highest electoral posts are not just political gimmicks, rather they have become the new electoral norms, coinciding with the flawed system of Philippine elections.

Looking back at the Omnibus Election Code pertaining to the substitution of candidates, the provision in the law allows the substitution of an official candidate of a registered or accredited political party who dies, withdraws, or is disqualified for any cause. True, there may be instances that candidates withdraw prior to the election - health, family, finances, career, personal reputation, or the foresight of losing the elections, among others. These are all valid causes, but upon clear scrutiny – it is an orchestrated political strategy.

The overarching idea of “withdrawal for any cause” is only a facade of their own selfish interests, and never for the advantage or benefit of the voters.

Despite this loophole in the law, the COMELEC has also been wary of cases of those who never had the intention to run, to begin with, but filed their COC as a

²⁴ Katrina Hallare, Robertzon Ramirez, “Analysts: Substitution of Candidates Only Fooling Voters; Still Allowed For Involuntary Withdrawal,” *One News*, (November 17, 2021), <https://www.onenews.ph/articles/analysts-substitution-of-candidates-only-fooling-voters-still-allowed-for-involuntary-withdrawal>

²⁵ Raul J. Palabrica, “Value of COCs depreciated,” *Philippine Daily Inquirer*, (February 15, 2016), <https://opinion.inquirer.net/92889/value-of-cocs-depreciated>

placeholder for a substitute who has yet to make up their mind²⁶. From this, the COMELEC can ascertain that there is no bona fide intention to join the elections declaring them a nuisance candidate, which in turn cancels their COC, which also results in the prohibition on substitution. COMELEC Chairperson Jimenez further reiterated its provisions on nuisance candidates²⁷, stating that those who make a mockery of the election system; those who seek to confuse voters through the similarity of names between candidates; and those who have no bona fide or good faith in running for office shall have their COCs rejected. Yet, despite these, the COMELEC seems to be backtracking its statements, as Jimenez²⁸ also said in one interview that the mere declaration of candidates that they are only placeholders in the upcoming elections is not enough to declare them as nuisance candidates.

However, this still provides a glaring loophole. Like in Rodrigo Duterte's playbook, Dino backed out of the presidential political race and made Duterte his substitute. Dino's cause for withdrawal is that he was "insulted that the COMELEC was considering to declare him a nuisance candidate"²⁹.

Since the COMELEC does not have any stringent requirements on withdrawal, Dino's decision is deemed accepted, which gives the COMELEC no more time to inquire deeper about this withdrawal. Duterte's political party validly complied with the legal minutiae: they just needed a placeholder candidate, with little to no reputation to lose, to take the seemingly insignificant fall so that they may be able to buy time to craft their strategies in such a situation. In fact, it turned out to be favorable to them - as the days went by prior to the substitution, data from surveys, media reports, and critiques and analyses from political scientists and experts further bolstered the clamor and support to push Duterte for the national post.

Moreover, it can be gleaned from this abuse of the rules on substitution that the political party system, which is supposed to be made to structure electoral competition, has been superseded by political families as the dominant institution during elections. In these substitution tactics, what transpired here is a mixture of three elements:

Political vindication, especially for the Marcoses, who are seen as Duterte allies. On this point, the alliance of the Dutertes with the Marcoses, which resulted in an electoral landslide victory, presented a turning point for the Marcoses to vindicate the stain smudged in their name;

²⁶ Ibid

²⁷ Yuji Vincent Gonzales, "Comelec reiterates rules on nuisance candidates," *Inquirer.net*, (October 15, 2015), <https://newsinfo.inquirer.net/731218/comelec-reiterates-rules-on-nuisance-candidates>

²⁸ John Eric Mendoza, "Mere declaration of placeholder not sufficient ground to become nuisance candidate - Comelec spokesperson," *Inquirer.net*, (October 13, 2021), <https://newsinfo.inquirer.net/1501218/mere-declaration-of-placeholder-not-sufficient-ground-to-become-nuisance-candidate-comelec-spox>

²⁹ Paterno Esmaguel II, "Duterte 'placeholder' Difo withdraws presidential bid," *Rappler*, (October 29, 2015), <https://www.rappler.com/nation/elections/111051-duterte-placeholder-dino-withdraws-presidential-bid/>

Desperation for political power, where the Dutertes will likely maintain a strong grapple in the national posts. By having another Duterte namesake in the executive department, it is a more likely event that the Dutertes might foretell a political cycle with their namesakes gradually occupying the legislative and judicial department as well; and

Elite-negotiated tactics, so that political families, like the Dutertes, Marcoses, and other allies and technocrats can make themselves figureheads and political trendsetters who shall work hand in hand in crafting election- and campaign-related strategies to maintain power amongst themselves.

All these driving forces, empowered by the flawed and seemingly shackled electoral board and governing bodies can posterize the persisting elitist electoral democracy in the country.

Recommendations

Way back in February 2016, the COMELEC First Decision even went on to say in its opinion³⁰ that “the Commission is well aware of the fact that the provision is prone to abuse and may even lead to the bastardization of the entire process involved in the selection of candidates by the various political parties in existence to ensure their victory in the poll.”

In response to this electoral dilemma, lawmakers are now on the move to put this electoral substitution fiasco to a stop.

Leila De Lima, who is a former election lawyer, filed Senate Bill (SB) No. 2461³¹ which seeks to impose limitations on the substitution of candidates due to withdrawal. De Lima added that “this practice of last-minute party-hopping or party-hunting during and even after the original COMELEC period for filing certificates of candidacies has ended must stop now, as it puts to shame even ordinary and regular party-hopping done several months or weeks before the filing of certificates of candidacy.”

³⁰ Aries Joseph Hegina, “Comelec body: Substitution ‘prone to abuse’ by politicians in 2019 polls,” *Inquirer.net*, (February 3, 2016), <https://newsinfo.inquirer.net/761250/comelec-body-substitution-prone-to-abuse-by-politicians-in-2019-polls>

³¹ Consuelo Marquez, “De Lima files bill to prevent abuse of candidate substitutions,” *GMA News Online*, (December 7, 2021), <https://www.gmanetwork.com/news/topstories/nation/813718/de-lima-files-bill-to-prevent-abuse-of-candidate-substitutions/story/>

Another legislative move of the same spirit is also ushered by Cagayan de Oro City Representative Rufus Rodriguez, who intends to refile³² House Bill No. 10380 which seeks to prohibit political parties from substituting any candidate unless the latter dies or is disqualified. Rodriguez said that there is nothing wrong with substitution in case of death or disqualification, substitution because of withdrawal, or what others call voluntary substitution, they may pose serious questions and may lead to the manipulation and mockery of the election process. Further, Rodriguez said;

“Withdrawals could lead the voting public to believe that the candidate who withdrew, or the political party doing the substitution or the replacement candidate, is not really serious about the candidacy.”

Rodriguez also intends to refile House Bill No. 10381, which seeks to restore the old provision in the election law that declared an incumbent as resigned ipso facto upon filing his COC for another position. He said that “it is high time to reinstate the repealed provision. This would force aspirants to take running for higher office seriously and to stop manipulating and mocking the electoral process. It would also make more people believe in the integrity of our elections.”³³

It is also significant to look for related jurisprudence from other nations. In the South Carolina Code of Laws³⁴, Section 7-11-50 provides that;

If a party nominee who was nominated by a method other than party primary election dies, becomes disqualified after his nomination or resigns his candidacy for a legitimate nonpolitical reason as defined in this section and sufficient time does not remain to hold a convention to fill the vacancy or to nominate a nominee to enter a special election, the respective state or county party executive committee may nominate a nominee for the office, who must be duly certified by the respective county or state chairman.

“Legitimate nonpolitical reason” as used in this section is limited to:

- (a) reasons of health, which include any health condition which, in the written opinion of a medical doctor, would be harmful to the health of the candidate if he continued;
- (b) family crises, which include circumstances that would substantially alter the duties and responsibilities of the candidate to the family or a family business;

³² Wendell Virgilia, “Solon to push for passage of electoral reform bills,” *Malaya Business Insight*, (June 21, 2022), https://malaya.com.ph/news_news/solon-to-push-for-passage-of-electoral-reform-bills/

³³ Filane Mikee Cervantes, “Lawmaker to push for twin bills on candidate substitution,” *Philippine News Agency*, (June 20, 2022), <https://www.pna.gov.ph/articles/117711#:~:text=MANILA%20%E2%80%93%20lawmaker%20on%20Monday,official%20running%20for%20another%20position.>

³⁴ South Carolina Code of Laws, s 7-11-50, <https://www.scstatehouse.gov/code/t07c011.php>

(c) substantial business conflict, which includes the policy of an employer prohibiting employees from being candidates for public offices and an employment change that would result in the ineligibility of the candidate or which would impair his capability to carry out properly the functions of the office being sought.

Conclusion

As Prof. Miriam Coronel Ferrer said³⁵, “substitution is a regular practice in electoral processes. But tighter rules would need to be in place and the COMELEC must exercise greater discretion. It should guard its autonomy without fear or favor. It should not set precedents that make craters out of loopholes so large you can fit all the malice and ill intentions of the dirty rags among our political class.”

As observed in the recent elections³⁶, the substitution of candidates at the last minute has become a common strategy.

With these problems in mind, it is imperative that the Philippines needs to re-assess the ways of handling issues come election season. As posited by the International Institute for Democracy and Electoral Assistance (IDEA), an intergovernmental organization based in Sweden that oversees sustainable, effective, and legitimate democracies, the Philippines must consider international standards³⁷, such as:

the principles of free, fair and periodic elections that guarantee universal adult suffrage, the secrecy of the ballot and freedom from coercion, and a commitment to the principle of one person, one vote.

With this abuse of the rules on substitution, it is evident that this election strategy is a sham and mockery of the election process. With the various loopholes, weaknesses, and lack of remedies in the Philippine political system, it is a pressing matter to look behind our election laws and jurisprudence. The more time we take our right to suffrage for granted, it shall only pave more way for eroding the spirit of the democratic selection process and violating the clear intent of our election laws, which is to “assure free, orderly, honest, peaceful and credible elections³⁸.” ■

³⁵ Miriam Coronel Ferrer, “Substitution in the upcoming Philippine presidential elections,” *UP sa Halalan*, (November 9, 2021),

<https://halalan.up.edu.ph/substitution-in-the-upcoming-philippine-presidential-elections/>

³⁶ Cleo Calimbahin, “Ambiguously Democratic: Parties, Coalitions, and Candidates in the 2022 Philippine Elections,” Heinrich Boll Stiftung, (October 28, 2021),

<https://th.boell.org/en/2021/10/28/coalitions-and-candidates-2022-philippine-elections>

³⁷ Andrew Reynolds, Ben Reilly, Andrew Ellis, et. Al., “Electoral System Design: The New International IDEA Handbook,” International Institute for Democracy and Electoral Assistance (IDEA),

<https://www.idea.int/sites/default/files/publications/electoral-system-design-the-new-international-idea-handbook.pdf>

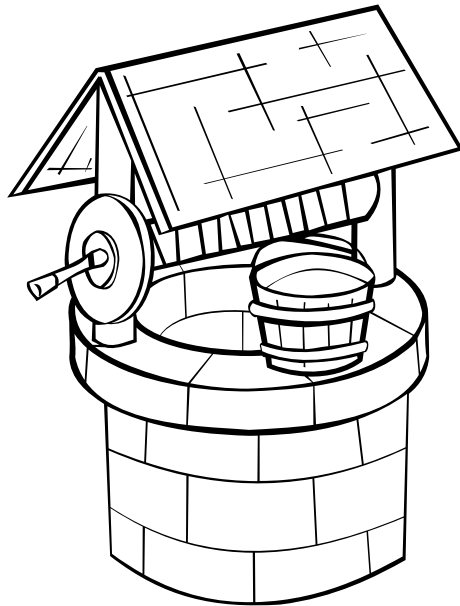
³⁸ Fair Election Act 2001, Sec. 2, <https://www.officialgazette.gov.ph/2001/02/12/republic-act-no-9006/>

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**"Wisdom is light, but a wise man without morals
is a well without a rope."**

- RONALD E. PEPIN



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A Commentary

CLINICAL LEGAL EDUCATION PROGRAM (CLEP) AND REVISED MODEL LAW CURRICULUM (RMLC): CHAMPIONING LAW ADVOCACY AND ETHICAL-DRIVEN LAWYERING

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The rebranding of Rule 138-A¹ with lethargic history save for the University of the Philippines' Office of Legal Aid and the Ateneo Legal Services Center is a great leap forward to fix the huge disconnect between the study of law and the practice of law. In this maiden commentary, I will focus on two big proverbial concerns.

The rebranding offers two-tier solutions that complement each other: first, overhauling of the law curriculum, which is now “foundational-centered”; and second, integrating clinical legal education in the curriculum, which is now “experiential and ethical-driven”.

The Revised Model Law Curriculum launched in the last quarter of 2021, now zeroes in on the pressing need to lay a solid rock foundation for first-year law students; subjects like philosophy of law, legal research and writing, legal methods, and basic legal and judicial ethics² — are, in essence, foundational to the study of law.

The general consensus is that lawyers must be practice-ready and ethical-driven, but the reality is different with a plentitude of exceptions of course. The ethical component seemingly dwarfs the practice-readiness component. Statistically wise, the huge volumes of bar discipline cases³ abound the docket of the Supreme

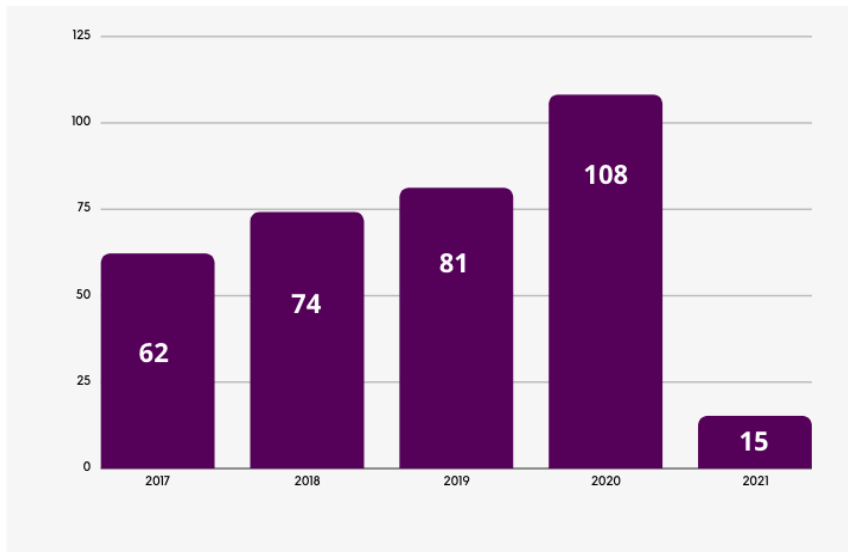
¹ Rule 138-A, Law Student Practice, under A.M. No. 19-03-24-SC, July 2019.

² The Revised Model Curriculum of the Basic Law Program, Accessed August 9, 2022
<https://leb.gov.ph/wp-content/uploads/2021/07/LEBMO-No.-24.pdf>

³ Following an investigation, the Commission on Bar Discipline of the Integrated Bar of the Philippines elevates the administrative case with its recommendation to the Supreme Court for final review and final disposition.

Court.⁴ From my own survey from 2017 to 2021, it yields 340 cases.⁵ The bar chart below tells a story.

Figure 2. *Graph of the Discipline Cases in the Supreme Court from 2007 to 2021*



A resort to this probe makes clear that these three hundred forty (340) cases involve a myriad of ethical issues spiraling year after year that reflect the “dark side” of lawyering spread throughout the legal profession. These rerunning cases consist of: failure to account for the money, gross dishonesty, gross immorality, grave misconduct, conflict of interest, breach of privileged communication, and gross misuse of procedural rules, among other ethical-related cases. And then, penalties differ depending on the gravity of culpability like suspension, restitution of money, admonition, reprimand, fine, and a capital penalty of – disbarment – leaving the remorseful the emotional scar to endure and the unrepentant wallowing either in self-pity or callousness.

With the CLEP, the Law Student Practitioners have one good reason to hope for. It has most assuredly tailored a model curriculum to deal with the general consensus that I squarely described, perennially emasculating the integrity of the legal profession, and undoing the failings of the defunct student practice rule some decades ago.

⁴ <https://elibrary.judiciary.gov.ph>

⁵ Case titles and case docket numbers are omitted because of sensitivity concerns.

What is reassuring about the CLEP learning activities is integrating legal ethics unprecedentedly apart from the conventional legal theory and doctrine activities into the model curriculum, which I believe is the backbone of the CLEP⁶. This is further heightened in the model curriculum for senior law students: “legal ethics and judicial ethics and practical exercises”⁷. Integrating a clinical component of legal and judicial ethics in procedural subjects like criminal procedure, civil procedure in dispute resolution, and evidence rules are – significant enhancement of achieving the CLEP’s holy grails of enrooting ethical-driven lawyering aside from substantive law subjects in the model curriculum. This is in accord with the CLEP’s goal of “inculcating in the students the values of ethical lawyering and public service”⁸. As trials become progressively more drawn out, complicated, and nasty at times, the clinical approach would give them a clear sense of direction and then heave a sigh of relief.

The Legal Education Board’s CLEP and RMLC, as components of a more comprehensive solution, are just the beginning, no doubt – but right now a concerted effort is required of all the stakeholders: law student practitioners, law clinics, law schools, clinical directors, supervising lawyers, clinical faculty, among others, to set the CLEP and RMLC in motion to come to fruition without slack, without setback. ■

⁶ Section 2(a), Rule 138-A Law Student Practice.

⁷ Model Curriculum JD Non-Thesis, Accessed August 9, 2022
<https://leb.gov.ph/model-curriculum-jd-non-thesis/>

⁸ Ibid.

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EDITOR'S NOTE

Clyde Ben A. Gacayan

Executive Board of Editors to the WVSU Journal for Law Advocacy

Volume II of the inaugural issue of this journal features student contributed essays from West Visayas State University's newly founded College of Law. WVSU COL is the only state university in Western Visayas to offer a Juris Doctor program. Now on its third year of operation, the college has a population of 79 students spread across three year levels. The college attracts students from different academic disciplines and professions.

The first pool of student contributed essays published in this journal reflects the diverse legal interest and legal writing capacities the student population has. Majority of these essays were written by the pioneering batch of the College which are now third year Juris Doctor students at the time of this publication.

Most student authored essays featured in Volume II are original and unpublished student term papers submitted in compliance with various law subjects in the College notably those under the supervision of Dean Pauline Grace Alfuentes and Pros. Victoria Heler. JLA Advisor Judge Enrique Trespeces reviewed all these term papers and recommended a short list of student authored essays for publication based on the quality of legal writing and importance of the legal issue discussed. Thereafter, the Editorial Board of the Journal for Law Advocacy conducted a desk and peer review process and provided student-authors with comments to improve their term papers. After the revision, the JLA Editorial Board approved the inclusion of these papers for publication.

The eight student contributed essays featured capture the diverse legal interest students in the COL have, reflecting the most pressing issues the country is also facing. Two of the papers discuss the intersectionality the COVID 19 pandemic has in labor law and in criminal law. Jezner Ralph Sasi provides a review of DOLE's prohibition against the "No Vaccine, No Work" policy at the height of the inoculation roll out of the Philippine government. Moreover, Clyde Gacayan explores how the pandemic has affected the concerns of Filipino Children in Conflict with the Law.

Reflective of the other concerns the country has faced in the last three years under the Duterte Government, Philipp Ruel Centenni discusses new developments in Human Trafficking while Vanessa Silla deep dives into the Anti-Terrorism Act of 2020. As the Duterte administration finally ends its term, Edson Chase Yap looks into the country's commitment to the fight against impunity for atrocity crimes taking into account the government's anti-drug campaign in the last six years.

Finally, deeply rooted legal issues in the Philippines in the areas of free speech, public accountability and judicial mechanisms are revisited. Clint Deo Genciana examines cyber libel within the context of criminal law while Ronic Cajayon revisits frameworks of public accountability within the purview of administrative law. Lastly, Reve Aviles investigates the prospects of a jury system under Philippine remedial law.

The range of legal issues discussed by students of WVSU COL reflect areas where legal advocacy is needed. Whilst these essays are not full blown academic and legal research, they do provide necessary context as to where more legal analysis and advocacy work could be directed to. The Juris Doctor program offered by West Visayas State University has a JD Thesis incorporated in its curriculum. If any, the mechanism provided for by the Journal for Law Advocacy for a student peer review process is a good academic exercise for students to be able to produce JD thesis manuscripts later on which are of publishable quality.

In this inaugural issue, we demonstrate that the Journal for Law Advocacy is a platform not only for legal practitioners but also for law students from all institutions to harness their potential for legal writing, research, and advocacy. ■

Discretionary Inoculation:

A Review on DOLE's Prohibition against "No Vaccine, No Work" Policy

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On March 12, 2021, the Department of Labor and Employment (DOLE) issued Labor Advisory No. 03 Series of 2021 establishing the guidelines on the administration of COVID-19 vaccines in the workplaces. It mandates the private sectors to adopt and implement appropriate vaccination policies in with the rules and guidelines issued by the Department of Health (DOH) and the Inter-Agency Task Force (IATF)¹. However, a salient provision of said Labor Advisory is found under Section 3 which states, to wit:

"III. DISCRIMINATION OR TERMINATION

*Covered establishments and employers shall endeavor to encourage their employees to get vaccinated. However, any employee who refuses or fails to be vaccinated shall not be discriminated against in terms of tenure, promotion, training, pay, and other benefits, among others, or terminated from employment. No vaccine, no work shall not be allowed."*²

Verily, there is no doubt that employers may implement a vaccination policy and procure the necessary vaccines; however, the same cannot compel its employees to be inoculated. The key to such understanding is the use of the phrase "...employers shall endeavor to encourage their employees to get vaccinated." The advisory is clear that inoculation rests upon the discretion of the employee as evidenced by the use of word "encourage."

This is further supported by another issuance of DOLE last May 1, 2021. The prominent stipulations of Labor Advisory No. 08-21³ are two-fold. First, "All employees in the private sector, except those who are ineligible or disqualified for health reasons, are highly encouraged to get inoculated with COVID-19 vaccine." And second, "Employers shall continue to urge their employees to avail of their own vaccination program, if any, or their respective local government units." Again, as it can be gleaned upon the cited provisions, the use of the words "highly encouraged" and "urge" clearly establishes the voluntary nature of the inoculation.

¹ Guidelines on the Administration of COVID-19 Vaccines in the Workplaces, (2021), Section II, Labor Advisory No. 03-21.

² Guidelines on the Administration of COVID-19 Vaccines in the Workplaces, (2021), Section III, Labor Advisory No. 03-21.

³ Promotion of COVID-19 Vaccination in the Private Sector, (2021), Section II, Labor Advisory No. 08-21.

However, such prohibition appears to be problematic. The implementation of the health and safety protocols by the government for over a year proves futile due to the contagious nature of COVID-19. Moreover, the virus being asymptomatic in certain people makes it more prone for transmission. Also, it keeps evolving to different strands and tends to be transmitted in various ways; making wearing of face shields and face masks mere fashion statements, rather than preventive measures. Thus, employers are given a hard time on determining what measures to be adopted given that the closest thing to a COVID-free workplace cannot be mandatorily implemented.

Another point that is important in Labor Advisory No. 03-21⁴ is the statement “... *any employee who refuses or fails to be vaccinated shall not be discriminated against in terms of tenure, promotion, training, pay, and other benefits, among others, or terminated from employment.*” Such provision guarantees the constitutional mandate of protection of the workers’ rights⁵. Likewise, the above provision seeks to prevent illegal measures that employers may resort to in compelling their employees to vaccinate. Especially acts tantamount to constructive dismissal and illegal suspension.

In *Philippine Japan Active Carbon Corporation vs. NLRC*⁶, the Court defined “Constructive Dismissal” as the quitting of an employee by reason of continued employment is rendered impossible, unreasonable or unlikely. It exists if an act of clear discrimination, insensibility, or disdain by an employer becomes so unbearable on the part of the employee that it could foreclose any choice by him except to forego his continued employment⁷. While in the case of *Nancy Montinola v. Philippine Airlines*⁸, it was held that illegally suspended employees are similar to illegally dismissed employees when their suspension was attended by bad faith or fraud, oppressive to labor, or done in a manner contrary to morals, good customs, or public policy.

Evidently, these illegal measures are prone to happen if ever an employee refuses to be vaccinated. For instance, an unvaccinated employee may be isolated from the rest who already were inoculated making it socially unhealthy for the former; or, his schedule of work may be lessened, or temporarily suspended, preventing the same from going to work out of mere suspicion of being contaminated by the virus due to his refusal to inoculate. Obviously, such actions are done in bad faith and prejudicial to an employee.

Article II Section 18 of the Constitution prescribes that “*The State affirms labor as a primary social economic force. It shall protect the rights of workers and promote their welfare.*”⁹ Likewise, Article XIII Section 3 reaffirms that “*The State shall afford full protection to labor, local and overseas, organized and unorganized, and promote full employment and equality of employment opportunities for all.*”¹⁰ Such principle is further embodied in the Labor Code

⁴ Guidelines on the Administration of COVID-19 Vaccines in the Workplaces, (2021), Section III, Labor Advisory No. 03-21.

⁵ The Constitution of the Philippines, (1987), Article II Section 18.

⁶ G. R. No. 83239, March 8, 1989.

⁷ *Gan v. Galderma Philippines, Inc.*, et al. G.R. No. 177167, January 17, 2013.

⁸ G.R. No. 198656, September 8, 2014.

⁹ The Constitution of the Philippines, (1987), Article II Section 18.

¹⁰ The Constitution of the Philippines, (1987), Article XIII Section 3.

of the Philippines¹¹ wherein such law affords the protection to labor, promotes full employment, ensures equal work opportunities regardless of sex, race or creed, regulate the relations between workers and employers, and assure the rights of workers to security of tenure and just and humane conditions of work. These afore-captioned statutes sanction illegal measures used by employers to discriminate employees who refuse to get inoculated.

Employers are in a slippery slope trying to formulate a policy that shall ensure the safety of its employees while at the same time uphold the rights of those who refuse inoculation. Fortunately, the law does not leave the employers without remedy. Employers may avail Articles 284 and 286 under the Labor Code of the Philippines¹² which provides that:

***Article 284. Disease as ground for termination** - An employer may terminate the services of an employee who has been found to be suffering from any disease and whose continued employment is prohibited by law or is prejudicial to his health as well as the health of his co-employees: Provided, That he is paid separation pay equivalent to at least one month salary or to one-half month salary for every year of service, whichever is greater, a fraction of at least six months being considered as one whole year.*

✕ ✕ ✕

***Article 286. When employment not deemed terminated** - The bonafide suspension of the operation of a business or undertaking for a period not exceeding six months... In all such cases, the employer shall not reinstate the employee to his former position without loss of seniority rights if he indicates his desire to resume his work not later than one month from the resumption of operations of his employer...*

Remarkably, based on the above provisions of law, the employers are not left without remedy. They can either terminate the employee or put the same under floating status. Nonetheless, before an employee can avail of the same, there are certain qualifications or circumstances that needs to be categorically satisfied.

As stated under Article 284, termination can be effected by the employer against the employee if it can be proven that the latter has contacted the virus. In that case, the employer should prove the same using medical measures like a swab test. The qualification that the disease be prejudicial to his health and to co-employees is undoubtedly possessed by the contagious nature of the virus. However, in such termination, the employer is enjoined to compensate the employee as indicated in the law.

Verily, a lot of businesses closed, either temporarily or permanently, due to the pandemic. Corollary thereto, under Article 286, the Labor Code permits employers to temporarily suspend the work of an employee by reason of temporary cessation of its business or operation. Provided, that said *bona fide* suspension does not exceed a

¹¹ Labor Code of the Philippines, (1974), Article 3, Presidential Decree No. 442.

¹² Labor Code of the Philippines, (1974), Articles 284 & 286, Presidential Decree No. 442.

period of six (6) months. Evidently, employers experience financial losses due to the pandemic. It would not be illogical to presume that they may not be able to pay its employees' salaries due to the economic loss they suffered.

To encapsulate, the mentioned Labor Advisories clearly establish the voluntary and discretionary nature of the employees' vaccination. However, it should be noted that the same only applies to the private sectors, and does not include those in the public sectors. Further, such prohibition is only made possible due to the absence of a law that actually stipulates mandatory inoculation.

Although, assuming for the sake of argument that a law be enacted by Congress which compels employees to undergo mandatory inoculation such law is proper as it is consistent with the police power of the State. The government has repeatedly expressed its intentions of aiming for Herd immunity to address the current pandemic. Clearly, the more people that gets inoculated, less people will get infected. It is in accordance with *Salus populi est suprema lex*, the welfare of the people is the supreme law.

The focus of the discussion revolved around the difficulties an employer may face in relation to the prohibition on "No Work, No Vaccine" policy. However, as aptly discussed, there are certain legal measures that the employers may resort to. It is only a matter of what circumstances are availing of them towards the employees.

Existence of vaccines and health and safety protocols alone cannot instantaneously transform an office into a COVID-free workplace; more so a COVID-free community. The answer is within the law, employers need to urge and encourage its employees. Adopt measures that tend to educate their employees regarding vaccination. A lot of employees are indeed hesitant to get inoculated due to misinformation, i.e. possible side effects. The role of the employers is to help their employees understand that getting vaccinated is part of the solution. By doing so, employers not only ensure the safety of their employees but also ensure efficient operation of its business.

In fine, Government agencies are formed for a reason, to efficiently address specific sectors of the community. DOLE has certainly done such. The issuances strike the balance to protect the laborers' rights while at the same time do not prejudice that of the employers. The standards are definitely set for how other agencies should address this pandemic. ■

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Not Just a Children's Game:

COVID-19 and Legal Concerns of Filipino Children in Conflict with the Law

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The imposition of lockdowns, restricting the mobility of people across sectors in a given period of time to manage COVID-19 transmission, has been a popular policy choice among governments. The lockdown in the Philippines, referred to as “Enhanced Community Quarantine”, in fact, is among “the fiercest and longest-lasting”¹ since its implementation on March 16 2020 in the island of Luzon and later on all over the country. Since then, modifications and eventual easement of lockdowns were implemented but reclassification of some cities and regions back to stricter measures also have been a response to resurgence of localized community transmissions.

The unintended consequence of this particular policy approach has been recognized to impact access to food, basic services and income/livelihood sources mostly of the informal sector. The impact also extends to educational services and psychosocial health across different groups especially children. The United Nations through a policy brief on the impact of the COVID-19 crisis on children² asserts that while children have a lower risk of contracting COVID-19, “they risk being among its biggest victims,” with children being affected by “socio-economic impacts and, in some cases, by mitigation measures that may inadvertently do more harm than good.”

The UN policy brief further identifies several impacts of extended lockdown specifically on children to include (a) disruption of schooling and risks of dropping out, which has lifelong learning impacts; (b) threats to children's survival and health with expected increase in malnutrition and rise in mental health issues; (c) heightened risk of children witnessing or suffering violence and abuse inside their homes; (d) exposure to inappropriate online content and online abuse and exploitation; and (e) risk of getting arrested, detained or being subjected to physical and humiliating punishment as a result of strict quarantine protocols. This short article discusses the impact of quarantine measures and lockdown controls on the legal concerns of Filipino Children in Conflict with the law and the related concerns and challenges that face the implementation of RA 9344 or the Juvenile Justice and Welfare Act of 2006.

¹ The Economist. 2020. “Four months and counting: The Philippines’ fierce lockdown drags on, despite uncertain benefits”. *Economist Online*. July 11. Accessed June 01, 2021 from <https://www.economist.com/asia/2020/07/11/the-philippines-fierce-lockdown-drags-on-despiteuncertain-benefits>

² United Nations. Policy Brief: The Impact of COVID-19 on Children. 15 April 2020. Accessed June 01, from https://www.un.org/sites/un2.un.org/files/policy_brief_on_covid_impact_on_children_16_april_2020.pdf

Children's rights and the pandemic

While children are not visibly seen as the most affected population by the pandemic, anecdotal pieces of evidence suggest that the pandemic increased risks of the most vulnerable children who do not have access to social protection systems. The secondary and long-term devastating impact on children's rights, well-being and safety has a disproportionate effect on children from poor and vulnerable households for their entire lifetime³.

The most vulnerable children are less protected, including unaccompanied and separated refugee children, migrant and displaced children, street children, children affected by armed conflicts, children in judicial detention, children living with disabilities, and girls and children placed in institutions⁴. The combined effect of school closures with economic distress may additionally force children to drop out of school, compel children into child labor, become child soldiers, and into child marriages. Children without parental care are especially vulnerable to exploitation and other negative coping measures⁵.

On the other hand, children who are living with their parents, relatives or guards at home are not safe from the secondary impacts of the pandemic. Violence by caregivers, witnessing domestic violence against women, and domestic abuse are all brought about by the living in a confined space which involves the danger of different stressful situations brought about by the organizational, and financial structural challenges faced by parents to meet their children's needs⁶. This affects girls, women and those with disabilities greatly face higher rates of sexual and gender-based violence (SGBV), intimate partner and domestic violence, including sex for assistance and child marriage⁷.

UNICEF additionally reports that increased online activity that supports children's learning, socialization and play, also puts them at heightened risk. This includes online sexual exploitation, cyberbullying and increased online risk-taking behavior, which exposes them to risks of extortion, harassment and humiliation. Additionally, access to potentially harmful content as facilitated by increased online activity and inappropriate collection use and share of children's personal data are all brought about by limited child safeguarding practices online⁸.

³ Save the Children. (2020). COVID-19 impacts on African children. How to protect a generation at risk. Pan-African policy paper. Save the Children, East and Southern Africa Regional Office and Save the Children West and Central Africa Regional office.

⁴ Ibid. 2020.

⁵ United Nations. (2020). Policy Brief: The Impact of COVID-19 on children. Accessed June 01, 2021 from https://www.un.org/sites/un2.un.org/files/policy_brief_on_covid_impact_on_children_16_april_2020.pdf

⁶ Defense for Child International. (2020). The impact of COVID-19 on Children's Rights. Accessed June 01, 2021 from <https://defenceforchildren.org/wp-content/uploads/2020/04/DCI-Survey-on-COVID-11.pdf>

⁷ Save the Children. (2020). COVID-19 impacts on African children. How to protect a generation at risk. Pan-African policy paper. Save the Children, East and Southern Africa Regional Office and Save the Children West and Central Africa Regional Office.

⁸ UNICEF. (2020). COVID-19 and its implications for protecting children online. Accessed June 01, 2021 from https://www.end-violence.org/sites/default/files/paragraphs/download/COVID-%20and%20its%20implications%20for%20protecting%20children%20online_Final%20%28003%29.pdf

Concerns of Children in Conflict with Law

Restrictions on movement as well as increased police power of the state due to the pandemic have severely hampered the civil rights and freedoms of children. For instance, Defense for Children International (DCI) reports that the involvement of children in decision-making processes on matters that concern has been insufficient as a result of the negative impact of travel and movement limitation to work of human rights defenders and the prohibition of gatherings. Curfews and other precautionary health measures make it difficult for non-government workers to communicate with children in vulnerable situations as well as to cooperate with state authorities to advocate for more participation in civil society⁹. It cannot be discounted that the right of children to participate and have their voice in government decision-making in the context of health emergencies has diminished and are at risk.

To illustrate, DCI observed disruptions in the child justice system with the discontinuation of the courts, consequently leading to the absence of consideration of cases and no follow-up on investigations¹⁰. This concern also includes Children in Conflict with the Law (CICLs) whose legal aid services have been severely hampered because of quarantine and lockdown measures. Prolonged detention under protective custody is the main concern reported in Greece, as well as a lack of reporting incidents of violence and abuse, making violations of children's rights occur in total impunity.

For CICLs who are about to be reintegrated into their communities, the experience of Sierra Leon shows that because of the pandemic, it has become difficult to support family tracing, reunification and reintegration of children in conflict with the law. This is largely because of limited movements and the need for physical distancing¹¹.

Challenges in providing legal services to CICL during the time of the pandemic

In the Philippines, observations found in the developing literature and in country case studies mentioned earlier are not that different. While recorded cases of COVID- 19 in the age range 0-17 years old is at 6.0% and 2.27% deaths that are 0-18 years old¹², the socio economic and psychosocial effects on children are well documented. This holds true for children with disabilities, those administered under the juvenile justice and concerns arising from sexual exploitation.

⁹ Defense for Child International. (2020). The impact of COVID-19 on Children's Rights. Accessed June 01, 2021 from <https://defenceforchildren.org/wp-content/uploads/2020/04/DCI-Survey-on-COVID->

¹⁰ Ibid. 2020. Page 6.

¹¹ Ibid. 2020. Page 8.

¹² Philippines Covid-19 – Data and Case Tracker,” COVID-19 PH, Department of Health, accessed June 30, 2020 from <https://covid19ph.com/>

For children in conflict with the law (CICL), the consultation conducted by Save the Children in a juvenile facility last April 2020 provides some interesting insights as to how the pandemic has affected children under this category. Most CICLs reported that their families find it hard to visit the center due to restrictions on travel and the limited days of visit to Sundays. As an effect almost, all of the CICLs interviewed said that they have no idea how their families are doing since the start of the quarantine¹³.

Aside from this, more than half of those interviewed reported that while court hearings are suspended, they were able to receive guidance on the status of their cases from the resident social workers and assigned house parents¹⁴. Moreover, less than half of the participants said that they are not aware of the response of the government to the current situation and that for some, the efforts are not enough and that they are aware many people stopped working or have lost their jobs. On top of this, it was noted that psychosocial interventions are needed at the juvenile facility since there is no resident psychologist and that beforehand while volunteers have been extending help, this has been severely limited because of travel restrictions.

More than playing – prospects of teleconferencing and online legal counseling for children

It is important to highlight R.A. No. 9344 or the Juvenile Justice and Welfare Act of 2006. This law strengthened the fundamental structures for the effective operation of the Philippine Juvenile Justice and Welfare System in the country. Particularly, it describes and clarifies what happens before, during and after a CICL is handled by a particular duty-bearer– from initial contact to investigation and court process for the commitment of a child in a youth rehabilitation center, aftercare services, and reintegration into the society.

The law provides a reference to Article 40 of the United Nations Conventions on the Rights of Children in terms of judicial proceedings, to wit:

“Whenever appropriate and desirable, the State shall adopt measures for dealing with such children without resorting to judicial proceedings, providing that human rights and legal safeguards are fully respected. It shall ensure that children are dealt with in a manner appropriate to their well-being by providing for, among others, a variety of disposition measures such as care, guidance and supervision orders, counseling, probation, foster care, education and vocational training programs and other alternatives to institutional care.”

¹³ Save the Children Philippines. (April 2020). Children’s Consultation on COVID-19. Bahay Pag-As a and Bahay Sandigan, Malabon City. 08 April 2020.

¹⁴ Ibid. 2020.

Clearly, the pandemic and the movement restrictions that come with it have affected the rights of children in conflict with the law to receive appropriate guidance and supervision especially on the updates of their cases and psycho-social counseling. This concern is real for children deprived of liberty or those in any form of detention or placed in a public or private custodial setting, from which the child in conflict with the law is not permitted to leave at will by order of any judicial or administrative authority. R.A. No. 9344 implemented back in 2005 is far from perfect. In fact, the contribution of non-government organizations and legal clinics of law universities may contribute to the burgeoning needs of CICL to be provided with legal guidance and update on their cases in the language that children can understand.

By taking into account major psychosocial and economic concerns arising from lockdowns, children in conflict with the law and their legal needs are not insolated problems but are reflective of the need to improve and update the implementation of R.A. No. 9344. Teleconferencing and online legal counseling present an opportunity to address concerns for CICL. This however can only be done if both legal practitioners and child rights organizations come into agreement that the experiences of CICLs under lockdown *are more than a children's play* – and that the legal concerns of children can either make or break their hopes and dreams in the future.

After all, the legislative intent of Juvenile Justice and Welfare Act of 2006 is restorative justice. Thus, the challenges brought about by the pandemic are opportunities for the implementation of the law to be more cognizant not only of social and political realities but also that of the public health situation worldwide. ■

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UNICEF. (2020). COVID-19 and its implications for protecting children online. Accessed June 01, 2021 from https://www.end-violence.org/sites/default/files/paragraphs/download/COVID%20and%20its%20implications%20for%20protecting%20children%20online_Final%20%28003%29.pdf

United Nations. (2020). Policy Brief: The Impact of COVID-19 on children. Accessed June 01, 2021 from https://www.un.org/sites/un2.un.org/files/policy_brief_on_covid_impact_on_children_16_april_2020.pdf

Stories Behind the Numbers:

An Overview on the Statistics and New Developments on Human Trafficking in the Philippines

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Nothing can be truer than what Pope Francis said about human trafficking: “Human trafficking is an open wound on the body of contemporary society, a scourge upon the body of Christ. It is a crime against humanity.”

The law governing human trafficking in the Philippines is embodied in Republic Act No. 10364 (R.A. No. 10364)¹, also called the Expanded Anti-Trafficking in Persons Act of 2012. This law strengthens the previously legislated Republic Act No. 9208 (R.A. No. 9208)², also called the Anti-Trafficking in Persons Act of 2003. R.A. No. 10364 covers attempted trafficking, new provisions on the liabilities of accomplices and accessories, and additional acts considered as human trafficking – namely, domestic/overseas employment for sexual exploitation, forced labor or involuntary debt bondage, recruitment of a Filipino woman to marry a foreign national, sex tourism, organ removal, and recruitment of a child to engage in armed activities abroad.

As can be gathered from the juvenile cases and family court cases from January to December 2021³, a quick look into the gender statistics involving cases against women and children for the past year reveals that there were 631 pending cases in the beginning of the year, 255 new cases filed, 147 decided cases, and 711 pending cases for 2022. This goes to show the alarming number of cases of trafficking in our country. In fact, even the Department of Justice - Office of Cybercrime (OOC) reported that the National Center for Missing and Exploited Children (NCMEC), a US-based private and non-profit corporation working to reduce child exploitation and help find missing children, recorded a total of 279,166 cases⁴ from its Cyberline Trip Report (CTR) hotline from March 1 to May 24 based on 76,561 reports.

¹ Official Gazette. Republic Act No. 10364. Retrieved from <https://www.officialgazette.gov.ph/2013/02/06/republic-act-no-10364/>.

² Official Gazette. Republic Act No. 9208. Retrieved from <https://www.officialgazette.gov.ph/2003/05/26/republic-act-no-9208-s-2003/>.

³ Supreme Court of the Philippines. Juvenile Cases and Family Court Cases: January to December 2021. Retrieved from <https://sc.judiciary.gov.ph/gender-corner/for-the-year-2021/>.

⁴ “Online Child Exploitation Reports in Ph Surge amid Covid-19: DOJ.” Accessed November 24, 2022. <https://www.pna.gov.ph/articles/1103852>.

Yet, far beyond the local statistics gathered by the Supreme Court, there seems to be a bigger problem involving human trafficking, as may be inferred from the data gathered by the United Nations. As discussed in the 2020 Global Report on Trafficking in Persons⁵ by the United Nations Office on Drugs and Crime (UNODC), about half of the detected victims in East Asia and the Pacific region are adult women. Children take up one-third of the total detected victims. The majority of detected victims continue to be trafficked for sexual exploitation. Additionally, East Asia and the Pacific victims – comprised of China, Japan, Malaysia, Philippines, Korea, Thailand, and Singapore, to name a few - have been detected in all regions and most sub-regions globally – in about 60 different countries. Both the diversity of the flows and the number of victims detected indicate that trafficking from East Asia has a global dimension. This means that most women and children in this area have been trafficked towards different parts of North America, Central, and South America, even to the Sub-Saharan African region.

Sadly, it is an undeniable fact that the Philippines is mostly a source country of trafficked persons. Previously, data on the magnitude of trafficking in persons from the Philippines are difficult to ascertain, although it is commonly believed to be significant given the intense and extensive international migration from the country⁶. Consequently, the advent of the passage of R.A. No. 9208 ushered the government to establish the Philippine Anti-Trafficking Database to collect and share trafficking-related information and to use this information as a basis for policy-making, action, monitoring, and evaluation. Since the enactment of the Anti-Trafficking in Persons Act⁷, the Inter-Agency Council Against Trafficking (IACAT) has monitored a total of 3,849, 60% or 2,297 of which were decided— or either resolved, archived, dismissed, or decided after a full-blown trial or utilization of a victim-centered prosecution strategy, such as plea bargaining. Recent findings further disclose that from January to December 2020, there were a total of 393 trafficking-in-persons cases filed before the Regional Trial Courts all over the Philippines. More so, the Inter-Agency Council Against Trafficking (IACAT) has monitored and recorded 644 trafficking in persons (TIP) convictions against 649 persons convicted, thereby giving justice to 1,583 trafficked victims, 933 (59%) of whom were minors since the enactment of the said law.

⁵ United Nations Office on Drugs and Crime. Global Report on Trafficking in Persons 2020. Retrieved from https://www.unodc.org/documents/data-and-analysis/tip/2021/GLOTiP_2020_15jan_web.pdf

⁶ “Supporting Victims-Survivors after Trafficking: Recovery, Return and Reintegration Programs in the Philippines.” End Slavery - English. Accessed November 24, 2022. http://www.endslavery.va/content/endslavery/en/publications/acta_20/asis.html.

⁷ Inter-Agency Council against Trafficking (IACAT). Accomplishment Report for The Reporting Period: CY 2020. Retrieved from <https://iacat.gov.ph/wp-content/uploads/2022/02/2020-IACAT-Annual-TIP-Report-2.pdf>

Even with such a comprehensive law in place, more progressive attempts are also being taken by the government to keep up with the changing trends at this time. In fact, as early as January 2022, the Senate unanimously passed, on the third and final reading, Senate Bill No. (SBN) 2449⁸, which proposes to further amend Republic Act No. 9208, as already amended by R.A. No. 10364. This has now been recognized as a law designated as Republic Act No. 11862 or the Expanded Anti-Trafficking Act of 2022⁹. R.A. No. 11862 ¹⁰aims to cater to victims of trafficking abroad, in the offshore gaming industry, and in underground online groups. The law will also provide law enforcers with additional tools for pursuing human traffickers, particularly when the violations involve the use of the internet and digital platforms, social media networks, and financial and e-commerce intermediaries. With the advent of the digital age starting from the year 2000 up to the present, where online technologies are weaponized for criminal activities.¹¹, such as human traffickers who trick people with fake job offers and promises and then exploit them for profit, this law should hopefully address such problems.

R.A. No. 11862, with Senator Risa Hontiveros as one of its authors, was crafted at the height of the Covid-19 pandemic. In order to incorporate aspects of human trafficking in such situation, the law also discusses certain provisions where there are additional aggravating circumstances when the crime is committed during a crisis, a public health concern such as a pandemic, a disaster, a humanitarian conflict or emergency situation, or when the trafficked person is a survivor of the same. Additionally, this law obliges local government units (LGUs) to provide recovery and reintegration support to trafficked persons and their families.

On the other hand, civil society organizations also play a hand in stopping trafficking. For instance, Destiny Rescue¹², a global organization, actively fights child sex trafficking in the Philippines. By doing hard rescues known as “sting operations,”¹³, Destiny Rescue works in partnership with law enforcement to rescue victims of child sex trafficking and bring perpetrators to justice. Although sting operations vary based on location, target, and logistics, these ultimately involve research, intensive reconnaissance work, trust-building, and undercover operations in red light establishments. In 2021, Destiny Rescue’s anti-trafficking efforts in the Philippines alongside law enforcement accomplished 251 rescues, 47% of which were children, and 47 arrests.

⁸ Senate of the Philippines. House Bill 2449. Retrieved from <https://legacy.senate.gov.ph/lisdata/36626335981.pdf>

⁹ Senate of the Philippines. Republic Act 11862. https://legacy.senate.gov.ph/republic_acts/ra%2011862.pdf

¹⁰ “Press Release - PRIB: Senate Moves to Strengthen Anti-Trafficking Law.” Latest News. Accessed November 24, 2022. https://legacy.senate.gov.ph/press_release/2022/0131_prib1.asp.

¹¹ “The Role of Technology in Human Trafficking.” United Nations: Office on Drugs and Crime. Accessed November 24, 2022. <https://www.unodc.org/unodc/en/human-trafficking/Webstories2021/the-role-of-technology-in-human-trafficking.html>.

¹² “Fighting Child Trafficking in the Philippines.” Destiny Rescue, October 25, 2022. <https://www.destinyrescue.org/our-work/where-we-work/philippines/>.

¹³ Destiny Rescue. Awareness & Action: Child Sex Trafficking Guide. p. 28-30. Retrieved from <https://www.destinyrescue.org.au/wp-content/uploads/2020/06/Destiny-Rescue-Trafficking-Field-Guide-Awareness-to-Action.pdf>

Another active actor that combats trafficking is End Child Prostitution in Asian Tourism (ECPAT).¹⁴ ECPAT is part of a global network of organizations and individuals working together for the elimination of child prostitution, child pornography, and the trafficking of children for sexual purposes. ECPAT has been proactive in its means to push its initiatives such as policy legislative advocacy and networking (PLAN) program, community and school education, as well as capacity building for law enforcers, service providers, and civil society organizations, and tourism workers.

In totality, there is weight in the findings of Prosecutor Aileen Marie S. Gutierrez when she discussed in her 2016 International Sex Trafficking Conference in Honolulu¹⁵: “Human trafficking is a multi-million criminal industry, in which traffickers adapt quickly to perpetuate their trade. As traffickers innovate their trafficking processes, and as new purposes for trafficking emerge and new vulnerable young groups come into the fold, countries all over the world must find new ways to combat this scourge. Governments accordingly must work cooperatively – both domestically and internationally – to prevent human trafficking.”

Indeed, there have been notable waves of progress that the Philippines has done to combat cases of human trafficking. With active legislative measures put in place, as well as effective implementation of laws at the national and local levels, non-government organizations have also been devoted participants to assist the government in these matters.

The fight to end human trafficking is far from over, but this shall only remind us that we will continue the fight and never back down. ■

¹⁴ ECPAT. Accessed November 24, 2022. <https://ecpat.org.ph/>.

¹⁵ Gutierrez, Aileen Marie S. Preventing Human Trafficking In the Philippines Overview and Current Activities. Retrieved from https://www.unafei.or.jp/publications/pdf/RS_No87/No87_13PA_Aileen.pdf

A Law Written in Blood: *Analysis of Anti-Terrorism Act of 2020*

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I Conception of the Anti-Terrorism Act of 2020

On May 23, 2017, Marawi City was attacked by armed men.¹ This resulted in armed confrontation between government forces and pro-ISIS militants. A day later, then-President Duterte put the entire region under martial law.² When the Mindanao-wide martial law was approaching its expiration date, the Congress introduced House Bill (HB) No. 6875 or the proposed Anti-Terrorism Act of 2020. On June 1, 2020, then-President Duterte wrote a letter to House Speaker Alan Peter Cayetano saying HB No. 6875 must be immediately passed "to address the urgent need to strengthen the law on anti-terrorism" and "effectively contain the menace of terrorist acts."³ This allowed the House to pass the bill on 2nd reading as well as 3rd and final reading on the same day.⁴

II Birth of the Anti-Terrorism Act of 2020

On July 3, 2020, then-President Duterte signed this controversial bill into law.⁵ The law will take effect after publication pending the issuance of implementing rules and regulations.

¹ Dr DB Subedi and Dr Balázs Áron Kovács, Setianto, N., Jami, M., & Wong, D. A. C. (2020, June 18). *The Philippines' new anti-terrorism law closes the space for peacebuilding*. Australian Institute of International Affairs. Retrieved October 27, 2022, from <https://www.internationalaffairs.org.au/australianoutlook/the-philippines-new-anti-terrorism-law-closes-the-space-for-peacebuilding/>

² Morales, Y. (n.d.). *Duterte declares martial law in Mindanao*. cnn. Retrieved October 27, 2022, from <https://www.cnnphilippines.com/news/2017/05/24/Duterte-declares-martial-law-in-Mindanao.html>

³ Staff, C. N. N. P. (n.d.). *Sotto: Anti-terrorism bill 'good as passed'*. cnn. Retrieved October 27, 2022, from <https://www.cnnphilippines.com/news/2020/6/2/Anti-terror-bill-good-as-passed-after-Duterte-certified-as-urgent.html>

⁴ P&L LawPamaos & Labao Law Firm (P&L Law) is a full-service professional legal firm. (2020, June 6). *Effect of certification by president that a proposed law is urgent; engrossed/enrolled bill " Philippine e-legal forum* Philippine e-Legal Forum. Retrieved October 27, 2022, from <https://pnl-law.com/blog/effect-of-certification-by-president-that-a-proposed-law-is-urgent-engrossed-enrolled-bill/>

⁵ Santos, E. (n.d.). *Duterte signs into law the controversial anti-terrorism Bill*. cnn. Retrieved October 27, 2022, from <https://cnnphilippines.com/news/2020/7/3/duterte-signs-anti-terrorism-law.html?via=webuproar>

III About the Anti-Terrorism Act of 2020

Republic Act No. 11479, or the Anti-Terrorism Act of 2020 (ATA), repealed the Human Security Act of 2007. The ATA aims (1) to protect life, liberty, and property from terrorism; (2) to condemn terrorism as inimical and dangerous to national security of the country and welfare of the people; and (3) to make any form of terrorism a crime against Filipino people, against humanity and against the law of Nations.

Terrorism can be committed by any person, here in the Philippines or abroad, regardless of the stage of execution if that person commits the following acts: (1) cause death or serious bodily injury to any person, or endangers a person's life⁶; (2) cause extensive damage or destruction to a government or public facility, public place, or private property⁷; (3) cause extensive interference with, damage, or destruction to critical infrastructure⁸; (4) Develops, manufactures, possesses, acquires, transports, supplies or uses weapons, explosives or of biological, nuclear, radiological, or chemical weapons⁹; (5) Release of dangerous substances, or causing fire, floods, or explosions¹⁰. The purpose of the act should be to intimidate the public, create an atmosphere or spread a message of fear, provoke or to influence by intimidation the government or any international organization, or seriously destabilize or destroy the fundamental, political, economic, or social structures of the country, or create a public emergency or undermine public safety.¹¹ ATA qualifies that advocacy, protest, dissent, stoppage of work, industrial or mass action, creative, artistic, and cultural expression, or other similar exercises of civil and political rights are acts that are not considered as terrorism.¹²

The ATA also penalizes threat to commit terrorism¹³, planning, training, preparing and facilitating the commission of terrorism¹⁴, conspiracy to commit terrorism¹⁵, proposal to commit terrorism¹⁶, inciting to commit terrorism¹⁷, recruitment to and membership in a terrorist group, and providing material support to terrorists¹⁸.

⁶ Section 4 (a) of the Anti-Terrorism Act of 2020

⁷ Section 4 (b) of the Anti-Terrorism Act of 2020

⁸ Section 4 (c) of the Anti-Terrorism Act of 2020

⁹ Section 4 (d) of the Anti-Terrorism Act of 2020

¹⁰ Section 4 (e) of the Anti-Terrorism Act of 2020

¹¹ *Id.*

¹² *Id.*

¹³ Section 5 of the Anti-Terrorism Act of 2020

¹⁴ Section 6 of the Anti-Terrorism Act of 2020

¹⁵ Section 7 of the Anti-Terrorism Act of 2020

¹⁶ Section 8 of the Anti-Terrorism Act of 2020

¹⁷ Section 9 of the Anti-Terrorism Act of 2020

¹⁸ Section 10 of the Anti-Terrorism Act of 2020

Moreover, ATA allows longer period and extended coverage of surveillance¹⁹, designation and freezing of assets of designated terrorist individual, groups of persons, organizations, or associations²⁰, restriction on the right to travel²¹, and deletion of award of damages to persons acquitted of charges of terrorism²².

Finally, the heart and soul of the Anti-Terrorism Act (ATA) is found in its Section 29, which authorizes the Anti-Terrorism Council (ATC) to order an arrest without judicial warrant, and to extend detention without judicial charge beyond the reglementary 3-day period under the Revised Penal Code (RPC). According to Senator Panfilo Lacson, the principal author of the ATA, the rationale behind this provision is that law enforcement agents need at least 14 days to develop a case and to file a strong case for violation of ATA to strengthen the case. Defense Secretary Delfin Lorenzana echoed this. He said that longer detention period is necessary so that the authorities can hold the him if he is really a terrorist. This will also disable him from committing a terror act.

IV Petition

The 37 petitions were filed by framers of the Constitution, law experts, and human rights advocates, as well as individuals who claim to have been victims of authorities' terrorist-tagging.²³

The major issues raised are as follows:

1. Is the definition of terrorism under the Anti-Terrorism Act of 2020 ambiguous?
2. Was the Anti-Terrorism Council given too much power?
3. Is the warrantless arrest and detention without charges of suspected terrorists for up to 24 days contrary to the Constitution, the Revised Penal Code, the Rules of Court, and international obligations against arbitrary detention?
4. Did the sections on surveillance violate the people's rights to due process and to privacy of communication and correspondence, rights to freedom of speech, expression, and religion, right against unreasonable searches and seizures, and the accused's right to presumption of innocence?

¹⁹ Section 16 of the Anti-Terrorism Act of 2020

²⁰ Section 25 and Section 36 of the Anti-Terrorism Act of 2020

²¹ Section 34 of the Anti-Terrorism Act of 2020

²² Section 34 of the Anti-Terrorism Act of 2020

²³ *Here are the major issues raised against the Anti-Terrorism Act*. cnn. (n.d.). Retrieved November 17, 2022, from <https://www.cnnphilippines.com/news/2021/1/30/Anti-Terrorism-Act-oral-arguments-Supreme-Court.html>

V Decision of the Supreme Court

In December 2021, the Philippine Supreme Court has mostly upheld the heavily contested anti-terror law, including the 24-day detention power.²⁴ In justifying its ruling, the Supreme Court accepted the interpretation of the Solicitor General. The Solicitor General in his comment stated that Section 29 does not authorize the ATC to order the arrest of any person. The Solicitor General interpreted Section 29 as referring to warrantless arrests under Rule 113 of the Rules of Court. Simply put, Section 29 is just a reiteration of Rule 113. The Supreme Court declared only two parts unconstitutional, part of the so-called killer caveat under Section 4(e) and the second mode of designation under Section 25.²⁵ Section 4 (e) deals with excluding mass actions and similar exercise of civil and political rights from the definition of terrorism while Section 25 is about requests by foreign agencies or bodies to designate persons as terrorists and terrorist organizations.²⁶

The Supreme Court voted 12-3 to declare unconstitutional the qualifier portion of Section 4 that states “which are not intended to cause death or serious physical harm to a person, to endanger a person's life, or to create a serious risk to public safety”.²⁷ This qualifier to the proviso in Section 4 “is declared as unconstitutional for being overbroad and violative of freedom of expression”.²⁸

By a vote of 9-6, a portion of Section 25, paragraph 2 was also declared unconstitutional. This provision allows “request for designations by other jurisdictions or supranational jurisdictions may be adopted by the ATC (Anti-Terrorism Council) after determination that the proposed designee meets the criteria for designation of UNSCR No. 1373”.²⁹

On April 26, 2022, the high tribunal denied “with finality” the appeals to reverse its decision on petitions challenging the anti-terror law because of “lack of substantial issues and arguments raised by the petitioners”.³⁰

²⁴Buan, L., author. *Supreme Court upholds most of anti-terror law, including 24-Day detention* RAPPLER. Retrieved October 27, 2022, from <https://www.rappler.com/nation/supreme-court-upholds-parts-anti-terrorism-law/>

²⁵ *Id.*

²⁶SC denies with finality all challenges vs. Anti-Terrorism Act. (n.d.). Retrieved October 27, 2022, from <https://www.pna.gov.ph/articles/1172952>

²⁷ *Id.*

²⁸ *Id.*

²⁹ *Id.*

³⁰ *SC decision on Anti-Terrorism Act 'Triumph' for ph: Palace.* (n.d.). Retrieved November 17, 2022, from <https://www.pna.gov.ph/articles/1172983>

V After Effects

On March 2, 2022, 26 groups filed a joint motion for reconsideration. The petitioners cited the recent killing of Lumad school volunteer teacher Chad Booc and four others in New Bataan, Davao de Oro. Booc has long been subjected to red-tagging by government officials before his death. Also, the motion noted that red-tagging has in many instances preceded the extrajudicial killings of activists and human rights defenders, with Booc, also a petitioner against ATA, being one of the victims paraded as ‘terrorists’ by the military.³¹

On June 25, 2022, ATC Resolution No. 31 designated Luis Jalandoni as a terrorist, along with 10 other persons with alleged links with the Communist Party of the Philippines - New Peoples’ Army (CPP-NPA), Abu Sayyaf Group (ASG), and Daulah Islamiyah (DI). ATC Resolution No. 31 was signed on May 25, 2022.³²

On June 22, 2022, Outgoing National Security Adviser Hermogenes Esperon Jr. managed to get the National Telecommunications Commission (NTC) to block access to 28 websites.³³ This was made possible despite not citing evidence. In particular, his letter of request to the NTC failed to cite even the specific articles of the ATA that he claims these websites violated. A month later, opposition party-lists filed a bill to repeal the Anti-Terrorism Act. In filing the bill, Rep. Raoul Manuel (Kabataan party-list), Rep. France Castro (ACT Teachers party-list) and Rep. Arlene Brosas (Gabriela Women’s Party) said “it is high time for Congress to do its part to ensure that this bill will not have the capability to harm any other person in the country.”³⁴ However, this ship may not likely sail considering that the House of Representatives has historically been dominated by members aligned with or supportive of the sitting president.

³¹ Yahoo! (n.d.). *Supreme Court urged to reconsider 'deadly' anti-terror law*. Yahoo! News. Retrieved November 17, 2022, from

<https://ph.news.yahoo.com/supreme-court-urged-to-reconsider-deadly-anti-terror-law-072008674.html>

³² Yahoo! (n.d.). *11 individuals tagged as terrorists by anti-terror council*. Yahoo! News. Retrieved November 17, 2022, from <https://ph.news.yahoo.com/anti-terror-council-tags-11-individuals-as-terrorists-074518020.html>

³³ Buan, L., author (2022, June 23). *Esperon uses anti-terror law to block websites including news site*. RAPPLER. Retrieved November 17, 2022, from https://www.rappler.com/nation/esperon-uses-anti-terror-law-block-access-progressive-websites-including-news-organization/?cx_testId=2&cx_testVariant=cx_1&cx_artPos=1&cx_experienceId=EX4CPN0G1RJL#cxrecs_s

³⁴ Person. (2022, July 3). *Citing potential abuse, makabayan party-lists seek repeal of Anti-Terrorism Act*. Philstar.com. Retrieved November 17, 2022, from <https://www.philstar.com/headlines/2022/07/03/2192766/citing-potential-abuse-makabayan-party-lists-seek-repeal-anti-terrorism-act>

VI Conclusion

Taking politically motivated arrests and countless cases of human rights violation into consideration, Anti-Terrorism Act may more likely produce more harm than good. Hence, let the eye of vigilance never be closed. ■

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The Philippines' Commitment to the Fight Against Impunity for Atrocity Crimes

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Former United Nations Secretary-General Kofi Annan was once quoted saying: "This cause ... is the cause of all humanity."¹ These words embody the aspirations of all of humanity in making sure that justice prevails against the worst kinds of atrocities committed against the human race. For this reason, the International Criminal Court (ICC) was established through an international treaty known as the Rome Statute. The ICC investigates and, where warranted, tries individuals charged with the gravest crimes of concern to the international community: genocide, war crimes, crimes against humanity and the crime of aggression.²

The Philippines had a rather convoluted history with the Rome Statute and the ICC. This was discussed in detail in *Pangilinan vs. Cayetano*, as follows:

Since 1996, under Fidel V. Ramos's presidency, the Philippines has participated in the court's establishment, taking an active role in the deliberations as a member of the Drafting Committee.

On December 28, 2000, the Philippines, through then President Joseph Ejercito Estrada, signed the Rome Statute of the ICC.

President Estrada's act of signing the Rome Statute signified the Philippines' intent to be bound by the provisions of the treaty, subject to the domestic requirements for its validity and enforceability. Particularly, Article VII, Section 21 of the 1987 Constitution requires the concurrence by at least two-thirds of all members of the Senate for a treaty to be valid, binding, effective, and enforceable.

In the meantime, on July 1, 2002, the ICC's Rome Statute entered into force.

On December 11, 2009, with Senate concurrence to the Rome Statute still pending, then President Gloria Macapagal-Arroyo signed into law Republic Act (RA) No. 9851, otherwise known as the Philippine Act on Crimes Against International Humanitarian Law, Genocide, and Other Crimes Against Humanity. Republic Act No. 9851 replicated many of the Rome Statute's provisions.

¹ "About the Court." International Criminal Court. Accessed November 16, 2022.
<https://www.icc-cpi.int/about/the-court>.

² *Ibid.*

Senate concurrence to the Rome Statute was obtained following President Benigno Aquino III's election. On August 23, 2011, the Senate, with a vote of 17-1, passed Resolution No. 546 enabling the Philippines' consummate accession to the Rome Statute.

On August 30, 2011, the Philippines deposited the instrument of ratification of the Rome Statute. On November 1, 2011, the Rome Statute entered into force in the Philippines. The country was the 16th state party to belong to the Group of Asia-Pacific State Parties in the ICC.

On June 30, 2016, President Aquino's term ended and President Rodrigo Roa Duterte took his oath as chief executive.

On April 24, 2017, Atty. Jude Sabio filed a complaint before the International Criminal Court pertaining to alleged summary killings when President Duterte was the mayor of Davao City.

On June 6, 2017, Senator Antonio Trillanes IV and Representative Gary Alejano filed a "supplemental communication" before the International Criminal Court with regard to President Duterte's drug war.

On February 8, 2018, the Office of International Criminal Court Trial Prosecutor Fatou Bensouda commenced the preliminary examination of the atrocities allegedly committed in the Philippines pursuant to the Duterte administration's "war on drugs."

On March 15, 2018, the Philippines announced that it was withdrawing from the International Criminal Court. President Duterte claimed that the country never became a state party to the Rome Statute since the treaty was not published in the Official Gazette.

On March 16, 2018, the Philippines formally submitted its Notice of Withdrawal from the ICC to the United Nations. Enrique Manalo, the Permanent Representative of the Republic of the Philippines to the United Nations in New York, deposited the Note Verbale to Maria Luiza Ribeiro Viotti, Chef de Cabinet of the United Nations' Secretary-General Antonio Guterres.

The full text of this notification reads:

"The Permanent Mission of the Republic of the Philippines to the United Nations presents its compliments to the Secretary-General of the United Nations and has the honor to inform the Secretary-General of the decision of the Government of the Republic of the Philippines to withdraw from the Rome Statute of the International Criminal Court in accordance with the relevant provisions of the Statute.

The Philippines assures the community of nations that the Philippine Government continues to be guided by the rule of law embodied in its Constitution, which also enshrines the country's long-standing tradition of upholding human rights.

The Government affirms its commitment to fight against impunity for atrocity crimes, notwithstanding its withdrawal from the Rome Statute, especially since the Philippines has a national legislation punishing atrocity crimes. The Government remains resolute in effecting its principal responsibility to ensure the long-term safety of the nation in order to promote inclusive national development and secure a decent and dignified life for all.

The decision to withdraw is the Philippines' principled stand against those who politicize and weaponize human rights, even as its independent and well-functioning organs and agencies continue to exercise jurisdiction over complaints, issues, problems and concerns arising from its efforts to protect its people.

The Permanent Mission of the Republic of the Philippines to the United Nations avails itself of this opportunity to renew to the Secretary-General of the United Nations the assurances of its highest consideration.

On March 17, 2018, the Secretary-General of the United Nations received the notification from the Philippine government.”³

From the above, it is unquestionable that the Philippines became a state party to the Rome Statute on November 1, 2011, since the requirements of the Constitution, particularly Article VII, Section 21, as well as those under Articles 125 and 126 of the Rome Statute, as stated below, were complied with.

Article 125

Signature, ratification, acceptance, approval or accession.

x x x x

2. This Statute is subject to ratification, acceptance or approval by signatory States. Instruments of ratification, acceptance or approval shall be deposited with the Secretary-General of the United Nations.
3. This Statute shall be open to accession by all States. Instruments of accession shall be deposited with the Secretary-General of the United Nations.

Article 126

Entry into force

x x x x

³ Senator Francis “Kiko” N. Pangilinan, *et. al.* vs. Alan Peter Cayetano, *et. al.*, G.R. No. 238875 (March 16, 2021).

2. For each State ratifying, accepting, approving or acceding to this Statute after the deposit of the 60th instrument of ratification, acceptance, approval or accession, the Statute shall enter into force on the first day of the month after the 60th day following the deposit by such State of its instrument of ratification, acceptance, approval or accession.⁴

The argument that the Rome Statute was never binding on the Philippines because it was not published in the Official Gazette deserves scant consideration., as it is well-established in international law that following the doctrine of *pacta sunt servanda*, a state cannot renege on its obligations under an international treaty on the ground of procedural technicalities, particularly when its duly appointed (or elected) representatives have signified their intention to be bound by the treaty's provisions. This is the doctrine of *pacta sunt servanda*.

Further, assuming that the non-publication of the treaty in the Official Gazette operates to exempt the Philippines from its binding force, there would not have been any need to withdraw from the treaty. Certainly, the submission of the official Notice of Withdrawal from the ICC estops the Philippines from taking a contrary stance on the Rome Statute's entry into force in the country.

It cannot also be denied that the Philippines has withdrawn from the Rome Statute effective March 16, 2019 when it formally submitted its Notice of Withdrawal to the United Nations., This was made pursuant in accordance with Article 127 of the Rome Statute, which states: "A State Party may, by written notification addressed to the Secretary-General of the United Nations, withdraw from this Statute. The withdrawal shall take effect one year after the date of receipt of the notification, unless the notification specifies a later date."⁵

Nevertheless, the reasons behind such withdrawal may have been politically motivated. This is evident from the words used in the *Note Verbale* deposited to the United Nations: "The decision to withdraw is the Philippines' principled stand against those who politicize and weaponize human rights..."⁶ This obviously refers to the complaints filed by Atty. Jude Sabio, former Senator Antonio Trillanes IV and former Representative Gary Alejano against fFormer President Rodrigo Duterte for alleged atrocities committed as a result of the latter's infamous "war on drugs."

As it is, answers to several key legal issues are warranted to shed light on the status of the Philippines' commitment to the fight against impunity for atrocity crimes. First, does the ICC have jurisdiction over the alleged atrocities perpetrated by fFormer President Duterte despite the prior enactment of RA No. 9851? Second, does the withdrawal of the Philippines from the Rome Statute divest the ICC of its jurisdiction over the alleged crimes? Third, does the statement in the *Note Verbale* that "the Philippines has a national legislation punishing atrocity crimes" deserve legal credence?

⁴ Rome Statute of the International Criminal Court, 56.

⁵ *Ibid*, 56. Rome Statute of the International Criminal Court.

⁶ Pangilinan vs. Cayetano, *supra* note 3.

Lastly, is there probable cause that “crimes against humanity” was committed by the former president?

Jurisdiction of the ICC

In *Bayan Muna vs. Alberto Romulo*, the Supreme Court underscored the primacy of the jurisdiction of the Philippines vis-a-vis that of the ICC.⁷ This is evident in Article 20 of the Rome Statute, which provides:

Article 207

Ne bis in idem

xx x x

3. No person who has been tried by another court for conduct also proscribed under article 6, 7, 8 or 8 *bis* shall be tried by the Court with respect to the same conduct unless the proceedings in the other court:
 - (a) Were for the purpose of shielding the person concerned from criminal responsibility for crimes within the jurisdiction of the Court; or
 - (b) Otherwise were not conducted independently or impartially in accordance with the norms of due process recognized by international law and were conducted in a manner which, in the circumstances, was inconsistent with an intent to bring the person concerned to justice.⁸

Supporters of former President Duterte argue that this provision effectively divests the ICC of jurisdiction over crimes allegedly committed by the former president because the Philippine courts are functioning as intended.

This argument does not hold water. While it is true that the enactment of R.A. No. 9851 effectively confers primary jurisdiction to Philippine courts as far as “other crimes against humanity” is concerned, Article 207 of the Rome Statute uses the word “tried.” Settled is the rule that criminal prosecutions or trials are commenced by the filing of a valid complaint or information. No such complaint or information was ever filed in the Philippines against the former president. Thus, it cannot be said that there has been a trial that would warrant the application of *ne bis in idem*.

⁷ *Bayan Muna vs. Alberto Romulo, et. al.*, G.R. No. 159618 (February 1, 2011).

⁸ Rome Statute of the International Criminal Court, 13.

Withdrawal by the Philippines

On the question of the jurisdiction of the ICC over alleged atrocity crimes perpetrated in the Philippines, the following articles of the Rome Statute are of particular importance:

Article 11

Jurisdiction *ratione temporis*

x x x x

2. If a State becomes a Party to this Statute after its entry into force, the Court may exercise its jurisdiction only with respect to crimes committed after the entry into force of this Statute for that State, unless that State has made a declaration under article 12, paragraph 3.

Article 12

Preconditions to the exercise of jurisdiction

x x x x

3. If the acceptance of a State which is not a Party to this Statute is required under paragraph 2, that State may, by declaration lodged with the Registrar, accept the exercise of jurisdiction by the Court with respect to the crime in question. The accepting State shall cooperate with the Court without any delay or exception in accordance with Part 9.

Article 127

Withdrawal

x x x x

2. **A State shall not be discharged, by reason of its withdrawal, from the obligations arising from this Statute while it was a Party to the Statute**, including any financial obligations which may have accrued. **Its withdrawal shall not affect any cooperation with the Court in connection with criminal investigations and proceedings in relation to which the withdrawing State had a duty to cooperate and which were commenced prior to the date on which the withdrawal became effective**, nor shall it prejudice in any way the continued consideration of any matter which was already under consideration by the Court prior to the date on which the withdrawal became effective.⁹ (Emphasis supplied)

⁹ *Ibid*, 56.

In this regard, several key dates must be taken into account in determining whether the ICC continues to exercise jurisdiction over alleged atrocities committed by former President Duterte:

1. The Rome Statute entered into force in the Philippines on November 1, 2011.¹⁰
2. The former president's latest tenure as mayor of Davao City lasted from June 30, 2013 to June 30, 2016. Previously, he also served as mayor of Davao City from June 30, 2001 to June 30, 2010.¹¹
3. Duterte became President of the Philippines from June 30, 2016 to June 30, 2022.¹²
4. ICC Prosecutor Bensouda commenced preliminary examination on the alleged atrocities committed by Duterte on February 8, 2018.¹³
5. The Philippines' withdrawal from the Rome Statute became effective on March 16, 2019.¹⁴

The Complaints filed in the ICC against Former President Duterte were for the alleged atrocities he committed as mayor of Davao City and during his "war on drugs" campaign. In addition, the preliminary examination for these atrocities was given due course by the ICC Prosecutor while the Rome Statute was still effective in the Philippines.

Therefore, applying the above provisions of the Rome Statute, notwithstanding the withdrawal of the Philippines, the ICC continues to retain jurisdiction over atrocities committed from November 1, 2011 when the statute entered into force in the Philippines while Duterte was Davao City Mayor up to March 16, 2019, the effective date of the withdrawal of the Philippines, when Duterte was already President of the country.

¹⁰ Pangilinan vs. Cayetano, *supra* note 3.

¹¹ "Rodrigo Duterte." Encyclopædia Britannica. Encyclopædia Britannica, inc. Accessed November 17, 2022. <https://www.britannica.com/topic/Rodrigo-Duterte>.

¹² *Ibid.*

¹³ Pangilinan vs. Cayetano, *supra* note 3.

¹⁴ *Ibid.*

R.A. No. 9851 vis-à-vis the Rome Statute

At this point, a comparison of the provisions of RA No. 9851 vis-à-vis the Rome Statute is in order. Section 9 of RA No. 9851 provides:

Section 9. Irrelevance of Official Capacity. - This Act shall apply equally to all persons without any distinction based on official capacity. In particular, official capacity as a head of state or government, a member of a government or parliament, an elected representative or a government official shall in no case exempt a person from criminal responsibility under this Act, nor shall it, in and of itself, constitute a ground for reduction of sentence. However:

- (a) **Immunities or special procedural rules that may be attached to the official capacity of a person under Philippine law other than the established constitutional immunity from suit of the Philippine President during his/her tenure, shall not bar the court from exercising jurisdiction over such a person;** (Emphasis supplied)

x x x x

On the other hand, Article 27 of the Rome Statute states:

Article 27

Irrelevance of official capacity

1. This Statute shall apply equally to all persons without any distinction based on official capacity. In particular, **official capacity as a Head of State or Government, a member of a Government or parliament, an elected representative or a government official shall in no case exempt a person from criminal responsibility under this Statute, nor shall it, in and of itself, constitute a ground for reduction of sentence**
2. **Immunities or special procedural rules which may attach to the official capacity of a person, whether under national or international law, shall not bar the Court from exercising its jurisdiction over such a person.**¹⁵ (Emphasis supplied)

The above provisions clearly show a marked difference between RA No. 9871 and the Rome Statute in terms of the criminal liability of the head of state. RA No. 9871 specifically exempts the President of the Philippines from any criminal liability arising from the commission of “atrocious crimes,” whereas such immunity is not recognized under the Rome Statute.

¹⁵ Rome Statute of the International Criminal Court, 15.

Accordingly, during the incumbency of Former President Duterte, assuming *arguendo* that even if a valid cComplaint or information has been filed against him for “other crimes of humanity” under RA No. 9871, Philippine courts would have been devoid of any jurisdiction to try him for the alleged crimes. Thus, while it is true that with the enactment of RA No. 9871, the Philippines has a national legislation punishing atrocity crimes, as regards the President of the Philippines, such legislation is rendered ineffective against the President of the Philippines by the express provision of Section 9 of the said law.

Probable Cause

Probable cause is defined as the presence of facts and circumstances that which would engender a well-founded belief that a crime has been committed and the accused is probably guilty thereof. It does not imply proof beyond reasonable doubt. As such, in order to determine probable cause, there is a need to examine closely the elements of the crime allegedly committed. The Rome Statute defines “crimes against humanity” in Article 7, as follows:

Article 7

Crimes against humanity

1. For the purpose of this Statute, "crime against humanity" means any of the following acts when committed as part of a widespread or systematic attack directed against any civilian population, with knowledge of the attack:

 (a) Murder;

 x x x x
2. For the purpose of paragraph 1:

 (a) "Attack directed against any civilian population" means a course of conduct involving the multiple commission of acts referred to in paragraph 1 against any civilian population, pursuant to or in furtherance of a State or organizational policy to commit such attack;

 x x x x
3. For the purpose of this Statute, it is understood that the term "gender" refers to the two sexes, male and female, within the context of society. The term "gender" does not indicate any meaning different from the above.

In addition, the Rome Statute defines the criminal responsibility of military commanders and other superior officers in Article 28, to wit:

Article 28

Responsibility of commanders and other superiors

In addition to other grounds of criminal responsibility under this Statute for crimes within the jurisdiction of the Court:

- (a) A military commander or person effectively acting as a military commander shall be criminally responsible for crimes within the jurisdiction of the Court committed by forces under his or her effective command and control, or effective authority and control as the case may be, as a result of his or her failure to exercise control properly over such forces, where:
 - i. That military commander or person either knew or, owing to the circumstances at the time, should have known that the forces were committing or about to commit such crimes; and
 - ii. That military commander or person failed to take all necessary and reasonable measures within his or her power to prevent or repress their commission or to submit the matter to the competent authorities for investigation and prosecution.
- (b) With respect to superior and subordinate relationships not described in paragraph (a), a superior shall be criminally responsible for crimes within the jurisdiction of the Court committed by subordinates under his or her effective authority and control, as a result of his or her failure to exercise control properly over such subordinates, where:
 - i. The superior either knew, or consciously disregarded information which clearly indicated, that the subordinates were committing or about to commit such crimes;
 - ii. The crimes concerned activities that were within the effective responsibility and control of the superior; and
 - iii. The superior failed to take all necessary and reasonable measures within his or her power to prevent or repress their commission or to submit the matter to the competent authorities for investigation and prosecution.¹⁶

¹⁶ Rome Statute of the International Criminal Court, 15.

According to the Real Numbers data released by the Philippine Drug Enforcement Agency (PDEA) as of January 31, 2022, a total of 226,662 anti-drug operations were conducted as part of the “war on drugs” campaign of President Duterte, resulting in 6,229 civilian casualties.¹⁷ However, other sources claim that the death toll totaled approximately 12,000. In the first year alone, 54 children were killed.¹⁸

Moreover, a report from Amnesty International disclosed that a police officer with the rank of Senior Police Officer 1 disclosed that, who has served in the force for a decade and has conducted operations as part of an anti-illegal drugs unit in Metro Manila, described how the police are paid per “encounter.” The officer was allegedly quoted as having said that– the term used to falsely present extrajudicial executions as legitimate operations: “We always get paid by the encounter...The amount ranges from 8,000 pesos to 15,000 pesos... That amount is per head. So, if the operation is against four people, that’s 32,000 pesos... We’re paid in cash, secretly, by headquarters...There’s no incentive for arresting. We’re not paid anything.”¹⁹

Of particular interest as well is the killing of 17-year old Kian Loyd Delos Santos in an alleged anti-illegal drugs operation in Caloocan City on August 16, 2017. Police officers claimed that Kian fired first, so they had to eliminate him, as their lives were placed in imminent danger. However, this was refuted by the accounts of witnesses, as well as the CCTV footage of the incident.²⁰ As a result, the three police officers involved were found guilty of murder and were sentenced to *reclusion perpetua* without the benefit of parole.²¹

These circumstances clearly constitute probable cause that a widespread and systematic attack was conducted in the Philippines during President Duterte’s “war on drugs” campaign, which resulted in the death of thousands of people. While there seems to be a lack of concrete evidence that the supposed killings were directed by the former president himself, he may still be liable as a military commander or superior under Article 28 of the Rome Statute for having failed exercise effective control over law enforcement personnel under his command to prevent the unjustified and senseless killings. In fact, in several of his speeches, Duterte urged the police to adopt a

¹⁷ Gita-Carlos, Ruth Abbey. “Give Drug War Report to Human Rights Groups, Duterte Tells PDEA.” Philippine News Agency. Philippine News Agency, March 30, 2022.
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¹⁸ “The Guardian View on the Philippines: A Murderous ‘War on Drugs’ | Editorial.” The Guardian. Guardian News and Media, September 28, 2018.
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¹⁹ “Philippines: The Police’s Murderous War on the Poor,” August 8, 2022.
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²¹ Cayabyab, Marc Jayson. “3 Cops Guilty of Kian Delos Santos Murder.” Philstar.com. Philstar.com, November 29, 2018.
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shoot-to-kill policy against those involved in illegal drugs, and even urged citizens to kill suspected criminals.²²

While this article has demonstrated the existence of probable cause, the question as to whether there is proof beyond reasonable doubt that the alleged “crimes against humanity” was committed by former President Duterte is another story. Undoubtedly, the appreciation of such evidence requires a full-blown trial, which may be conducted by the ICC after having acquired jurisdiction over the case. In sum, it can be said that the fight against impunity for atrocity crimes in the Philippines is far from over. ■

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Libel in the Cyber Space: *Cyber Libel in a Prism*

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I Libel vis-a-vis Cyber Libel

Libel is a crime against honor. "A libel is a public and malicious imputation of a crime, or of a vice or defect, real or imaginary, or any act, omission, condition, status or circumstance tending to cause the dishonor, discredit, or contempt of a natural or juridical person, or to blacken the memory of one who is dead."¹

"Libel generally refers to the offense of injuring a person's character, fame or reputation through false and malicious statements. It tends to injure the reputation or diminish the esteem, respect, goodwill of a person or excite derogatory feelings or opinions against a person. It is the publication of anything which is injurious to the good name or reputation of another, or tends to bring him/her into disrepute."²

With the enactment of Republic Act No. 10175 or the Cybercrime Prevention Act of 2012, libel is now defined as the unlawful or prohibited acts of libel as defined in Article 355 of the Revised Penal Code (RPC), as amended, committed through a computer system or any other similar means which may be devised in the future."³

As provided in Article 355 of the RPC, *libel is committed by writings or similar means* through any of the following: writing, printing, lithography, engraving, radio, phonograph, painting, theatrical exhibition, cinematographic exhibition or any similar means.⁴ Cyber libel is libel committed through "similar means" particularly through Information Communication Technologies (ICTs) or the internet.⁵

¹ Act No. 3815. Revised Penal Code. (December 8, 1930) Retrieved on November 9, 2022 from https://lawphil.net/statutes/acts/act_3815_1930.html#:~:text=Conspiracy%20and%20proposal%20to%20commit,and%20decide%20to%20commit%20it

² Hofileña, Saul Jr. (October 22, 2022). Libel and cybel libel. Retrieved November 9, 2022 from <https://www.manilatimes.net/2022/10/22/opinion/columns/libel-and-cyber-libel/1863237>

³ Republic Act No. 10175. Cybercrime Prevention Act of 2012. (September 12, 2012). Retrieved November 9, 2022 from https://lawphil.net/statutes/repacts/ra2012/ra_10175_2012.html

⁴ Act No. 3815. Revised Penal Code (December 8, 1930) Retrieved November 9, 2022 from https://lawphil.net/statutes/acts/act_3815_1930.html#:~:text=Conspiracy%20and%20proposal%20to%20commit,and%20decide%20to%20commit%20it

⁵ Republic Act No. 10175. Cybercrime Prevention Act of 2012 (September 12, 2012). Retrieved November 9, 2022 from https://lawphil.net/statutes/repacts/ra2012/ra_10175_2012.html

The Cybercrime Prevention Act of 2012 does not define cyber libel. In the case of *Disini vs. Secretary of Justice* (GR No. 203335, February 11, 2014⁶), the Supreme Court explained that a qualifying circumstance arises from the fact that in “using [the] technology in question, the offender often evades identification and is able to reach far more victims or cause greater harm.”⁷

II Elements of Cyber Libel

The elements of cyber libel as stated in the Cyber Crime Prevention Act of 2012 are the following:

- a. The allegation of a discreditable act or condition concerning another;
- b. Publication of the charge;
- c. Identity of the person defamed;
- d. Existence of malice,⁸ and
- e. Use of Computer System.⁹

As to the first requirement, the allegation must be a malicious imputation of a crime or of a vice or defect, real or imaginary, or any act, omission, condition, status or circumstance tending to cause the dishonor, discredit or contempt of a natural or juridical person or to blacken the memory of one who is dead.¹⁰

As to the second requirement, particular to cyber libel, the publication requirement is satisfied when the allegation is made publicly through the use of information and communication technologies.¹¹

For the third requisite identified, it is not necessary that the person defamed is named. If the totality of the publication makes it possible to determine who the defamed person is, then this element is satisfied.¹²

⁶ G.R. No. 203335. *Jose Jesus M. Disini, et al vs The Secretary of Justice, et al* (February 11, 2014) Retrieved November 11, 2022 from https://lawphil.net/judjuris/juri2014/feb2014/gr_203335_2014.html

⁷ The Daily Tribune (25, February 2019). About Cyber Libel. Retrieved November 10, 2020 from [https://www.divinalaw.com/dose-of-law/about-cyber-libel/#:~:text=Secretary%20of%20Justice%20\(G.R.i s%20not%20unconstitutional%20as%20well.](https://www.divinalaw.com/dose-of-law/about-cyber-libel/#:~:text=Secretary%20of%20Justice%20(G.R.i s%20not%20unconstitutional%20as%20well.)

⁸ *Id.*

⁹ P & L Law (June 14, 2020) Online Libel as Cybercrime in the Philippines: Definition, Requisites and Application of Penalties. Retrieved November 10, 2022 from <https://pnl-law.com/blog/online-libel-as-cybercrime-in-the-philippines-definition-requisites-and-application-of-penalties/>

¹⁰ *Id.*

¹¹ *Id.*

¹² The Daily Tribune (25, February 2019). About Cyber Libel. Retrieved November 10, 2020 from [https://www.divinalaw.com/dose-of-law/about-cyber-libel/#:~:text=Secretary%20of%20Justice%20\(G.R.i s%20not%20unconstitutional%20as%20well.](https://www.divinalaw.com/dose-of-law/about-cyber-libel/#:~:text=Secretary%20of%20Justice%20(G.R.i s%20not%20unconstitutional%20as%20well.)

For the fourth requisite, malice exists when the offender makes the defamatory statement with the knowledge that it is false or with reckless disregard of whether it was false or not.¹³

Finally, as noted above, the act should be committed through a computer system or any other similar means which may be devised in the future.¹⁴

A “computer system” is defined in R.A. No. 10175 as “any device or group of interconnected or related devices, one or more of which, pursuant to a program, performs automated processing of data. It covers any type of device with data processing capabilities including, but not limited to, computers and mobile phones. The device consisting of hardware and software may include input, output and storage components which may stand alone or be connected in a network or other similar devices. It also includes computer data storage devices or media.” The rule on Cybercrime Warrants has a shorter definition: a computer system refers to any device or group of interconnected or related devices, one or more of which, pursuant to a program, performs automated processing of data.¹⁵

Every defamatory imputation is presumed to be malicious, even if it be true, if no good intention and justifiable motive for making it is shown, except in the following cases:¹⁶

1. A private communication made by any person to another in the performance of any legal, moral or social duty; and
2. A fair and true report, made in good faith, without any comments or remarks, of any judicial, legislative or other official proceedings which are not of confidential nature, or of any statement, report or speech delivered in said proceedings, or of any other act performed by public officers in the exercise of their functions.¹⁷

¹³ *Id.*

¹⁴ P & L Law (June 14, 2020) Online Libel as Cybercrime in the Philippines: Definition, Requisites and Application of Penalties. Retrieved November 10, 2022 from <https://pnl-law.com/blog/online-libel-as-cybercrime-in-the-philippines-definition-requisites-and-application-of-penalties/>

¹⁵ *Id.*

¹⁶ Act No. 3815. Revised Penal Code (December 8, 1930) Retrieved on November 9, 2022 from https://lawphil.net/statutes/acts/act_3815_1930.html#:~:text=Conspiracy%20and%20proposal%20to%20commit,and%20decide%20to%20commit%20it

¹⁷ *Id.*

III Who may be libeled?

A person libeled may be a natural person, or a juridical person, such as a corporation. The heirs of a deceased person may also file a criminal case for libel, if libel is committed to blacken the memory of an ancestor.¹⁸

One of the aforementioned elements of libel which should be proved is the identification of the victim of the libelous imputation. To maintain a libel suit, it is essential that the victim is identifiable, though not necessarily mentioned by name. It is enough if by intrinsic reference the allusion is apparent; or, if the publication contains matters of description or reference to facts and circumstances from which readers of the article may deduce the identity of the victim of the libel; or if he/she is pointed out by extraneous circumstances so that persons who know him/her would be aware that he/she is the person being libeled.¹⁹

IV Penalties for Cyber Libel

When committed through ICTs, libel becomes cyber libel, which carries a higher penalty by one degree under Section 6 of the Cybercrime Prevention Act.²⁰

Specifically, libel under the RPC is punished with prison correccional in its minimum period, which is from six months and one day to two years and four months and medium period, which is from two years, four months and one day to four years and two months; or a fine ranging from P200 to P6,000 or both.²¹

However, if it is cyber libel, the penalty is increased by one degree. Thus, the penalty is prison correccional in its maximum period, which is from four years, two months and one day to six years and prison mayor in its minimum period, which is from six years and one day to eight years.²²

¹⁸ Hofileña, Saul Jr. (October 22, 2022). Libel and cybel libel. Retrieved November 9, 2022 from <https://www.manilatimes.net/2022/10/22/opinion/columns/libel-and-cyber-libel/1863237>

¹⁹ *Id.*

²⁰ Republic Act No. 10175. Cybercrime Prevention Act of 2012 (September 12, 2012). Retrieved November 9, 2022 from https://lawphil.net/statutes/repacts/ra2012/ra_10175_2012.html

²¹ Act No. 3815. Revised Penal Code (December 8, 1930) Retrieved on November 9, 2022 from https://lawphil.net/statutes/acts/act_3815_1930.html#:~:text=Conspiracy%20and%20proposal%20to%20commit,and%20decide%20to%20commit%20it

²² The Daily Tribune (25, February 2019) Retrieved on November 10, 2022 from [https://www.divinalaw.com/dose-of-law/about-cyber-libel/#:~:text=Secretary%20of%20Justice%20\(G.R.,is%20not%20unconstitutional%20as%20well](https://www.divinalaw.com/dose-of-law/about-cyber-libel/#:~:text=Secretary%20of%20Justice%20(G.R.,is%20not%20unconstitutional%20as%20well).

V Application of Penalty

The Supreme Court has affirmed the policy contained in its Administrative Circular No. 08-2008 issued on January 25, 2008²³, which provides for guidelines in the imposition of penalties in libel cases. It provides:²⁴

1. This Administrative Circular does not remove imprisonment as an alternative penalty for the crime of libel under Article 355 of the Revised Penal Code;
2. The Judges concerned may, in the exercise of sound discretion, and taking into consideration the peculiar circumstances of each case, determine whether the imposition of a fine alone would best serve the interests of justice or whether forbearing to impose imprisonment would depreciate the seriousness of the offense, work violence on the social order, or otherwise be contrary to the imperatives of justice;
3. Should only a fine be imposed and the accused be unable to pay the fine, there is no legal obstacle to the application of the *Revised Penal Code* provisions on subsidiary imprisonment.

The Supreme Court clarified that the Circular does not remove the discretion of courts to sentence to imprisonment the accused in libel. In other words, judicial policy states that a fine alone is generally acceptable as a penalty for libel. The courts may however impose imprisonment as a penalty if, under the circumstances, a fine is insufficient to meet the demands of substantial justice or would depreciate the seriousness of the offense.²⁵

VI Jurisdiction for the Crime of Cyber Libel

In prosecuting the crime of libel or cyber libel, venue is jurisdictional.²⁶

For ordinary libel, the venue, where the complainant is a private individual, is limited to only either of two places, namely: where the complainant actually resides at

²³Administrative Circular No. 08-2008: GUIDELINES IN THE OBSERVANCE OF A RULE OF PREFERENCE IN THE IMPOSITION OF PENALTIES IN LIBEL CASES. (January 25, 2008). Retrieved November 10, 2022 from https://lawphil.net/courts/supreme/ac/ac_8_2008.html

²⁴ P & L Law (June 14, 2020) Online Libel as Cybercrime in the Philippines: Definition, Requisites and Application of Penalties. Retrieved November 10, 2022 from <https://pnl-law.com/blog/online-libel-as-cybercrime-in-the-philippines-definition-requisites-and-application-of-penalties/>

²⁵ *Id.*

²⁶ *Id.*

the time of the commission of the offense; or where the alleged defamatory article was printed and first published.²⁷

However, for cyber libel, the place where the defamatory article was printed and first published is impossible to ascertain. It also cannot be where the defamatory online article was first accessed.²⁸

In *Bonifacio v. RTC of Makati City* (GR No. 184800, May 5, 2010)²⁹, the SC said allowing cyber libel to be filed where the article is first accessed means that the author of the defamatory article may be sued anywhere in the Philippines. The private complainant can just allege that he accessed the defamatory online article in a far-flung place.³⁰ For instance, a writer in Cebu who posts a libelous column may then be sued in Iloilo City, where the offended party allegedly first accessed the said posting. To prevent this situation, the High Court effectively limited the venue to the place where the complainant actually resides at the time of the commission of the offense.³¹

VII Separate Charges under RPC and R.A. No. 10175

Section 7 of the Cybercrime Prevention Act of 2012 provides that a “prosecution under this Act shall be without prejudice to any liability for violation of any provision of the Revised Penal Code, as amended, or special laws” (Sec. 7). In a subsequent case, the Supreme Court stated that the determination of the applicability of Section 7 will be left to actual cases in the future.³²

The Supreme Court, however, declared that there can be no two prosecutions of libel under the RPC and online libel under R.A. No. 10175, for such constitutes a violation of the proscription against double jeopardy. When a published material on print, said to be libelous, is again posted online or vice versa, that identical material cannot be the subject of two separate charges for libel. The two offenses, one a violation of the RPC and the other a violation of R.A. No. 10175 involve essentially the same elements and are in fact one and the same offense.³³

²⁷ *Id.*

²⁸ *Id.*

²⁹ GR No. 184800. *Wonina M. Bonifacio, et al. vs RTC of Makati, et al.* (May 5, 2010) Retrieved on November 10, 2022 from https://lawphil.net/judjuris/juri2010/may2010/gr_184800_2010.html

³⁰ *Id.*

³¹ *Id.*

³² P & L Law (June 14, 2020) Online Libel as Cybercrime in the Philippines: Definition, Requisites and Application of Penalties. Retrieved November 10, 2022 from <https://pnl-law.com/blog/online-libel-as-cybercrime-in-the-philippines-definition-requisites-and-application-of-penalties/>

³³ *Id.*

VIII Cyber Libel Demographics in the Philippines

Since the law covering criminal cyber libel was passed in 2012, Philippine authorities have junked about one-third or 1,131 cyber libel cases out of the total libel cases filed which is 3770. About 30% of these cyber libel cases filed have been dismissed.³⁴ As of May 2022, there have been 12 convictions for cyber libel, while there have been 4 acquittals.³⁵

IX Cyber Libel Case of Maria Ressa

The case of Maria Ressa is one of the most recent cyber libel cases. Although the article in question was published months before the law's enactment, a correction made in 2014 of a typographical error was considered a separate offense and reset the clock of the prescription period.³⁶

In affirming the conviction of Ressa, the Court of Appeals further extended the prescription of cyber libel from 12 years to 15 years.³⁷

Recently, Ressa took her appeal against a conviction for cyber libel to the Supreme Court³⁸ after the Court of Appeals Fourth Division rejected her appeal and added months to her sentence which was originally set for six months and one day as minimum to six years as maximum. The appeals court added 8 months and 20 days to the maximum imprisonment penalty.³⁹

X Is Cyber Libel a Continuing Crime?

The National Bureau of Investigation (NBI) used this theory in the case of Maria Ressa that cyber libel is a continuing crime when the libelous article is not removed from the online news site.⁴⁰

³⁴ Buan, Lian (July 20, 2022). Decriminalize libel: PH junked one-third of cyber libel cases filed since 2012. Retrieved November 9, 2022 from <https://www.rappler.com/newsbreak/in-depth/decriminalize-philippines-junked-cyber-libel-cases-since-2012/>

³⁵ *Id.*

³⁶ *Id.*

³⁷ *Id.*

³⁸ Strangio, Sebastian (October 12, 2022). Philippines' Maria Ressa to Appeal Cyberlibel Case at Supreme Court – The Diplomat. Retrieved November 10, 2022 from <https://thediplomat.com/2022/10/philippines-maria-ressa-to-appeal-cyberlibel-case-at-supreme-court/>

³⁹ Bolledo, Jairo (October 11, 2022). Court of Appeals denies Maria Ressa's appeal in cyber libel case. Retrieved November 10, 2022 from <https://www.rappler.com/nation/court-appeals-denies-maria-ressa-appeal-cyber-libel-case/>

⁴⁰ Seares, Pachico (March 26, 2018). Cyber libel as 'continuing crime'. Retrieved November 10, 2022 from <https://www.cebujournalism.org/cyber-libel-as-continuing-crime/>

However, Professor Disini of the UP College of Law and the lawyer of Rappler, believes that such a view is dangerous for media. On the theory of continuous publication, he argues that “If the theory is that a libelous article published in the past, continues to be accessible today, and that such constitutes libel today, then no one is safe” — not just in media but would also include bloggers. He said that he could not recall any case in Philippine jurisprudence where the theory of continuous publication was applied.⁴¹

In my opinion, it is a basic principle in interpreting laws that in case of ambiguity, it should always favor the accused. Given the express provision of the RPC’s one-year prescription for libel, the theory of continuing crime may not apply.

The case of Maria Ressa was already appealed at the Supreme Court and the decision on this case will be the jurisprudence that will set the standard for future cases of cyber libel especially on ascertaining if it is a continuing crime or not.

XI Constitutional of Cyber Libel

The movement to decriminalize libel has an ally in the Philippine Supreme Court – Senior Associate Justice Marvic Leonen who voted in 2012 to declare cyber libel unconstitutional. Leonen feared that the 1930s definition of libel in the revised penal code is outdated and will no longer apply to the internet era.⁴²

However, the constitutionality of the provision on cyber libel was subsequently assailed in *Disini v. Secretary of Justice* (G.R. No. 203335, February 11, 2014)⁴³. The SC ruled that libel is not a constitutionally protected speech. It follows therefore that the cyber libel is not unconstitutional as well.⁴⁴

The SC agrees with the Solicitor General that libel is not a constitutionally protected speech and that the government has an obligation to protect private individuals from defamation. Indeed, cyber libel is actually not a new crime since Article 353, in relation to Article 355 of the penal code, already punishes it.⁴⁵

⁴¹ UP Law Faculty Highlights (January 24, 2018) Prof. JJ Disini: Is Cyber Libel a continuing crime? Retrieved November 10, 2022 from <https://law.upd.edu.ph/prof-jj-disini-is-cyber-libel-a-continuing-crime/>

⁴² Buan, Lian (July 20, 2022). Decriminalize libel: PH junked one-third of cyber libel cases filed since 2012. Retrieved November 9, 2022 from <https://www.rappler.com/newsbreak/in-depth/decriminalize-philippines-junked-cyber-libel-cases-since-2012/>

⁴³ G.R. No. 203335. *Jose Jesus M. Disini, et al vs The Secretary of Justice, et al* (February 11, 2014) Retrieved November 11, 2022 from https://lawphil.net/judjuris/juri2014/feb2014/gr_203335_2014.html

⁴⁴ The Daily Tribune (25, February 2019). About Cyber Libel. Retrieved November 10, 2020 from [https://www.divinalaw.com/dose-of-law/about-cyber-libel/#:~:text=Secretary%20of%20Justice%20\(G.R.,is%20not%20unconstitutional%20as%20well.](https://www.divinalaw.com/dose-of-law/about-cyber-libel/#:~:text=Secretary%20of%20Justice%20(G.R.,is%20not%20unconstitutional%20as%20well.)

⁴⁵ G.R. No. 203335. *Jose Jesus M. Disini, et al vs The Secretary of Justice, et al* (February 11, 2014) Retrieved November 11, 2022 from https://lawphil.net/judjuris/juri2014/feb2014/gr_203335_2014.html

The SC's acquiescence goes only insofar as the cybercrime law penalizes the author of the libelous statement or article. Cyber libel brings with it certain relevant changes absent in the RPC. The culture associated with internet media is distinct from that of print.⁴⁶

XII Conclusion

Although that the Supreme Court has tackled the relatively new Cybercrime Prevention Act of 2012 in only a handful of cases, it can be noted that there are still 1317 cyber libel cases⁴⁷ filed in the courts.

With the rising engagement of people using information technology, it is inevitable that there may be more cases and jurisprudence on cyber libel in the future.

The Internet is a mighty medium. If used responsibly, it can lead to a good deal of advantages to society. But if utilized for iniquitous ends, the detriment to the community is unthinkable.

As Benjamin Franklin Parker, in the movie Spider Man said: "With great power comes great responsibility." Technology, through the use of cyberspace, has given us great power. However, we should use it cautiously and responsibly for the benefit of the society. ■

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⁴⁶ *Id*

⁴⁷ Buan, Lian (July 20, 2022). Decriminalize libel: PH junked one-third of cyber libel cases filed since 2012. Retrieved November 9, 2022 from <https://www.rappler.com/newsbreak/in-depth/decriminalize-philippines-junked-cyber-libel-cases-since-2012/>

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Framing the Constructs of Public Accountability in Government Service

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I Introduction

In an article entitled “The Meaning of Public Accountability Law Constitutional Administrative”, public accountability is regarded as the hallmark of modern democratic governance¹. Democracy remains a paper procedure if those in power cannot be held accountable in public for their acts and omissions, for their decisions, their policies, and their expenditures.

The same article articulated that “public accountability” as a concept, however, is rather exclusive.² It is hurrah-word, like learning, responsibility, or solidarity- nobody can be against it. Accountability has moved further beyond its bookkeeping origins and has become a symbol for good governance, both in the public and in the private sector. Accountability does not refer to sovereigns holding their subjects to account, but to the reverse, it is the authorities themselves who are being held accountable by their citizens.³ Public accountability is also regarded as an integral and inevitable commitment of the government to its people.⁴

In a democratic country like the Philippines, public accountability is embodied in the 1987 Philippine Constitution which provides that, “public office is a public trust”. This tenet affords that public officers and employees must at all times be accountable to the people, serve with utmost responsibility, integrity, loyalty and efficiency; act with patriotism and justice and lead modest lives (Article XI, Section 1).⁵

Another comprehensive law passed to address and curb the commission of malfeasance in government is Republic Act No. 3019 or the Anti-Graft and Corruption Practices Act. In Section 1 of this law, it states that: “It is the policy of the Philippine Government, in line with the principle that a public office is a public trust,

¹ Uni Assignment (n.d.) The Meaning of Public Accountability Law Constitutional Administrative Retrieved July 2020 from <https://www.uniassignment.com/essay-samples/law/the-meaning-of-public-accountability-law-constitutional-administrative-essay.php>

² *Id.*

³ *Id.*

⁴ Goetz, Anne Marie (2005) Reinventing Accountability: Making Democracy Work for Human Development: Introduction

⁵ The 1987 Constitution of the Republic of the Philippines (February 2, 1987) Article XI: Accountability of Public Officers. Retrieved July 2020 from <https://www.ncda.gov.ph/integrity-development-action-plan/related-idap-laws/accountability-of-public-officers/>

to repress certain acts of public officer and private persons alike which constitute graft and corrupt practices which may lead thereto”.⁶

In the government’s desire of achieving its mandate of providing the basic services to the public, equal importance is given to ensure that every public servant possesses utmost accountability in its discharge of official functions.⁷ With this, public officials and employees are expected to maintain honesty, integrity and accountability in the public service. However, the issues of ethics and accountability pose a continuing challenge to the Philippine government.⁸

The Civil Service Commission, as the watchdog and oversight agency has adopted positive measures including the dissemination of information programs and workshops authorizing merit increases beyond regular progression steps to motivate public officials and employees in raising the general level of observance of these standards.

Despite the government’s effort to strengthen the practice of public accountability, issues arise whether the latter is really understood by the workers of the government. Are the concepts and standards of public accountability cascaded across all levels in the organization and whether accountability is really present in every organization of the government?

If so, at what level in the organization has public accountability manifested? Is it really felt by the employees or does it remain to be unheeded? Are government employees’ understanding of public accountability reflective of the government’s standards?

With this, the paper aims to provide a framework for the constructs of public accountability among government employees in the City of Iloilo. The varying views and understanding of government employees on public accountability will also be identified. It further attempts to provide policy recommendations on public accountability framework to serve as insights to the government as it envisions a more accountable and productive public servant.

⁶ Republic Act No. 3019. Anti-Graft and Corruption Practices Act (August 17, 1960) Retrieved on July 2020 at https://lawphil.net/statutes/repacts/ra1960/ra_3019_1960.html

⁷ The 1987 Constitution of the Republic of the Philippines (February 2, 1987) Article XI: Accountability of Public Officers. Retrieved on July 2020 from <https://www.ncda.gov.ph/integrity-development-action-plan/related-idap-laws/accountability-of-public-officers/>

⁸ Civil Service Commission (2000). Ethics and Accountability: The Philippine Experience .Retrieved on July 2020 at <https://silo.tips/download/ethics-and-accountability-the-philippine-experience>

II Methodology

This study uses literature study in discussing the issues described in this paper. Literature studies undertaken include the analysis of literature sources (books, scientific journals, accountability articles, internet sources and legal documents) in order to come up with reviews, summaries and analysis relative to significant concepts of the issue identified. The primary sources of information used in this paper are journals, articles and legal documents that have relevance and significance in the study.

Based on the analysis and consideration of these literary sources, the paper has identified the various concepts of accountability which helped guide the researcher to develop its questionnaire. A semi-structured questionnaire or discussion guidelines were used in conducting interviews among government employees in the City of Iloilo. Respondents were selected based on their service tenure, status of employment, job level and gender. Prior to the conduct of the interview, respondents were made to fill-out the Individual Questionnaire and Informed Consent Form and were oriented on the scope and intention of the study. After which, the interview was done through an audio-recording, as allowed also by the respondents.

Qualitative data gathered were then transcribed, manually indexed and categorized based on the identified concepts on accountability. There were 25 concepts enumerated by the researcher as a result of the literature studies conducted.

Frequency of responses were then tabulated and ranked to determine the most used or mentioned concept of accountability.

In the discussion and analysis phase, the paper presents the most common concept identified by the respondents and researcher develops a framework on the constructs of public accountability which is the focus of this study.

III Results and Discussions

Literature Concept of Public Accountability

Accountability is one of these golden concepts that no one can be against. It is increasingly used in political discourse and policy documents because it conveys an image of transparency and trustworthiness. Accountability may be defined in several ways. First it is the responsibility of a government and its agents to achieve previously set objectives and to account for them in public; secondly it is the commitment required from public officials- individually and collectively- to accept public responsibility for their actions and inactions; and finally, it is the obligation of a subordinate to keep his or her superior informed of the execution of responsibility.⁹

⁹ Fox and Meyer (1995) ACCOUNTABILITY IN PUBLIC ADMINISTRATION AND MANAGEMENT: A THEORETICAL EXPOSITION (1-2). Retrieved on July 2020 at <https://repository.up.ac.za/bitstream/handle/2263/24172/02chapter2.pdf?sequence=3&isAllowed=y>

Kathe Callahan in her article “Elements of Effective Governance” stresses that public sector accountability is the obligation of authorities to explain publicly, fully and fairly, how they carry out, or fail to carry out, responsibilities that affect the public in important ways. It is an obligation to account for one’s action.¹⁰

According to Melvin J. Dubnick, one of the leading academic authorities on public sector accountability, “Accountability has traditionally been regarded as the means used to control and direct administrative behavior by requiring ‘answerability to some external authority’”.¹¹

Additionally, Barbara Romzek and Patricia Ingraham, who have written extensively on accountability in government, note that “accountability, in its most fundamental sense, refers to answerability to someone for expected performance. Those to whom one is answerable must be legitimate sources of control and their expectations for performance must be legitimate as well.”¹²

James Fesler and Donal Kettl divide accountability into two dimensions: one is accountability; faithful obedience to the law, to higher officials’ directions, and to standards of efficiency and economy. The other is ethical behavior; adherence to moral standards and avoidance of the appearance of unethical behavior.¹³

Jay Shafritz defines accountability in broader terms: “Administrative accountability is the concept that officials are to be held answerable for general notions of democracy and morality as well as for specific legal mandates.

Accountability, defined as the quality or state of being accountable; especially an obligation or willingness to accept responsibility or to account for one’s actions, government employees to manifest accountability are expected to provide accurate information about one’s activities or behavior, at the same time is able to evaluate its behavior with reference to certain standards and rules thereby recognizing one’s obligations and accepting responsibility for one’s actions.”¹⁴

This notion carries two basic conditions: answerability which is the obligation of the public employees to inform and explain what they are doing and enforcement in which the capacity of agencies to impose sanctions to those who have violated their public duties are measured. If this process is too complex to identify contributions to specific outcomes, then holding individuals accountable for undesirable outcomes

¹⁰ Callahan, Kathe (2006) Elements of Effective Governance

¹¹ Dubnick, M. (1998). Clarifying accountability: An ethical theory framework. Retrieved July 2020 at https://scholars.unh.edu/cgi/viewcontent.cgi?article=1022&context=polisci_facpub

¹² Romzek and Ingraham (2000). Direct accountability: Chances and risks. Retrieved July 2020 at <https://journals.uic.edu/ojs/index.php/fm/article/download/1218/1138>

¹³ Fesler, J. and Kettl, D. (1996), The Politics of Administrative Process, Chatham House: Chatham, NJ, p. 317

¹⁴ Shafritz, J.M. (1992) The Harper Collins Dictionary of American Government and Politics, Harper Collins: New York

becomes difficult. As a result, individuals as well as organizations as a whole escape the blame and avoid accountability.¹⁵

There exist, however, bureaucratic biases in many definitions of accountability that assume a clearly defined higher authority; standards of efficiency, economy and performance; terms are clearly stated in unambiguous manner and processes and procedures are in place that promote accountable behavior.¹⁶

Public accountability means the obligation to answer publicly- to report, to an acceptable standard of answering, for the discharge of responsibilities that affect the public in important ways. It is the obligation to answer for a responsibility conferred. The obligation to answer publicly arises as a fairness obligation whenever authorities intend something that would affect the public in important ways. Thus, the obligation extends beyond answering for responsibilities formally or legally concerned.¹⁷

Public Accountability is not just another political catchword; it also refers to institutionalized practices of account giving. Accountability may be defined as a social relationship in which an actor feels an obligation to explain and to justify his or her conduct to some significant other.¹⁸

The ethical base of public accountability is the level of accord created between government authority and the government's accountability to the public. The true function of public accountability should be not to focus on negative aspects only.¹⁹

In passing a negative judgment some sort of sanctions is imposed on the accountable person. These sanctions can be highly formalized, such as fines, disciplinary measures or even penal sanctions, but often the punishment will only be implicit or informal.²⁰

The Code of Conduct and Ethical Standards for Public Officials and Employees spells out in fine detail the do's and don'ts for government officials and employees in and out of the workplace. Additionally, administrative accountability sets forth a concept that officials are to be held answerable for general notions of democracy and morality as well as for specific legal mandates (R.A. No. 6713). The Code has expressly enumerated various norms or standards that a government official should adhere to, one of which is justness and sincerity. These norms or standards that relate to public accountability are described as follows²¹ :

¹⁵ Schedler, Andreas (1999). Conceptualizing Accountability'. P.14

¹⁶ Callahan, Kathe (2006) Elements of Effective Governance

¹⁷ Uni Assignment (n.d.). The Meaning of Public Accountability Law Constitutional Administrative Essay, Retrieved on July 2020 at <https://www.uniassignment.com/essay-samples/Uniaw/the-meaning-of-public-accountability-law-constitutional-administrative-essay.php#ftn86>

¹⁸ *Id.*

¹⁹ *Id.*

²⁰ *Id.*

²¹ Republic Act No. 6713. Code of Conduct and Ethical Standards for Public Officials and Employees. (February 20, 1989). Retrieved July 2020 at https://lawphil.net/statutes/repacts/ra1989/ra_6713_1989.html

- *Commitment to Public Interest* - Public officials and employees shall always uphold the public interest over and above personal interest. All government resources and powers of their respective offices must be employed and used efficiently, effectively, honestly and economically, particularly to avoid wastage in public funds and revenues;
- *Professionalism* - Public officials and employees shall perform and discharge their duties with the highest degree of excellence, professionalism, intelligence and skill. They shall enter public service with utmost devotion and dedication to duty. They shall endeavor to discourage wrong perceptions of their roles as dispensers or peddlers of undue patronage;
- *Justness and Sincerity* - Public officials and employees shall remain true to the people at all times. They must act with justness and sincerity and shall not discriminate against anyone, especially the poor and the underprivileged. They shall at all times respect the rights of others, and shall refrain from doing acts contrary to law, good morals, good customs, public policy, public order, public safety and public interest. They shall not dispense or extend undue favors on account of their office to their relatives whether by consanguinity or affinity except with respect to appointments of such relatives to positions considered strictly confidential or as members of their personal staff whose terms are coterminous with theirs;
- *Political Neutrality* - Public officials and employees shall provide service to everyone without unfair discrimination and regardless of party affiliation or preference;
- *Responsiveness to the Public* - Public officials and employees shall extend prompt, courteous, and adequate service to the public. Unless otherwise provided by law or when required by the public interest, public officials and employees shall provide information of their policies and procedures in clear and understandable language, ensure openness of information, public consultations and hearings whenever appropriate, encourage suggestions, simplify and systematize policy, rules and procedures, avoid red tape and develop an understanding and appreciation of the socio-economic conditions prevailing in the country, especially in the depressed rural and urban areas;
- *Nationalism and Patriotism* - Public officials and employees shall at all times be loyal to the Republic and to the Filipino people, promote the use of locally produced goods, resources and technology and encourage appreciation and pride of country and people. They shall endeavor to maintain and defend Philippine sovereignty against foreign intrusion.

- *Commitment to Democracy* - Public officials and employees shall commit themselves to the democratic way of life and values, maintain the principle of public accountability, and manifest by deeds the supremacy of civilian authority over the military. They shall at all times uphold the Constitution and put loyalty to country above loyalty to persons or party; and
- *Simple Living* - Public officials and employees and their families shall lead modest lives appropriate to their positions and income. They shall not indulge in extravagant or ostentatious display of wealth in any form.

Another innovation by the government to encourage public accountability, efficiency and effectivity in the delivery of public service, R.A. No. 9485 otherwise known as the Anti-Red Tape Act of 2007 as amended by R.A. No. 11032 or the Ease of doing Business and Efficient Government Service Delivery Act of 2018 was created. This Act intends to improve efficiency in the delivery of government service to the public by reducing bureaucratic red tape, prevent graft and corruption, and provide penalties for any infraction. These addendums, expressly stipulated in Section 4 of JMC 2019-001 (IRR of R.A. No. 11032, 2019) resemble innovation and possess new standards of public accountability.²²

Varying Understanding on the Concepts of Public Accountability

From the literature study conducted, the researcher identified the 25 concepts on public accountability. These include: responsibility, answerability, performance, trustworthiness, good governance, integrity, transparency, acceptance, justness, and commitment. Additional concepts are punishment, norms and standards, loyalty, efficiency, fairness, timeliness, completeness, professionalism, responsiveness, legitimate, faithfulness, ethical, moral standards, sanction, and fines.

²² Republic Act No. 11032. Anti-Red Tape Act of 2007. (May 28, 2018) Retrieved July 2020 at https://www.google.com/search?q=Republic+Act+No.+11032&oeq=Republic+Act+No.+11032&aqs=edg_e.69i57j0i512l3j0i390i395l2i69i64.236j1j4&sourceid=chrome&ie=UTF-8

Table 1: Summary of Frequency Responses on the Concept of Public Accountability

CONCEPTS	F R E Q U E N C Y						TOTAL	NO. OF RESPONSES	FREQUENCY TOTAL
	2019-11-001	2019-11-002	2019-11-003	2019-11-004	2019-11-005	2019-11-006			
1 Responsibility/Responsible	6	6	3	5	0	7	27	5	135
2 Answerability/Answerable	4	2	1	1	0	0	8	4	32
3 Performance/Perform	0	0	1	0	6	2	9	3	27
4 Public Trust/ Trust-worthiness	1	0	4	0	0	1	6	3	18
5 Good Governance	1	1	1	0	1	0	4	4	16
6 Integrity	4	2	0	0	0	0	6	2	12
7 Transparency	2	0	1	1	0	0	4	3	12
8 Acceptance	0	1	0	1	2	0	4	3	12
9 Justice/Justness/Justify	1	0	0	0	3	0	4	2	8
10 Commitment	2	0	0	0	1	0	3	2	6
11 Punishment	0	0	0	0	5	0	5	1	5
12 Norms & Standards	0	0	0	0	2	0	2	1	2
13 Loyalty	0	1	0	0	0	0	1	1	1
14 Efficiency	0	0	0	0	0	1	1	1	1
15 Fairness	0	0	0	0	1	0	1	1	1
16 Timeliness	1	0	0	0	0	0	1	1	1
17 Completeness	1	0	0	0	0	0	1	1	1
18 Professionalism	1	0	0	0	0	0	1	1	1
19 Responsiveness/Responsive	1	0	0	0	0	0	1	1	1
20 Legitimacy	0	0	0	0	0	0	0	0	0
21 Faithfulness/Obedience	0	0	0	0	0	0	0	0	0
22 Ethical	0	0	0	0	0	0	0	0	0
23 Moral Standard	0	0	0	0	0	0	0	0	0
24 Sanction	0	0	0	0	0	0	0	0	0
25 Fines	0	0	0	0	0	0	0	0	0

Table 1 shows the varying understanding of respondents on what public accountability is. Of the 25 identified concepts of public accountability, 19 were mentioned by the respondents and 6 were not. Out of the 19 mentioned concepts, the concept of responsibility was the most mentioned per interviewee, followed by the concept of performance and punishment, which is mentioned most by one respondent only. However, based on the number of responses (i.e. out of 6 respondents); responsibility, answerability and good governance are the most mentioned concepts. The 6 concepts that were not mentioned at all by the respondents include: legitimate, faithfulness/obedience, ethical, moral standard, sanction, and fines.

Table 2: Top Ten (10) Most Frequently Mentioned Concept of Public Accountability

CONCEPTS	F R E Q U E N C Y						TOTAL	NO. OF RESPONSES	FREQUENCY TOTAL
	2019-11-001	2019-11-002	2019-11-003	2019-11-004	2019-11-005	2019-11-006			
1 Responsibility/Responsible	6	6	3	5	0	7	27	5	135
2 Answerability/Answerable	4	2	1	1	0	0	8	4	32
3 Performance/Perform	0	0	1	0	6	2	9	3	27
4 Public Trust/ Trust-worthiness	1	0	4	0	0	1	6	3	18
5 Good Governance	1	1	1	0	1	0	4	4	16
6 Integrity	4	2	0	0	0	0	6	2	12
7 Transparency	2	0	1	1	0	0	4	3	12
8 Acceptance	0	1	0	1	2	0	4	3	12
9 Justice/Justness/Justify	1	0	0	0	3	0	4	2	8
10 Commitment	2	0	0	0	1	0	3	2	6

Table 2 shows the top 10 most frequently mentioned concepts of public accountability which include; responsibility - having been mentioned 27 times by 5 respondents, answerability, performance, trustworthiness, good governance, integrity, transparency, acceptance, justness, and commitment.

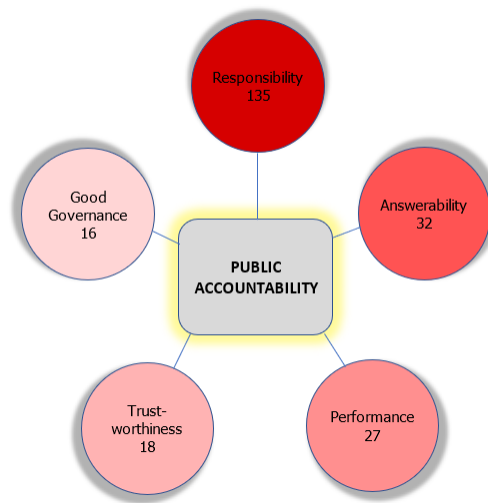


Figure 1: Framework of Public Accountability

Based on the study conducted, the researcher has identified the five fundamental concepts on the understanding of public accountability by government employees. These include responsibility, answerability, performance, trustworthiness, and good governance.

Responsibility. Accountability is defined as the obligation or willingness to accept responsibility or to account for one's actions.²³ In this study, respondents elaborated accountability as being able to perform their assigned duties and responsibilities as required by their position. This is also manifested by being able to respond effectively and promptly to the needs and requests of the public that they serve. While government employees are expected to evaluate its behavior with reference to certain standards and rules, respondents in the study also highlighted that having a sense of responsibility means providing accurate information to the stakeholders and clientele at the same time ensuring that it conforms with the policies and procedures of the agency.

Answerability. The respondents narrated that in the exercise of one's responsibility, a public servant should not merely possess the ability to perform its obligations but more importantly must be able to accept the consequence of the wrong doings or inadequacy in the action of assigned tasks. When this happens, government employees should also rectify the same mistakes. Accountability, in this context carries two basic conditions: answerability which is the obligation of the public employees to inform and explain what they are doing and enforcement in which the

²³ Meriam-Webster Dictionary (n.d). Retrieved July 2020 at <https://www.merriam-webster.com/dictionary/accountability>

capacity of agencies to impose sanctions to those who have violated their public duties are measured. The essence of the public answering obligation requires that authorities propose programs that will affect citizens in important ways, will disclose their intentions and their reasoning, their performance standards, and their actual performance and learning. And they are to meet reasonable standards of timeliness, fairness and completeness in their answering. To install public answering to a reasonable standard, citizens must agree on what it means.

Performance. In the study, respondents shared that to manifest accountability is to perform well in the agency. Government employees should not be contented with mediocre performance but should raise the bar of excellence. With this, appraisal of the employees' performance in the government is in place. Performance accountability is a management and oversight process that makes use of evaluation findings, and many other sources of information to manage the plans, programs, and activities of the government, track performance, report to stakeholders and improve performance.

Trustworthiness. Public accountability requires the ability to be relied on as honest and truthful in delivering public service. To instill public accountability in the eyes of the citizens, a government employee must possess the quality that inspires reliability on his functions of developing products and delivery of services;

Good Governance. The concept of accountability on its own does not necessarily imply public accountability. Public accountability goes hand in hand with representative democracy and its associated rights of citizens and obligations for political representatives and public officials.

IV Conclusion

In this difficult changing environment, accountability is more complicated to assess, measure and evaluate.²⁴

The study infers that understanding of public accountability really varies from one government employee to another. However, from these varying understandings of what public accountability is, five concepts emerged to be common among the respondents. These are responsibility, of which in the interview is meant as the ability to respond to the assigned duties and functions as dictated by position or status; answerability, or taking account to one's action; performance, which highlights that as employees of the government, one must perform beyond the set standards; trustworthiness or being trusted and honest in the performance of responsibility and finally good governance which satisfies the expectation of the general public.

²⁴ Goetz & Jenkins (2005). Accountability Failures and Human Development

V Recommendation

Considering the limitations of this study in terms of the number of respondents, of which this paper only has six (6), and the tool used in analyzing the data, the researcher recommends that another study be conducted to include more employees of the government to be interviewed to achieve a more significant result. Also, NVivo qualitative analysis software is recommended to be used to better analyze the data gathered.

Furthermore, the researcher recommends for quantitative research to be initiated in order to determine whether the framed constructs on accountability is relevant in determining the significant factors that affect the understanding of public accountability. ■

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Are Philippine Courts Ready for a Jury System?

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I. Introduction

In the advent of movie and TV series streaming platforms, Filipinos got more acquainted with cultures from different parts of the world by watching TV series. As such, one of the most popular genres when it comes to TV series are legal dramas. Shows such as *How to Get Away with Murder*, *Suits*, *Better Call it Saul*, and many more are popular among Filipino viewers.

Filipino viewers look forward to litigation scenes; this is where most of the drama happens. As they continue to binge on these shows, they become familiar with court processes and structures in the United States of America (as most of these shows have an American context). Hence, many have pointed out one glaring difference between Philippine Courts and American Courts: the presence of a jury system.

But what exactly is a jury system? Britannica defines a jury system, or simply jury, as a legal system in which a group of laypersons take part in deciding a case brought to a competent court¹. Historically, its origin is disputed by historians; it either originated in England or was brought there by the Norman invaders in 1066². The logic behind the early use of a jury system is that, the neighbors who witnessed a crime or an event will be the one who will render judgment³. Their judgment is based on what they knew personally⁴.

When England came to the New World, they used a jury system in their colonies. Hence, after the USA declared independence, they still adopted the jury system. Thomas Jefferson, one of the founding fathers of the USA, emphasized the importance of a jury system. He said that the English colonizers deprived them of the benefits of a jury system, as the English decided when to use a jury system at their convenience⁵.

¹ Hans Zeisel, "Jury," Encyclopædia Britannica (Encyclopædia Britannica, inc.), accessed June 3, 2021, <https://www.britannica.com/topic/jury>.

² *Id.*

³ *Id.*

⁴ *Id.*

⁵ "Learn about the History of the Jury System," Mass.gov, accessed June 3, 2021, <https://www.mass.gov/info-details/learn-about-the-history-of-the-jury-system>.

Today, an American jury system is broken down into two kinds, the trial jury and the grand jury⁶. A trial jury is composed of six to twelve jurors⁷. The trials are generally public, however, the deliberations are private⁸. In contrast, a grand jury is composed of sixteen to twenty-three jurors⁹. The grand jury proceedings are private in nature¹⁰. A trial jury is both used in criminal and civil proceedings while a grand jury is only used in federal criminal proceedings¹¹.

II. Jury System: Pros and Cons

In a jury system, the jurors determine the guilt or liability of a party by the vote of the jurors. As we take note that jurors are laypersons, we should also note that most countries who use a jury system practice a common law system. As these courts give equal footing to jurisprudence as statutes, it is important that jurors must be given information by the court regarding such jurisprudence and statutes. They can pass notes, ask the judge or any member of the court about certain statutes, etc.

As there are multiple jurors, there may be less cases of bribery. More jurors means more people to bribe. This will be very costly for anyone who attempts to do such a thing.

When jurors vote, they do it in deliberations. They will discuss the facts of the case, apply the relevant provisions of the law, and vote for or against a party individually. When this is the case, the judgment does not solely lie on one person.

One of the main criticisms of the jury system is that jurors may be influenced by the opinion of the general public; after all, they are part of the general public. They may become emotional, sympathetic to a party, or angry with a party.

Jury system is also expensive. For one, if all courts have six to twelve more personnel, the government would have to pay six to twelve more persons. If we multiply that by the number of courts, the government will pay tons of money.

III. Is the jury system suitable in the Philippines?

Whether we like it or not, the Philippines is a poor country compared to other countries. As this is the case, the Philippines may not be ready for a jury system.

⁶ "Types of Juries," United States Courts, accessed June 3, 2021, <https://www.uscourts.gov/services-forms/jury-service/types-juries>.

⁷ *Id.*

⁸ *Id.*

⁹ *Id.*

¹⁰ *Id.*

¹¹ *Id.*

To accurately judge a case through a jury system, the general populace must be well educated. This is not the case here in the Philippines. As jurors come from all walks of life, we might be seeing cases decided based on pure opinion and personal biases.

The courtroom facilities in the Philippines are also limited. Based on multiple experiences by different personalities who went to a court, they described the facilities as inadequate. In an anecdote delivered by Dr. Raquel Fortun to the students of University of the Philippines Manila, she described a court in Central Luzon as a miserable court. She was subpoenaed to appear in the said court. When she arrived there, the seat given to her was broken. It only had three legs.

This illustration shows that Philippine courts may not be ready for a jury system. If we, as a country, truly want a jury system, we must first give priority to educate the general public properly. The next generation of students must have the proper capacity to decide cases based on logic and reasoning, regardless of what sector they come from. Next, we should also protect the independence of the judiciary. If we cannot protect our courts considering we have this kind of system, how can we protect the integrity of the jurors? All of these factors must be considered before we make a switch to a jury system. ■

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Vanessa G. Silla is currently a full-time law student and a member of the WVSU Law Moot Team. She graduated from the University of the Philippines in the Visayas with a Bachelor's Degree in Management. In 2021, she took her oath as a Certified Law Student Practitioner (Level 1). She then conducted her externship at the Public Attorney's Office - Region VI under the guidance of Atty. Jose Edmund E. Guillen and Atty. Ann V. Sorianosos - Estomo. She is loyal, brave, and true.



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